

WOMAN;
HER POSITION AND INFLUENCE IN ANCIENT
GREECE AND ROME, AND AMONG
THE EARLY CHRISTIANS.

JAMES DONALDSON

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WOMAN;

*HER POSITION AND INFLUENCE IN
ANCIENT
GREECE AND ROME, AND AMONG
THE EARLY CHRISTIANS*

BY

JAMES DONALDSON, M.A. LL.D.

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PREFACE.

The first three books of this work and a part of the fourth are a reprint of the following five articles from the *Contemporary Review*, and of a portion of the sixth, with the kind consent of the Editor.

1. The Position and Influence of Women in Ancient Greece.—*Contemporary Review*, July, 1878.
2. The Position and Influence of Women in Ancient Athens.—*Contemporary Review*, March, 1879.
3. The Position of Women in Ancient Rome.—*Contemporary Review*, May, 1888.
4. The Position of Women in Ancient Rome.—*Contemporary Review*, October, 1888.
5. The Position of Women among the Early Christians.—*Contemporary Review*, September, 1889.
6. The Characters of Plautus.—*Contemporary Review*, November, 1877.

All the articles have been carefully revised and various additions have been inserted in them. The fourth book contains discussions of some important questions bearing on the subject of the work, which are printed for the first time.

I am indebted to Mr. John Randall for the preparation of the Index.

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BOOK I.

THE POSITION AND INFLUENCE OF WOMEN IN ANCIENT GREECE.

CHAPTER I.

PRELIMINARY.

Everything that has life has a course within certain limits predetermined for it, through which it passes until it finally disappears. The seed of the oak gathers materials from earth and sky until it fashions itself into the majestic tree. It will not become a rose or an elm. So it is with the higher animals and man. The lines of their progress through life are distinctly marked off. But within the limits special to each class, there are different degrees of perfection. All the individuals seem to strive after an ideal which none attains, to which some come very close, and to which all more or less approximate. Man has also his ideal, but in addition to the instinctive power of soul which strives after the ideal, he has the faculty of being conscious of the ideal and of consciously striving after it. What is true of man, is true of woman. What is the ideal of woman? What could we call the complete development and full blossoming of woman's life? I have no intention of answering this question, much agitated in the present day. I do not think that I could answer it satisfactorily, but it is requisite for the historian of woman in any age to put it to himself and his readers. A true conception of woman's ideal life can be reached only by the long experience of many ages. The very first and most essential element in the harmonious development of woman's nature, as it is of man's, is freedom, but this is the very last thing which she acquires. Impediments have arisen on every hand to hinder her from bringing her powers into full activity. Ignorance, prejudice, absurd modes of thought prevalent in particular ages, conventional restraints of an arbitrary nature, laws that have sought to attain special aims without regard to general culture and well-being—these and like causes have prevented us from seeing what woman might become if she were left unfettered by all influences but those that are benign and congenial. It is the part of the

historian to take note of these obstacles, and to see what, notwithstanding these, woman can do and aims at doing.

The first condition, therefore, of a successful study of woman's history is to come unbiassed to the task. We must for the time keep in abeyance our prevalent opinions. There is peculiar need for this in this subject, because, should we have false opinions, they are sure to be held with a tenacity which is great in proportion to their falsehood; and should we have true, we are likely to give them an exaggerated importance and power; for all opinions on women are apt to be intense. We have therefore to suspend our ordinary modes of thought, and enter into conceptions and feelings and a manner of life widely different from our own. Some of these differences I must explain before I enter on my history.

And first of all the Greeks looked at the relations between the sexes from a point of view utterly strange to us. Amongst us there exists a clear and definite doctrine which lays down rigidly what is right and what is wrong. The Greeks had no such doctrine. They had to interrogate nature and their own hearts for the mode of action to be pursued. They did not feel or think that one definite course of conduct was right, and the others wrong; but they had to judge in each case whether the action was becoming, whether it was in harmony with the nobler side of human nature, whether it was beautiful or useful. Utility, appropriateness, and the sense of the beautiful were the only guides which the Greeks could find to regulate them in the relations of the sexes to each other.

We have to add to this that their mode of conceiving nature was quite different from ours. To them everything was natural, or, if you like, supernatural. If wine gladdened or maddened the heart of man, the influence was equally that of a god. The Greek might be perplexed why a god should madden him, but he never doubted the fact. And so it was with love. The influence which the one sex exercises on the other is something strangely mysterious. Two persons of different sexes meet. If we look at them, we see nothing very remarkable in either. And if we continue our look for an hour or two, we might notice nothing remarkable going on. Yet a very extraordinary change has taken place. The hearts of both have begun to vibrate wildly. The commonplace man has had wings furnished to his mind, and he sees heaven opening before his eyes, and an infinite tenderness suffuses his soul. The girl, who could not utter a word in her own behalf

before, has had her lips unsealed, and wit and brightness and poetry sparkle in every sentence which she addresses to her companion. She too flings from her the ordinary routine of daily life, and sees before her a paradise of purest bliss and unending joy. Whence comes all this inspiration? Whence this temporary elevation of the mental powers? Whence this unsealing of mortal eyes, till they see the beatific vision? "From a divine power," said the Greeks. And this divine power seemed to them the most irresistible of all. It swayed the gods themselves. If the gods themselves could not but yield to the magic power, how could it be expected that a mortal could resist? The religion of the Greeks could not with such a mode of conception strongly aid them in self-restraint. It could merely inculcate forbearance and compassion. And this we find to be the case. In a speech which Sophocles puts into the mouth of Dejanira, she expresses her conviction that a wife has no right to expect a husband to be always faithful to her, or to blame the woman with whom he falls in love. "Thou wilt not," she says, "tell thy tale to an evil woman, nor to one who knows not the nature of man, that he does not naturally rejoice always in the same. For whosoever resists Love in a close hand-to-hand combat, like a boxer, is not wise. For he sways even the gods as he wishes, and me myself also; and how should he not sway another woman who is such as I am? So that if I find fault with my husband caught with this disease, or with this woman the cause along with him of nothing that is disgraceful, or to me an evil, I am unquestionably mad."^[1] Such religious forbearance is not found in poetry only. It is inculcated on wives as a strict part of their duty by a female Pythagorean philosopher, Periktione, who wrote on the harmony of woman.^[2] "For a wife," she says, "ought to bear all the circumstances of her husband, whether he be unfortunate, or err in ignorance, or in disease, or in drunkenness, or have intercourse with other women, for this error is permitted to husbands, but no longer to wives, for punishment awaits them." No doubt this indulgence conceded by Periktione is due partly to the idea, which does not belong to the earliest period of Greek life, that the wrong-doing of the wife introduced impurity into the breed of the citizen while the wrong-doing of the husband had generally no such effect. But there existed also the feeling expressed more generally in regard to human nature both of men and women by Dejanira. The sentiment disappears only before a philosophy such as that of Plato and Aristotle, which rose far above the common conceptions of the Divine Being. Both of these philosophers prescribe punishments for those

who violate marriage, though their rules are not absolute but depend on circumstances. Plato says:^[3] “And as to women, if any man has to do with any but those who come into his house duly married by sacred rites, whether they be bought or acquired in any other way, and he offends publicly in the face of all mankind, we shall be right in enacting that he be deprived of civic honours and privileges, and he be deemed to be, as he truly is, a stranger.” Aristotle^[4] leaves a larger margin for the husband, but suggests that in certain circumstances of transgression the offending husband should be punished with loss of his rights as a citizen in proportion to the offence.

Throughout our estimate of women, it is also of great importance to remember the passionate love of beauty which animated the Greeks. A modern mind can form almost no idea of the strength and universality of this passion. The Greeks loved everything that was beautiful, but it was in the human body that they saw the noblest form of earthly beauty. They did not confine their admiration to the face. It was the perfect and harmonious development of every part that struck them with awe. It would occupy too much space to give a full account of this love of the beautiful, or to bring home the intensity of the Greek feeling. One instance will suffice. The orator Hyperides was defending the Hetaira Phryne before a court of justice. His arguments, he thought, fell on the ears of the judges without any effect. He began to regard his case as hopeless, when a happy idea struck him, and tearing open the garment of his client, he revealed to the judges a bosom perfectly marvellous in form. The judges at once acquitted her, and I have no doubt that the whole Greek sentiment agreed with their decision. But we should make an entire mistake if we were to suppose that the judges were actuated by any prurient motive. One of the writers who relate the circumstance gives the reason of the decision. The judges beheld in such an exquisite form not an ordinary mortal, but a priestess and prophetess of the divine Aphrodite. They were inspired with awe,^[5] and would have deemed it sacrilege to mar or destroy such a perfect masterpiece of creative power. And though no doubt there were low-minded Greeks, as there are low-minded men everywhere, yet it may be affirmed with truth that the Greeks did not consider beauty to be a mere devil’s lure for the continuance of the race, as Schopenhauer represents it, but they saw in it the outshining of

divine radiance, and the fleshly vehicle was but the means to lead on the soul to what is eternally and imperishably beautiful.

These are only some of the points in which the Greeks differed widely from us, and we must realize the difference before we can read the history aright. But this history has to face other difficulties. The influence of woman is often exercised most powerfully in such a quiet and unobtrusive manner that no historian can take note of it. Who, for instance, could narrate the action of beauty and of beautiful ways upon thousands of hearts? The influence is silent, but not the less potent. We have this additional difficulty in Greece, that almost all we know of women is derived from men. Now, men rarely write dispassionately of women. They either are in love with them, or hate them, or pretend to hate them. They have had sweet or bitter experience of them. And when they do write about them, they write according to that experience. But not only is the history of Greek women written by men, but it was written for men. This fact must be specially remembered when we have to deal with the utterances of the comic poets, for women did not act in the plays, nor is it probable that they were even present at the comedies during the best days of Athens. But men taking the parts of women are sure to act them with all the exaggeration and licence which are natural to such representations. No great stress must, therefore, be laid on the wild abuse of women which can be culled in large abundance from Greek writers. One early satirical poet^[6] (Simonides of Amorgos) divides women into ten classes, of which only one is good. And he proceeds with his invective very much as if woman did not exist.

“Listen, O people,” says Susarion, who may be called the inventor of comedy. “Susarion says this: Women are an evil, but nevertheless, O countrymen, it is not possible to have a household without evil, for to marry is an evil and not to marry is an evil.”^[7] (Stob. 69, 2).

A satiric poet (Hipponax)^[8] gives it as his opinion that “a man has only two very pleasant days with his wife—one when he marries her, the other when he buries her.” A comic poet (Philemon) says pithily, “Woman is an immortal necessary evil.”^[9] Euripides says:—

“Terrible is the force of the waves of the sea, terrible the rush of river and the blasts of hot fire, terrible is poverty, and terrible are a thousand other things; but none is such a terrible evil as woman. No painter could adequately represent her: no language can describe her; but if she is the creation of any of the gods, let him know that he is a very great creator of evils and a foe to mortals.” (Stob. 73, 1.)

Quotations like these could be made in hundreds, but they really tell us little. They could be matched by a large number of sayings from the same authors in which woman is praised to the skies. Euripides was specially blamed as a hater of women. The remark was made in the presence of Sophocles. "Yes," said he, "in his tragedies." And even in his tragedies he has painted women of exquisite tenderness of heart, and capable of the grandest self-sacrifice and of the purest love.

CHAPTER II.

THE HOMERIC WOMEN.

In treating of Greek women I can only select prominent periods. And the first that comes before us is the Homeric.^[10] And here we require all the power of transporting ourselves into different times that we can command; for the phenomena are singular and unique. If we look at the external position of women, we must place the Homeric age exceedingly low in civilization. Women have almost no rights; they are entirely under the power of man, and they live in continual uncertainty as to what their destiny may be. The woman may be a princess, brought up in a wealthy and happy home; but she knows that strangers may come and carry her off, and that she may therefore at some time be a slave in another man's house. This uncertainty seems to have produced a strong impression on their character. They are above all women meek. If the terrible destiny comes upon them, they submit to it with all but unrepining gentleness, and their gentle ways soon overcome the heart of their warrior tyrants, and they make them their companions and friends. But low though this position be, it has to be noted that it is the inevitable result of the character of the times. Might was right. The strong arm alone could assert a right. The warrior had to defend even what belonged to him against any new comer. He himself sacked the cities of others. His own city, too, might be sacked, and if his wife's fate was to be carried off and to become the mistress of his conqueror, his own was to perish mercilessly by the cold edge of the sword. Man and woman alike held their lives in their hands. Women were not warriors, and therefore they had to depend entirely on the protection of men, and were consequently subject to them.

Such was their external position. But when we look to the actual facts of the case, nowhere in the whole range of literature are women subjected to a sway so gentle, so respectful, so gracious. Indeed, it can scarcely be called a sway at all. The physical force which, no doubt, exists is entirely in the background. In the front we see nothing but affection, regard, and even deference. The men appear never to have found fault with the women. It was natural for a woman to love, and she might do what they would deem an eccentric or disproportionate action in consequence of this influence; but

it was either a man or a god that was to blame. She was for the time mad. Even in the case of Helen, who brought so many disasters on Greeks and Trojans, the men find no fault. She reproaches herself bitterly, but the men think that it was Paris who was to blame, for he carried her off forcibly. How could she help it? And how could she prevent Paris falling in love with her? It was the business of woman to make any man happy whom destiny brought into her company, to diffuse light and joy through the hearts of men. Helen was surpassingly beautiful, knew all womanly works to perfection, was temperate and chaste, according to their ideas,^[11] and had a mind of high culture. All these were gifts of the gods, and could not but attract. The Trojans themselves were not surprised that Paris should have fallen under the spell of her charms; for a being so beautiful was a worthy object of contest between Greeks and Trojans. But she did nothing to excite Paris. She would have been happier with Menelaus. And when Paris was slain and Troy captured, Helen gladly returned to her former husband, and again occupied her early queenly position with dignity and grace, as if nothing had happened.

The only woman in regard to whom harsh words are used is Clytemnestra; but even in her case the man is much more censured than the woman, and if she had merely yielded to Ægisthus, under the strong temptations, or rather overpowering force, to which she was exposed, not much would have been said. Agamemnon would have wreaked his vengeance on the male culprit, and restored his wife to her former place. But at last she became the willing consort of Ægisthus, and his willing accomplice in the dreadful crime of murder. Yet even for this it is on Ægisthus that the poet lays the burden of the blame. For this mild judgment of women there were several causes. First, the Homeric Greeks were strongly impressed by the irresistible power of the gods and of fate, and the weakness of mortals; they thus found an easy excuse for any aberrations of men, but especially of helpless women; and their strong sense of the shortness of life and the dreariness of death led them to try to make the best of their allotted span.

Then their ideas of love and marriage tended to foster gentleness. In the Homeric poems there is no love-making; the idea of flirtation is absolutely and entirely unknown. They no doubt spoke sweet words to each other, but they kept what they said to themselves. And a man who wished to marry a

girl proved the reality of his desire generally by offering the father a handsome gift for her, but sometimes by undertaking a heavy task, or engaging in a dangerous contest. And when she left her father's home, she bent all her ways to please the man who had sought after her, and she succeeded. In the Homeric poems the man loves the woman, and the woman soon comes to love her husband, if she has not done so before marriage. The Homeric Greeks are, even at this early stage, out-and-out monogamists.^[12] Monogamy is in the very heart of the Greek heroes. No one of them wishes for more than one woman.

There is a curious instance of the power of heroic affection in Achilles. A captive widow has become his partner before the walls of Troy. She is very fond of him, and he becomes very fond of her. But there is no proper marriage between them, and Achilles could not worthily celebrate his marriage in a camp far from his friends and home. Yet such is his love for her, and her alone, that she is to him a real wife.^[13] And when Patroklos dies, Briseis, in her lament over him, states that he promised that he would make her the wedded wife of Achilles, and take her to Phthia, the native land of the hero, and celebrate the marriage feast among the Myrmidons.^[14] Probably Achilles had often given her the same promise, though he knew that his father might assign him a wife, and there might thus be difficulties in the way, and Patroklos had offered to help him in carrying out his design. If there was such true love to a captive, we may expect this still more to be the case with wives of the same race and rank. And so it is.

Beautiful, indeed, is the picture of married life which Homer draws. "There is nothing," he says,^[15] "better and nobler than when husband and wife, being of one mind, rule a household." And such households he portrays in the halls of Alcinous and Arete, and in the Trojan home of Hector and Andromache^[16], but still more marked and beautiful is the constant love of Penelope and Ulysses.^[17] Indeed, Homer always represents the married relation as happy and harmonious. In the households of earth there is peace. It is in the halls of Olympus that we find wife quarrelling with husband. But the love of these women to their husbands is the love of mortals to mortals. They do not swear eternal devotion to each other. They have no dream of loving only one, and that one for ever, in this life and the next. They do not look much beyond the present; and, therefore, if a

husband or wife were to die, it would be incumbent on the survivor to look out for a successor. Even when a husband is long absent from his wife, it is not expected that he can endure the troubles of life without the company and comfort of one woman's society. Thus Agamemnon takes to himself the captive Chryseis, and comes to love her better than his wife. Thus Achilles becomes so attached to Briseis as to weep bitterly when she is taken from him; but when she is taken from him, he consoles himself with the beautiful-cheeked Diomedes. And Ulysses, though he loves his Penelope best, and longs for her, does not refuse the embraces of the goddesses with whom he is compelled to stay in the course of his wanderings. Homer's insight into human nature is apparent in the circumstance that it is only in the heart of a true woman that he places resistance to the ordinary modes of thought. The peculiarity of Penelope's affection is that it will not submit to prevalent ideas; she loves and admires her Ulysses, and she will love no other. Contrary to all custom, she puts off the suitors year after year. The time has arrived when every one expects her to marry again. She has seen her son Telemachus grow to manhood. She has now no excuse. But she still refuses, waiting against hope for the return of him who, in her heart, she believes will return no more. ^[18]

After what I have stated I need scarcely say that the influence of woman was very great in the Homeric period. The two poems turn upon affection for women. The Trojan war had its origin in the resolution of the Greeks to recover Helen, and the central point in the Iliad is the wrath of Achilles because Agamemnon has taken away from him his captive Briseis. Ulysses and Penelope, as every one knows, are the subject of the 'Odyssey.' The husband consulted his wife in all important concerns, though it was her special work to look after the affairs of the house. Arete is a powerful peacemaker in the kingdom of her husband Alcinous, and it is to her that Nausicaa advises Ulysses to go if he wishes to obtain his return. All the people worship her as a god when she walks through the streets. Penelope and Clytemnestra are left practically in charge of the realms of their husbands during their absence at Troy, each with a wise man as counsellor and protector. And the very beautiful Chloris acted as queen in Pylos. ^[19] Fear also for the contempt of the women was one motive to bravery. ^[20] And Laertes, though he honoured Eurycleia as he honoured his dead wife, behaved in a seemly manner to her, ^[21] because he shunned the anger of his

wife. Altogether the influence of Homeric women must be reckoned great and their condition happy.

For this result two special causes may be adduced—the freedom which the women enjoyed, and their healthiness, possibly also their scarceness.

The freedom was very great. They might go where they liked, and they might do what they liked. There was indeed one danger which threatened them continually. If they wandered far from the usual haunts of their fellow-citizens, strangers might fall upon them and carry them off into slavery. Such incidents were not uncommon. But apart from this danger, they might roam unrestricted. They were not confined to any particular chamber. They had their own rooms, just as the men had theirs; but they issued forth from these, and sat down in the common chamber, when there was anything worth seeing or hearing. Especially they gathered round the bard who related the deeds of famous heroes or the histories of famous women. They also frequented the wide dancing place which every town possessed, and with their brothers and friends, joined in the dance. Homer pictures the young men and the maidens pressing the vines together. They mingled together at marriage feasts and at religious festivals. They took part with the men in sacrificing,^[22] or they went without the men to the temples and presented their offerings.^[23] In fact, there was free and easy intercourse between the sexes. They thus came to know each other well, and as the daughters were greatly beloved by their fathers, we cannot doubt that their parents would consult them as to the men whom they might wish for husbands. Even after marriage they continued to have the same liberty. Helen appears on the battlements of Troy, watching the conflict, accompanied only by female attendants. And Arete, as we have seen, mixed freely with all classes of Phæacians.

Along with this freedom, and partly in consequence of it, there appears to have been an exceedingly fine development of the body. The education of both boys and girls consisted in listening to their elders, in attending the chants of the bards, and in dancing at the public dancing place of the town. There was no great strain on their intellectual powers. There was no forcing. And they were continually in the open air. All the men learnt the art of war and of agriculture, and all the women to do household work. The women made all the clothes which their relatives wore, and were skilled in the art of embroidery. But they not merely made the clothes, but regularly washed

them, and saw that their friends were always nicely and beautifully clad. These occupations did not fall to the lot of menials merely. The highest lady in the land had her share of them, and none was better at plying the loom and the distaff than the beautiful Helen.

We have in the sixth book of the 'Odyssey' a charming picture of a young princess, Nausicaa. Nowhere are portrayed more exquisitely the thoughts and feelings and ways of a young girl who is true to her own best nature, who is reserved when reserve is proper, and speaks when a true impulse moves her, who is guileless, graceful, leal-hearted, and tender. Happily I have not here to exhibit her character, for to do anything but quote the exact words of Homer would be inevitably to mar its beauty; but I have to adduce some of those traits which show how the Homeric girls grew. Nausicaa is approaching the time when she ought to be married, and in preparation for this event would like to have all her clothes clean and in nice condition. She goes to her father, and tells him that she wishes to wash his clothes and the clothes of her brothers, that he may be well clad in the senate, and they may go neat to the dance. The father at once perceives what desire the daughter cherishes in her heart, and permission is granted, the mules are yoked to the car, the clothes are collected, and the princess mounts the seat, whip in hand, and drives off with a number of maid attendants. They reach the river where are the washing trenches. The clothes are handed out of the car, the mules are sent to feed on the grass, and princess and maids wash away at the clothes, treading them with their feet in the trenches. They then lay out the clothes to dry. While the clothes are drying, they first picnic by the side of the river, and then, to amuse themselves, engage in a game at ball, accompanied with singing. This is a day with Homeric girls. They can do everything that is necessary—drive, wash, spin, and sew. No domestic work comes amiss to one and all. And they are much in the open air. They thus all find active employment. Time never hangs heavy on their hands. And the strength and freshness of body produce a sweetness of temper and a soundness of mind which act like a charm on all the men who have to do with them. It seems to me that this explains to some extent the phenomena of the Homeric poems. There is no vicious woman in the 'Iliad' or 'Odyssey.' Some of them have committed glaring violations of the ordinary rules of life, but they are merely temporary aberrations or fits of madness. And there is no prostitution. This healthiness explains also another feature of the Homeric women which

deserves notice. There was an extraordinary number of very beautiful women.

The district of Thessaly, from which the whole of Greece ultimately derived its own name of Hellas, is characterized by the epithet the land of the beautiful women; and several other places are so characterized. But their type of beauty was not the type prevalent in modern times. Health was the first condition of beauty. The beautiful woman was well proportioned in every feature and limb. It was the grace and harmony of every part that constituted beauty. Hence, height was regarded as an essential requisite. Helen is taller than all her companions. The commanding stature impressed the Greeks as being a near approach to the august forms of the goddesses. As one might expect, the beauty of the women is not confined to the young girl between the ages of seventeen and twenty. A Homeric woman remained beautiful for a generation or two. Helen was, in the eye of the Greek, as beautiful at forty or fifty as she was at twenty, and probably as attractive, if not more so. The Homeric Greek admired the full-developed woman as much as the growing girl.

Such, then, were these Homeric Greek women. The Greek race was the finest race that ever existed in respect of physical development and intellectual power. Do we not see, in the account that Homer gives of the women, something like an explanation of the phenomenon? A race of healthy, finely formed women is the natural antecedent to a race of men possessed of a high physical and intellectual organization.

CHAPTER III.

THE SPARTAN WOMEN.

When we pass from Homer, we enter a new region. We do not know how far Homer's characters are historical. We cannot doubt that the manners and ways of the men and women whom he describes were like those of the real men and women amongst whom he lived. He may have idealized a little, but even his idealizations are indicative of the current of his age. But we know little of the modes in which the various States of Greece were constituted, and of the relations which subsisted between them. We have to pass over a long period which is a practical blank, and then we come to historical Greece. In historical Greece we have no unity of the Greek nation. We have men of Greek blood, but these men did not dream of forming themselves into one nation, ruled by the same laws, and mutually helpful of each other. The Greek mind regarded the city as the greatest political organization possible, or at any rate compatible with the adequate discharge of the functions of a State. And accordingly if we could give a full account of woman in Greece, we should have to detail the arrangements made in each particular State. There are no materials for such an account if we wished to give it; but even if there had been, it is probable that we should not have learned much more than we learn from the histories of the two most prominent of those States, Sparta and Athens. It is to the position and influence of women in these States that we must turn our attention.

To form anything like a just conception of the Spartan State, we must keep clearly in view the notion which the ancients generally and the Spartans in particular had of a State. The ancients were strongly impressed with the decay and mortality of the individual man; but they felt equally strongly the perpetuity of the race through the succession of one generation after another. Accordingly, when a State was formed, the most prominent idea that pervaded all legislation was the permanence of the State, and the continuance of the worship of the gods. They paid little regard to individual wishes. They thought little of individual freedom. The individual was for the State, not the State for the individual, and accordingly all private and personal considerations must be sacrificed without hesitation to the strength

and permanence of the State. A peculiar turn was given to this idea in Sparta.

From the circumstances in which the Spartans were placed, they had to make up their minds to be a race of soldiers. They had numerous slaves in their possession to do everything requisite for procuring the necessaries of life. They therefore had no call to labour. But if they were to retain their slaves and keep their property against all comers, they must be men of strong bodily configuration, hardy, daring, resolute. And as women were a necessary part of the State, they must contribute to this result. The regulations made for this purpose are assigned by the ancients to Lycurgus; but whether he was a real person, or how far our information in regard to him is to be trusted, is a matter of no consequence to us at present; for there can be no doubt that his laws were in force during the best period of Sparta's existence. And the laws bear on their front the purpose for which they were made. All the legislation that relates to women has one sole object—to procure a first-rate breed of men. The one function which woman had to discharge was that of motherhood. But this function was conceived in the widest range in which the Spartans conceived humanity. In fact no woman can discharge effectively any one of the great functions assigned her by nature without the entire cultivation of all parts of her nature. And so we see in this case. The Spartans wanted strong men: the mothers therefore must be strong. The Spartans wanted brave men: the mothers therefore must be brave. The Spartans wanted resolute men—men with decision of character: the mothers must be resolute. They believed, with intense faith, that as are the mothers, so will be the children. And they acted on this faith. They first devoted all the attention and care they could to the physical training of their women.

From their earliest days the women engaged in gymnastic exercises; and when they reached the age of girlhood, they entered into contests with each other in wrestling, racing, and throwing the quoit and javelin. Some writers^[24] assert that they engaged in similar contests even with the young men, and, like them, divesting themselves of the slight garments which they were in the habit of wearing in their warm climate, they showed before assembled multitudes what feats of strength and agility they could perform. In this way the whole body of citizens would come to know a girl's powers; there could be no concealment of disease; no sickly girl could pass herself

off as healthy. But it was not only for the physical strength, but for the mental tone, that the girls had to go through this physical exercise. The girls mingled freely with the young men. They came to know each other well. Long before the time of marriage they had formed attachments and knew each other's characters. And in the games of the young men nothing inspirited them so much as the praise of the girls, and nothing was so terrible as the shouts of derision which greeted their failures. The same influence made itself felt when they fought in battle. The thought that, when they came home, they would be rapturously welcomed by mother and sister, nerved many an arm in the hour of danger. All the training anterior to marriage was deliberately contrived to fit the Spartan women to be mothers. And it is needless to say that all the arrangements in connexion with marriage were made solely for the good of the State. All the Spartan girls had to marry. No one ever thought of not marrying. There was one exception to this. No sickly woman was allowed to marry. The offspring must be healthy. And, indeed, if she had had to consult her own feelings in Sparta, the sickly girl would, of her own accord, have refrained from marriage. For the State claimed a right over all the children. They were all brought very soon after birth before a committee appointed by Government, which examined into the form and probable healthiness of the child, and if the committee came to the conclusion that the child was not likely to be strong its death was determined on.

But there must have been very few sickly women among the Spartans. If a girl survived this first inspection, she had, as we have seen, her trials to go through, and only the strong could outlive the gymnastic exercises and the exposure of their persons in all weathers during religious processions, sacred dances, and physical contests. The age of marriage was also fixed, special care being taken that the Spartan girls should not marry too soon. In all these regulations the women were not treated more strictly than the men. The men also were practically compelled to marry. The man who ventured on remaining a bachelor was punished in various ways. If a man did not marry on reaching a certain age, he was forbidden to be present at the exercises of the young girls. The whole set of them were taken one wintry day in each year, and, stripped of their clothing, went round the agora singing a song that told how disgraceful their conduct was in disobeying the laws of their country—a spectacle to gods and men. The women also, at a certain festival, dragged these misguided individuals round an altar,

inflicting blows on them all the time.^[25] Men were punished even for marrying too late, or for marrying women disproportionately young or old.

Such was the Spartan system. What were the results of it? For about four or five hundred years there was a succession of the strongest men that possibly ever existed on the face of the earth. The legislator was successful in his main aim. And I think that I may add that these men were among the bravest. They certainly held the supremacy in Greece for a considerable time through sheer force of energy, bravery, and obedience to law. And the women helped to this high position as much as the men. They were themselves remarkable for vigour of body and beauty of form. A curious illustration of this fact occurs in one of the plays of Aristophanes. An Athenian lady resolves to put an end to the war between the Athenians and Lacedæmonians by combined action on the part of the wives from all parts of Greece. She has summoned a meeting of them, and as Lampito, the Lacedæmonian wife, comes in, she thus accosts her: "O dearest Spartan, O Lampito, welcome! How beautiful you look, sweetest one; how fresh your complexion, how vigorous your body. You could throttle an ox." "Yes," says she, "I think I could, by Castor and Pollux, for I practise gymnastics and leap high."^[26] They were not, however, merely strong in body, but took a deep interest in all matters that concerned the State. They sank everything, even maternal feeling, in their care for the community. Many stories and sayings to this effect have been preserved. A Spartan mother sent her five sons to war, and, knowing that a battle had taken place, she waited for the news on the outskirts of the city. Some one came up to her and told her that all her sons had perished. "You vile slave," said she, "that is not what I wanted to know; I want to know how fares my country." "Victorious," said he. "Willingly, then," said she, "do I hear of the death of my sons."

Another, when burying her son, was commiserated by an old woman, who cried out, "Oh, your fate!" "Yes, by the gods," said she, "a glorious fate, for did not I bear him that he might die for Sparta?"

And their courage was not merely of a daring and physical character. It was a moral courage. A Spartan had been wounded in battle and compelled to crawl on all fours; he seemed to feel ashamed of the awkwardness of his position. "How much better it is," said his mother, "to rejoice on account of bravery, than be ashamed on account of ignorant laughter!"

It might be supposed that the peculiar training to which the women were subjected might make them licentious and forward, but the testimony is strong that no such results followed from free intercourse with the young men. Adultery was almost entirely unknown.

Plutarch^[27] tells the story that a stranger asked Geradas, one of the very old Spartans, what punishment their law appointed for adulterers. He answered, "O stranger, there is no adulterer in our country." The stranger said, "What if there should be one?" "He pays a fine," says Geradas, "of a bull so large that stooping over Taygetus it will drink out of the Eurotas." When the stranger expressed his surprise, and said, "But how could there ever be so large a bull?" Geradas replied, with a smile, "And how could there ever be an adulterer in Sparta?" This language is perhaps too strong, and there were certain practices allowable which would not be allowed in our communities. The one object of marriage was to produce strong children, and any deviation from the ordinary arrangement by which one woman was married to one man was not only deemed legitimate, but praiseworthy if it secured strong children. In this way a weak man might lend his wife to a stronger, and some women had two husbands. There is only one case on record of a Spartan having two wives, and the case was singular. A greater latitude must have been allowed to women. But all these cases must have been quite exceptional. The wives were true to their husbands, the husbands fond and proud of their wives. A poor maiden was asked what dowry she could give to her lover. "Ancestral purity," she said. A person was sent to try to persuade a Lacedæmonian woman to aid in some evil practice. "When I was a girl," she said, "I was taught to obey my father, and I obeyed him; and when I became a wife I obeyed my husband; if, therefore, you have anything just to urge, make it known to him first."

Such were these Spartan women for many generations. No word of reproach can be brought against them. It is true that the free intercourse of the young men with the young women and the slightness of the female garments shocked the ordinary Athenian, and expressions to this effect occur in some writers, especially Euripides.^[28] But the general purity of the Spartan women is guaranteed by all the principal writers who have discussed the constitution of Sparta as it was during its supremacy—by Plato,^[29] Xenophon, and Plutarch. No doubt the system laboured under a radical defect. It was exclusive. It drove away all strangers; it discouraged

the higher culture at least in the case of the men; and it suspected all the higher arts as tending to luxury. And when the crisis came and the old manners gave way, vice and weakness rushed in, and men and women became equally bad. It is in the latter period that the words of blame are heard. Plato justly criticizes one marked defect in the Spartan treatment of women. The lawgiver had looked on woman only as a mother. He had lost sight of every other function. But women cannot spend their whole lives as mothers. When their infants grew into boyhood they were handed over to the instruction of Spartan men. And then what function had the women to discharge? Lycurgus, or the Spartan law-givers, took no thought of this. The men were under strict regulation to the end of their days. They dined together on the fare prescribed by the State. They were continually out on military service. They had other employments assigned to them. But no regulations were made for the women. They might live as they liked; there was nothing to restrain their luxury, and they were not taught the military art like the men. This neglect of the half of the city, Aristotle affirms, was followed by dire consequences. In his day the Spartan women were incorrigible and luxurious. He also affirms that the Spartan system threw a great deal of land into the hands of the women, so that they possessed two-fifths of it; and finally he accuses the Spartan women of ruling their husbands. Warlike men, he thinks, are apt to be passionately fond of the society of women. "And what difference," he says,^[30] "does it make whether the women rule or the rulers are ruled by the women? for the result is the same." There seems to have been some truth in this last accusation. Many of the wives were better educated than their husbands, and the fact was noticed by others. "You of Lacedæmon," said a strange lady to Gorgo, wife of Leonidas, "are the only women in the world that rule the men." "We," she replied, "are the only women that bring forth men." There is a great deal of point in what Gorgo said. If women bring forth and rear *men*, they are certain to receive from them respect and tenderness, for there is no surer test of a man's real manhood than his love for all that is noblest, highest, and truest in woman, and his desire to aid her in attaining to the full perfection of her nature.

The student of the history of woman is continually reminded of the fact that when men lose their dignity and eminence, woman disappears from the scene, but when they rise into worth, she again comes on the stage in all her power and tenderness. We have an instance before us. Sparta became

degenerate. Her name almost vanishes from the pages of the historian. But she was not to die without a final struggle. In the middle of the third century before Christ two kings of Sparta in succession dreamt of putting down the luxury, and restoring the old Spartan discipline and the old Lycurgan laws. And in the midst of their vigorous and heroic efforts to effect this great change, women again play their part with energy and devotion. The earliest of the two kings was the young and gentle Agis,^[31] and almost the first person whom he consulted on his projected reforms was his mother Agesistrata, a woman of great wealth and influence. She was at first utterly taken aback, for the project included the surrender of all her wealth. But at length she admired her son's noble ambition, and set her mind, with the aid of some other like-minded women, on procuring the support of the women of Sparta. The importance of such support could not be overestimated.

"They well knew," says Plutarch, "that the Lacedæmonian men were always obedient to their wives, and that they allowed them to meddle in public matters more than they allowed themselves to meddle in private affairs." Besides, the women had a great deal of property. Would they surrender their wealth? Would they give up their luxurious habits? Would they return to the old Spartan simplicity? No, the movement seemed to have come too late. Some were willing to sacrifice everything, but others would yield nothing, and a strong party was formed against Agis. At first this party was put down with a high hand. Leonidas, the leader, was driven into exile. The daughter of this man, Chelonis, is one of the great characters that emerged during these troublous times. She had been married to Cleombrotus, who took the side of Agis. Chelonis was in straits what to do, but she chose to follow the path where gentleness and tenderness were required. She left her husband and tended her father in distress, relieving his wants, soothing his troubles, and supplicating the victorious party in his behalf. At length the wheel of fortune turned round. Leonidas became master of the situation. Agis and Cleombrotus were in his hands. Chelonis at once fled from her father and took her place beside her husband. In the wretched robes which she had worn when pleading for her father, she pleaded for her husband. After much entreaty she prevailed, and the life of her husband was spared, but he was condemned to exile. Chelonis had again to make her choice. Her father urged her to stay with him, reminding her of the kindness he showed her in sparing her husband, and promising every comfort. But Chelonis did not hesitate. As Cleombrotus rose to go,

she gave him one of her children, and, taking the other in her arms and kissing the altar of the goddess, she walked out with him to degradation and poverty.

Justly does Plutarch add the remark that if Cleombrotus had not been entirely corrupted by vainglory, he would have deemed exile with such a woman a greater blessing than any kingdom. The fate of pure-minded Agis was worse than that of Cleombrotus. No mercy was shown him, and he was put to death by strangulation. His mother, Agesistrata, waited to hear what was to become of him. The officer, who knew that Agis was dead, delusively told her that no violence would be done him. She wished to see him, and take her old mother with her. Permission was granted. The two women entered the prison. The doors were shut. The grandmother was requested to go into the chamber where Agis was. She went in, and was strangled. Then Agesistrata entered, and saw her son lying on the ground and her mother hanging by a rope. She calmly helped to take the dead body down, and, stretching her alongside of Agis, laid both the bodies out and covered them; and, falling upon her son and kissing him, she said, "O my son, it is your gentleness and goodness that have ruined you." "If that is your opinion," said the officer, "you had better go the same way." She bravely held out her neck, and said, "May this turn out for the good of Sparta!" And thus was stamped out the first effort for the reformation of Sparta.

The second is also remarkable for the nobility of the women who aided it. Cleomenes,^[32] a man of great vigour and capacity, the son of Leonidas mentioned above, came to the throne. His father had compelled him to marry Agiatis, the widow of Agis; but he soon began to love the noble and gentle lady. They talked much together about Agis and his projects, and Cleomenes at length resolved to carry out the projected reforms. Again the young prince was helped most effectively by his mother, Cratesicleia, who supplied him with resources, and even married again for his sake, for she thereby secured the support of one of the most influential men in Sparta. But again destiny was too powerful for the reformer. He did, indeed, succeed in introducing his reforms into Sparta, and in again giving her the foremost place in Peloponnesus. But he awoke the jealousy of Aratus, the head of the Achæan League; the Macedonian stranger was called in, and after a fatal battle Cleomenes had to flee. During the course of his struggles

his noble wife Agiatis died, and was bitterly lamented. His mother, Cratesicleia, was always ready to help him, and stood by him to the last. At one time he required the alliance of Ptolemy, king of Egypt, but Ptolemy would not agree to it unless the Spartan king sent his mother and child as hostages. Cleomenes did not venture to mention this proposal to his mother, but the mother's keen eye observed that he was keeping some secret from her. At last she prevailed on him to disclose it, and on hearing it she laughed loudly and said, "Will you not send immediately this body where it is likely to be most useful to Sparta, before it is dissolved by old age?" After she had gone to Egypt she heard that Cleomenes was afraid to take certain measures because Ptolemy held his mother and child as hostages, and she at once wrote to him, "Do what is proper, and never mind what becomes of an old woman and a little child."

The fate of Cleomenes was as tragic as that of Agis. He had sought shelter in Egypt, but found a prison there instead of a home. He and his companions determined to overpower the sentinels, break through the place of confinement, and rouse the inhabitants to assert their liberty. They easily broke through their place of confinement, but they could not rouse the inhabitants, and so they resolved to die. Each one killed himself except Panteus, the youngest and most beautiful among them. He had been ordered by the king to wait till all had killed themselves. And so he did. He went round all the bodies to see that they were dead, and then, kissing Cleomenes and throwing his arms around him, he also killed himself. The Egyptian king ordered the execution of all the women connected with the Spartans. The mother was brought forth and stabbed. Other women also were put to death. But most touching of all was the end of the wife of Panteus. She was still very young and exquisitely beautiful, and she was still in the raptures of first love. When her husband left Sparta for Egypt, her father had refused to let her go with him, and confined her. But she found means of escape. She mounted a horse and rode to Tænarus, and then embarked on a vessel sailing for Egypt. Now she moved about the women, encouraging and consoling. She led Cratesicleia by the hand to the place of execution. She decently laid out the bodies of the women who were slain. And then, adjusting her own robe so that she might fall becomingly, she offered herself to the executioner without fear. Thus ended the second effort at Spartan reformation, and henceforth autonomous Sparta and her women disappear from history. We may well conclude the story with the closing

words of Plutarch, who, thinking of the dramatic contests that were held in Greece, says, “Thus Lacedæmon, exhibiting a dramatic contest in which the women vied with the men, showed in her last days that virtue cannot be insulted by Fortune.”

CHAPTER IV.

SAPPHO.

After the Spartan women, we should naturally discuss the position and influence of women among the Athenians. But a singular phenomenon chronologically anterior arrests our attention. The Spartan Constitution remained nearly in the same condition from the ninth century to the fourth. Our knowledge of the life of the Athenian women relates mainly to the fifth and later centuries. In the seventh and sixth occurred the movement among women to which I allude. Unfortunately many features of it are obscure. The ancients did not feel much interest in it, and the records in which its history was contained have nearly all perished. The centre of the movement was the poetess Sappho. She of herself would deserve a passing notice in any account of ancient women, for she attained a position altogether unique. She was the only woman in all antiquity whose productions by universal consent placed her on the same level with the greatest poets of the other sex. Solon, on hearing one of her songs sung at a banquet, got the singer to teach it to him immediately, saying that he wished to learn it and die.^[33] Herodotus, Plato, Aristotle, refer to her in terms of profound respect. Plato called her the tenth Muse. And Strabo seems to express the opinion of antiquity when he says that she was something quite wonderful; “for we do not know,” he says,^[34] “in the whole period of time of which there is any record, the appearance of a single woman that could rival her, even in a slight degree, in respect of poetry.”

This woman determined to do her utmost to elevate her sex. The one method of culture open to women at that time was poetry. There was no other form of literature, and accordingly she systematically trained her pupils to be poets, and to weave into verse the noblest maxims of the intellect and the deepest emotions of the heart. Young people with richly endowed minds flocked to her from all quarters, and formed a kind of woman's college.

There can be no doubt that these young women were impelled to seek the society of Sappho from disgust with the low drudgery and monotonous routine to which women's lives were sacrificed, and they were anxious to

rise to something nobler and better. We learn this from Sappho herself. It is thus that she addresses an uneducated woman:—

“Dying thou shalt lie in the tomb, and there shall be no remembrance of thee afterwards, for thou partakest not of the roses of Pieria: yea, undistinguished shalt thou walk in the halls of Hades, fluttering about with the pithless dead.”

And one of her most distinguished pupils, Erinna, who died at the early age of nineteen, sang in her poem ‘The Distaff’ the sorrows of a girl whom her mother compelled to work at the loom and the distaff while she herself longed to cultivate the worship of the Muses.

Did she attempt any other innovation in regard to the position of women? What did she think were the relations which ought to subsist between the one sex and the other? These are questions that we should fain wish we could answer; but history remains silent, and we can only form conjectures from isolated facts and statements. A late Greek writer, Maximus Tyrius,^[35] compares her association with young women to the association which existed between Socrates and young men. It has to be remembered that even in Sparta the men were thrown into very close and continual intimacy; and that this was still more the case in other States where the women were kept in strict confinement. Even in Sparta the men dined together alone; they were often away on military expeditions for whole months together, and men were the instructors of the youths. In this way passionate intimacies arose between old and young, the old man striving to instruct his favourite youth in all manly and virtuous exercises, and the young man serving and protecting his old friend to the best of his power. These attachments were like the loves of Jonathan and David, surpassing the love of women. It is likely that Sappho did not see why these intimacies, fraught as they were with so many advantages, should be confined to the male sex; and she strove, or at least Maximus Tyrius thought she strove, to establish much closer connexions, such strong ties of love between members of her own sex as would unite them for ever in firm friendship, soothe them in the time of sorrow, and make the hours of life pass joyfully on. And her poetry expresses an extraordinary strength and warmth of affection. Just as Socrates almost swoons at the sight of the exquisite beauty of an Athenian youth, so Sappho trembles all over when she gazes on her lovely girls. And she weaves all the beauties of nature into the expression of the depth of her emotion. She seems to have had a rarely

intense love of nature. The bright sun, the moon and the stars, the music of birds, the cool river, the shady grove, Hesperus, and the golden-sandalled Dawn—all are to her ministers of love, of this intense love for her poetical pupils, for one of whom she says she would not take the whole of Lydia. But though this association may have been one great object, it cannot be affirmed that she formed any idea of making the love of women a substitute for the love of men. Some of her girls unquestionably married, and Sappho composed their hymeneal songs. She entered into their future destinies, and sympathized with them throughout their career, following them to the grave with the sad lament which they only can utter who have felt intensely the joys of life, and see in death the entrance to a cold, shadowy, and pithless existence.

It is possible that she may have ventured on new opinions as to the nature of marriage. When we come to treat of Athens, we shall see that the restrictions on marriage in the ancient world were of the sternest and most narrow character. Her Lesbian countrywomen enjoyed considerable liberty, and Heraclides Ponticus^[36] says that they “were excitable and daring. Wherefore fondness for drink and love affairs, and every kind of relaxation in regard to food are common among them.” The statement is made in regard to the Æolians, to whom the Lesbians belonged. But they were surrounded by Ionians, among whom the position of women was almost servile. Sappho may have opened her home to the girls who were tired of such close restriction, and may have counselled marriage from choice. Probably this circumstance would account for the treatment which the character of Sappho received in subsequent times, for all women who have dared to help forward the progress of their sex, and all men who have boldly aided them have almost uniformly been slandered and reviled in all ages.^[37] All the notices which we have of her from contemporary or nearly contemporary sources speak of her in high terms of praise. Alcæus, her fellow-townsmen, sings of her as “the violet-crowned, chaste, sweet-smiling Sappho,” and approaches her in verses which imply a belief in her purity. Herodotus^[38] tells how she bitterly rebuked a brother who squandered all his money on a beautiful courtesan. Her fellow-citizens honoured her by stamping her figure upon their coins,—“honoured her,” says Aristotle,^[39] “though she was a woman.” And the fragments of her own poems bear testimony to the same fact. They show, indeed, the warm

blood of a Southern girl who has no concealments. If she loves, she tells it in verses that vibrate with emotion, that tremble with passion. And she was no prude. Like the rest of her sex of that day, she thought that it was woman's destiny to love, and that the woman who tried to resist the impulse of the god tried an impossible feat. But there is not one line to show that she fell in love with any man. She may have done so, she probably did so, but there is no clear proof. There is only one reference to a man, and it is most likely that she is celebrating not her own passion, but the love of one of her girls. And if she wrote many a hymn to the golden-throned Aphrodite, she wrote also hymns to the chaste Artemis, and prayed to the chaste Graces.

But when we pass from her contemporaries to the Athenian comic writers, all is changed. No fewer than six comedies, written by six different poets, bore her name and exhibited her loves, and four other plays probably treated the same subject. In these she was represented as loving a poet who died before she was born, and two poets who were born after she died. But especially she fell into an infatuated love at the age of fifty for a kind of mythological young man who was gifted by Aphrodite with the power of driving any woman he liked into desperation for him. Old Sappho became desperate according to these poets, and plunged into the sea to cool this mad passion; but whether she ever reached the bottom, no comic poet or subsequent historian has vouchsafed to tell us. All these villanous stories, which gathered vileness till, as Philarète Chasles remarks, they reached a climax in Pope, seem to me indicative that she ventured on some bold innovations in regard to her own sex which shocked the Athenian mind. And perhaps confirmation is added to this by the statement in the Parian marble, though the document is often untrustworthy,^[40] that she was banished and fled to Sicily. She may, indeed, have taken part in some of the numerous political movements which agitated her native island, but it seems more likely that she would give offence by trying to strike off some of the restrictions which in her opinion harassed or degraded her sex.

CHAPTER V.

ATHENIAN WOMEN.

We come now to the Athenians. The phenomenon that presents itself here is as peculiar and striking as anything we have yet examined. In Athens we find two classes of women who were not slaves. There was one class who could scarcely move a step from their own rooms, and who were watched and restricted in every possible way. There was another class on whom no restrictions whatever were laid, who could move about and do whatever seemed good in their own eyes. And the unrestricted would, in all probability, have exchanged places with the restricted, and many of the restricted envied the freedom of the other members of their sex. We proceed to the explanation of this phenomenon.

First of all the ancient idea of a State has to be firmly kept in mind. The ancient Greeks did not dream, as we have said, of any political constitution more extensive than a city. Athens was the largest of these city-States in Greece, and yet it probably never numbered more than thirty thousand citizens. These citizens, according to the Greek idea, were all connected by ties of blood more or less distant; they all had the same divine ancestor; they all worshipped the same gods in the same temples, and they possessed many rights, properties, and privileges in common. It was therefore of supreme importance that in the continuation of the State only true citizens should be admitted, and, accordingly, the general principle was laid down that none could become citizens but those whose fathers and mothers had been the children of citizens. From this it followed that the utmost care should be taken that no spurious offspring should be palmed upon the State. The women could not be trusted in this matter to their own sense of propriety. It was natural for a woman to love. Even men were powerless before irresistible love, and much less self-control could be expected from weak women. Means must therefore be devised to prevent the possibility of anything going wrong, and, accordingly, the citizen-women had special apartments assigned to them, generally in the upper story, that they might have to come downstairs, and men might see them if they ventured out. Then they were forbidden to be present at any banquet. The men preferred to dine by themselves, rather than expose their wives to their neighbour's

gaze. And in order to defy all possibility of temptation, the women must wrap up every part of their bodies. In addition to these external arrangements, laws were passed such as might deter the most venturesome.

A citizen-woman could have almost^[41] no other association with a citizen than marriage. The most transient forcible connexion imposed the duty of marriage, or was followed by severe penalties. And she could not marry any but a citizen. Association with a stranger never could become a marriage. And after she was married, infidelity was punished with the most terrible disgrace. Her husband was compelled to send her away. No man could marry her again; for if any one ventured on such a course, he was thereby disfranchised. She was practically expelled from society and excommunicated. If she appeared in a temple, any one could tear her dress off, and maltreat her to any extent with impunity, provided he stopped short of killing her. Her accomplice also might be put to death if the husband caught him. Restrictions of the most stringent nature and punishments the most terrible were employed to keep the citizenship pure. To help further to realize the position of the Athenian wife, we have to add that she was generally married about the age of fifteen or sixteen. Up to this time she had seen and heard as little as possible, and had inquired about nothing.^[42] Her acquaintance with the outside world had been made almost exclusively in religious processions. “When I was seven years of age” say the chorus of women in the ‘*Lysistrata*,’^[43] “I carried the mystic box in procession; then when I was ten I ground the cakes for our patron goddess, and then, clad in a saffron-coloured robe, I was the bear at the Brauronian festival; and I carried the sacred basket when I became a beautiful girl.” Such were the great external events in the life of a high-born Athenian maid. When she married, her life was not much more varied. Her duties lay entirely within the house. They were summed up in the words, “to remain inside and to be obedient to her husband.” She superintended the female slaves who carded the wool; she made, or assisted in making the garments of her husband and children; she had charge of the provisions; and she was expected to devote some time to the infants. If she went out at all, it was to some religious procession or to a funeral, and if old she might occasionally visit a female friend and take breakfast with her, or help her in some hour of need. For the discharge of the duties which fell to an Athenian woman no great

intellectual power was needed, and accordingly the education of girls was confined to the merest elements.

Such was the treatment of Athenian women. What were the results? One can easily perceive that there was very little of love-making before marriage. A girl of thirteen or fourteen preparing for a life of sewing, spinning, provision-getting, and child-nursing is not generally an object of much attraction to grown-up men. The romantic element is decidedly deficient. And then, even if there had been some romantic element, the young men had no opportunities of free intercourse. Accordingly matches were managed to a large extent by old women, who were allowed to go from house to house, and who explained to the young woman the qualities of the young man and to the young man the qualities of the young woman. A marriage concluded in such a way might or might not be happy, but there could be little ideal love about it. Nor is there any reason to believe that the Athenians were very fond of their wives. They liked them if they managed their houses economically, and had healthy children, especially sons. But they were absent from them the most part of the day; they did not discuss with them subjects of the highest moment; they did not share with them their thoughts and aspirations. The domestic sentiment was feeble: this comes out in various ways. One instance will suffice. Sophocles^[44] presents one of his characters as regretting the loss of a brother or sister much more than that of a wife. If the wife dies you can get another, but if a brother or sister dies, and the mother is dead, you can never get another brother or sister. The one loss is easily reparable, the other is irreparable.

This state of matters had a powerful effect on the wives. Many of them consoled themselves in their loneliness with copious draughts of unmixed wine. They often made assignations through their slaves, and were fond of stealing out of the house whenever they could find an opportunity. And faithlessness, though the punishment was so terrible, was not uncommon. In fact their human nature could not bear the strain laid upon it. No doubt there were many among them who were good and faithful wives, and we must not always judge Southern girls by our Northern constitutions of body and soul. I have known a Greek girl who attained to peerless beauty before she was fourteen. Every feature was perfect, her dark eyes twinkled at one time with the wildest merriment, at another gazed with a strange and weird-like melancholy as if into infinite darkness. She could speak fluently four

languages, and she had read largely in the literatures of each. And when I came upon her in her sad melancholy moods, she would tell me that she was puzzled with the mystery of life, and was wondering what it all meant. I have no doubt there were many such girls in old Athens, and many an Athenian wife could discuss the highest subjects with her husband. In fact, it is scarcely possible to conceive that such a marvellous crop of remarkable men, renowned in literature and art, could have arisen if all the Athenian mothers were ordinary housewives. But circumstances certainly were exceedingly unfavourable to them; and though there never was in the history of the world such a numerous race of great thinkers, poets, sculptors, painters, and architects, in one city at one time as in Athens, not one Athenian woman ever attained to the slightest distinction in any one department of literature, art, or science. "Great," says Pericles, in the famous funeral oration which Thucydides^[45] puts into his mouth, "is the glory of that woman who is least talked of among the men, either in the way of praise or blame." And this glory the Athenian women attained to perfection.

We pass from the citizen-women of Athens to the other class of free women—the strangers. A stranger had no rights or privileges in any of the ancient States. Any justice that he might obtain could be gained only by the friendly services of some citizen. If this was true of the man-stranger, it was also true of the woman-stranger. She was not entitled to the protection of the city-State. No laws were made for her benefit. She had to look after her own interests herself or get some man to do it for her by her own arts of persuasion. The one object that the State kept before it in regard to these stranger-women was to see to it that they did not in any way corrupt the purity of the citizen blood. The statesmen thought that great dangers might arise from their presence in a community. Political peril might threaten the very existence of the State if strangers, with strange traditions and foreign interests, were to take even the slightest part in the management of public affairs. And the gods might be fearfully insulted, and inflict dreadful vengeance, if any one of these stranger-women were to find her way into the secret recesses of ancestral worship and perform some of the sacred functions which only the citizen-women could perform. The Spartans accordingly did not permit any strangers, male or female, to reside in their city. These strangers might come to certain festivals for a few days, but the period of their stay was strictly limited.

Athens pursued a different policy. She was a commercial city. She was at the head, and ultimately ruler, of a larger confederacy of Greek States which sent their taxes to her. Besides, the city itself was full of attractions for the stranger, with its innumerable works of art, its brilliant dramatic exhibitions, its splendid religious processions, its gay festivals, its schools of philosophy, and its keen political life. Athens could not exclude strangers. It had, therefore, to take the most stringent precautions that this concourse of strangers should not corrupt the pure citizen blood. Accordingly, laws were enacted which prohibited any citizen-man from marrying a stranger-woman or any stranger-man from marrying a citizen-woman. If the stranger-man or woman ventured on such a heinous offence any one could inform against him or her. The culprit was seized, all his or her property was confiscated, and he or she was sold into slavery. The citizen-man or woman involved in such an offence had to suffer very severe penalties. The stranger-women, therefore, could not marry. Marriage was the only sin that they could commit politically in the eye of an Athenian statesman. They might do anything else that they liked.

Now it is not conceivable that in such circumstances a numerous class of women would betake themselves to perpetual virginity. If any one had propounded such a sentiment the Greek mind would have recoiled from it as unnatural, and plainly contrary to the will of the gods. And accordingly these women might form any other connexions with men, temporary or permanent, except marriage, and the Greek saw nothing in this but the ordinary outcome of human nature under the peculiar circumstances of the case. Besides, in Athens a special sphere lay open for them to fill. The citizen-women were confined to their houses, and did not dine in company with the men. But the men refused to limit their associations with women to the house. They wished to have women with them in their walks, in their banquets, in their military expeditions. The wives could not be with them then, but there was no constraint on the stranger-women. The Greek men did not care whether the offspring of stranger-women was pure or not. It mattered not either to the State or to religion. There was no reason for confining them. And accordingly they selected these stranger-women as their companions, and "Hetaira," or companion, was the name by which the whole class was designated. Thus arose a most unnatural division of functions among the women of those days. The citizen-women had to be mothers and housewives—nothing more; the stranger-women had to

discharge the duties of companions, but remain outside the pale of the privileged and marriageable class. These stranger-women applied their minds to their function, with various ideas of it, and various methods. Many adopted the lowest possible means of gaining the good-will of men; but many set about making themselves fit companions for the most intellectual and most elevated among men.

They were the only educated women in Athens. They studied all the arts, became acquainted with all new philosophical speculations, and interested themselves in politics. Women who thus cultivated their minds were sure to gain the esteem of the best men in Greece. Many of them also were women of high moral character, temperate, thoughtful, and earnest, and were either unattached or attached to one man, and to all intents and purposes married. Even if they had two or three attachments, but behaved in other respects with temperance and sobriety, such was the Greek feeling in regard to their peculiar position, that they did not bring down upon themselves any censure from even the sternest of Greek moralists. One of these women^[46] came to Athens when Socrates was living, and he had no scruple in conversing with her on her art, and discussing how she could best procure true friends. And, in fact, these were almost the only Greek women who exhibited what was best and noblest in woman's nature. One of these, Diotima of Mantinea,^[47] must have been a woman of splendid mind, for Socrates speaks of her as his teacher in love, when he gives utterance, in the 'Symposium,' to the grandest thoughts in regard to the true nature and essence of divine and eternal beauty.

Almost every one of the great men of Athens had such a companion, and these women seem to have sympathized with them in their high imaginations and profound meditations. Many of them were also courageously true to their lovers. When the versatile Alcibiades had to flee for his life, it was a "companion" that went with him,^[48] and, being present at his end, performed the funeral rites over him. But of all these women there is one that stands prominently forward as the most remarkable woman of antiquity, Aspasia of Miletus. We do not know what circumstance induced her to leave her native city Miletus. Plutarch^[49] suggests that she was inflamed by the desire to imitate the conduct of Thargelia, another Milesian, who gained a position of high political importance by using her persuasive arts on the Greeks whom she knew, to win them over to the

cause of the King of Persia. This may have been the case, but a good deal that is said about Aspasia must be received with considerable scepticism. Like Sappho, she became the subject of comedies, but, unlike Sappho, she was bitterly attacked by the comic poets and others during her lifetime. The later Greek writers were in the habit of setting down the jests of the comic writers as veritable history, and modern commentators and historians have not been entirely free from this practice. Whatever brought her to Athens, certain it is that she found her way there, and became acquainted with the great statesman Pericles. She made a complete conquest of him. He was at the time married, but there was incompatibility of temper between him and his wife. Pericles therefore made an agreement with his wife to have a divorce, and get her married to another, and so they separated to the satisfaction of both. He then took Aspasia as his companion, and there is no good reason for supposing that they were not entirely faithful to each other, and lived as husband and wife till death separated them. Of course husband and wife they could not be according to Athenian law, but Pericles treated her with all the respect and affection which were due to a wife. Plutarch tells us, as an extraordinary trait in the habits of a statesman who was remarkable for imperturbability and self-control, that he regularly kissed Aspasia when he went out and came in.

Her house became the resort of all the great men of Athens. Socrates was often there. Phidias and Anaxagoras were intimate acquaintances, and probably Sophocles and Euripides were in constant attendance. Indeed, never had any woman such a *salon* in the whole history of man. The greatest sculptor that ever lived, the grandest man of all antiquity, philosophers and poets, sculptors and painters, statesmen and historians, met each other and discussed congenial subjects in her rooms. And probably hence has arisen the tradition that she was the teacher of Socrates in philosophy and politics, and of Pericles in rhetoric.^[50] Her influence was such as to stimulate men to do their best, and they attributed to her all that was best in themselves. Aspasia seems especially to have thought earnestly on the duties and destiny of women. The cultivated men who thronged her assemblies had no hesitation in breaking through the conventionalities of Athenian society, and brought their wives to the parties of Aspasia, and she discussed with them the duties of wives. She thought that they should strive to be something more than mere mothers and housewives. She urged them to cultivate their minds, and be in all respects fit companions for their

husbands. Unfortunately we know very little more. Did she come to any definite conclusion as to the functions of woman? It is difficult to say. The hints are very obscure. But in all probability the conclusion to which she came was that neither man nor woman can adequately perform their mission in life separately, that a man can never do his best without the inspiration and support of a congenial woman, and that woman should seek her work in vigorous and sympathetic co-operation with some congenial man. Probably Plato has put into the mouth of Aristophanes the sentiments which the philosopher had heard often in the Socratic circles, which regarded Aspasia as their instructress in those matters. Referring to the myth that man was split in two, and that his two halves go in search of each other, he says,^[51] "For my part, I now affirm, in reference to all human beings, both men and women, that our race would become happy if we were able to carry out our love perfectly, and each one were to obtain his own special beloved, thus returning to his original nature. And if this is best, the best in present circumstances is to come as near as possible to this, and this occurs when we obtain the beloved that is by nature meet for us." There is no reason to suppose that Aspasia had any romantic notions in regard to love or the destiny of woman. She was, on the whole, practical, and thought that woman should find her satisfaction in work, not in dreams. She did not imagine that one could have only one love, and that if she did not get that, or lost it, she should repine and turn from life. She was in the world to be an active being, and, accordingly, when Pericles died, she formed a connexion with Lysicles, a sheep-seller, believing him to be the best citizen she could obtain, and made him, though not a bright man, the foremost politician in Athens for a time.^[52]

The entire activity of Aspasia, her speculations, her intercourse with men whose opinions were novel and daring, and who were believed, like Anaxagoras and Socrates, to be unsparing innovators; her own hold over the noblest married women in Athens, and her introduction of greater social liberty among them, were all calculated to outrage the conventional spirit. Almost all the prominent members of her coterie were assailed. The greatest sculptor of all ages was meanly and falsely accused of theft, and died in a prison. The outspoken Anaxagoras was charged with impiety, and had to flee. And at length Aspasia was brought to trial on the same accusation. It was easy to get up such an accusation against her. She might have visited

some temple, and taken part in some religious ceremony, impelled by truly pious motives; but such an act on the part of a stranger, whatever her motives might be, would have been deemed a great impiety by orthodox Athenians; or she may have induced some Athenian citizen-ladies to go with her and engage in some foreign worship. The Athenians permitted foreigners to observe their own religious rites in their city, without let or hindrance, but they had strong objections to genuine Athenian women becoming converts to any foreign worship. The Athenian ladies did not look on religious matters with the same eyes as the men. They yearned to have the benefit of the more enthusiastic worships which came from Asia Minor; and, accordingly, if Aspasia had been inclined to lead them that way, she would no doubt have had many eager followers. Or, finally, and most probably, she may have been supposed to share the opinions of the philosophers with whom she was on such intimate terms, and to have aided and abetted their opposition to the national creed. What were the grounds of the charge we do not know. All we know is that she was acquitted, but that she owed her acquittal to the earnest pleading of Pericles, who on this one occasion accompanied his entreaties with tears.

There can be no doubt that Aspasia exercised a powerful political influence during her residence in Athens. This fact is assured to us by the abuse which she received from the comic poets. They called her Hera, queen of the gods, wife of Olympian Zeus, as they named Pericles. They also called her Dejanira, wife of Hercules, and the new Omphale, whom Hercules slavishly served—all pointing at the power which she had over Pericles. Aristophanes, in his ‘Acharnians’ asserts that Pericles brought about the Peloponnesian war to take vengeance for an insult offered to Aspasia, and others affirmed that the Samian war was undertaken entirely to gratify her. These are absurd statements on the face of them, and were probably never meant to be anything else than jokes; but they render unquestionable the profound influence of Aspasia. It is probable that this influence was exercised in an effort to break down the barriers that kept the Greek city-States from each other, to create a strong Hellenic feeling, to make a compact Hellenic confederacy.^[53] But whatever were the aims of her politics, it may be safely asserted that no woman ever exercised influence by more legitimate means. It was her goodness, her noble aims, her clear insight, that gave her the power. There was probably no adventitious circumstance to aid her. It is not likely that she was beautiful.

I think Sappho was beautiful. The comic poets said that she was little,^[54] and had a dark complexion. Littleness was incompatible with beauty in the eye of a Greek, and a dark complexion would also be against her. But all that we can gather about Sappho's form leads to the conclusion that the comic poets traduced her in this as in other matters. Plato calls her "beautiful," an expression which most have taken to refer to her poetic genius; but this interpretation is at least doubtful. A vase of the fifth century B.C., found in Girgenti, gives us representations of Alcæus and Sappho, and on these Sappho is taller than Alcæus, and exceedingly beautiful. We have also a portrait of Sappho on the coins of the Mytilenæans; and here again the face is exquisite in feature, and suggests a tall woman. If it has any defect, it is that it is rather masculine. At first one might hesitate to believe that it is the face of a woman, but there can be no doubt as to its beauty. On the other hand, no ancient writer speaks of Aspasia as beautiful. She is called the good, the wise, the eloquent, but never the beautiful. We have one bust bearing her name certainly not beautiful. It represents a comfortable meditative woman, but I doubt very much whether it is genuine. And I am far more inclined to believe that we have a true portrait of Aspasia in a marble bust of which there are two copies, one in the Louvre and one in Berlin. The bust evidently belongs to the best times of Greek sculpture, and, as Bernoulli in the *Archæologische Zeitung*^[55] argues, can well be that of no other than Aspasia. The face is not altogether beautiful according to Greek ideas. It has an expression of earnest and deep thought; but what strikes one most of all is the perplexed and baffled look which the whole face presents—as of some life-long anguish, resulting from some contest which no mortal could wage successfully—not without a touch of exquisite sweetness, tenderness, and charity. Could it be the struggle in behalf of her own sex?

If ever there was a case which might have suggested to the Athenians the propriety of extending the sphere of marriageability, surely it was this case of Aspasia. But we cannot affirm that any one thought of this. The Athenian women, even the citizens, had no political standing. They were always minors, subject to their fathers, or to their husbands, or to some male. Aristotle always classes women and children together. But such was the force of character of these companions, or such their hold on powerful men, that not unfrequently their sons were recognized as citizens, and attained to

the full rights of citizenship. This could take place in three ways. There might exist between Athens and another Greek or foreign state a right of intermarriage (ἐπιγαμία), established by treaty. Strange to say, there is no clear instance of such a treaty in the history of the Athenians. There was no such treaty between Athens and Sparta, or Argos, or Corinth, or any other of the famous towns of Greece. The privilege was indeed conferred on the Plataeans, but it was when they became citizens of Athens, and were likely in a generation or two to become undistinguishable among the rest of the Athenian citizens. A passage in Lysias^[56] has been taken to intimate that the right of intermarriage was ceded to the Eubœans, but the passage occurs only in a fragment preserved in the writings of Dionysius of Halicarnassus.^[57] The text exhibits marks of corruption, and the entire history of the relations between Athens and Eubœa speaks strongly against the possibility of the establishment of such a treaty.^[58] Mention is also made of the proposal of such a treaty between Athenians and Thebans in the speech of Demosthenes on the Crown,^[59] but the decree is unquestionably spurious, as Grote has most conclusively shown and as is now universally acknowledged. It is now agreed that all the decrees in the speech on the Crown are forgeries.^[60] In that same speech a decree is quoted in which the Byzantines bestow on the Athenians the right of intermarriage, and it is likely that other States would confer the same privilege on the Athenians, but there is no proof that they ever returned the favour.

A second method of rendering the son of a foreign woman legitimate was by decree of the Athenian Assembly: and it was probably in this way that Pericles, the son of Aspasia, became an Athenian citizen with full rights. There was a third way, not acknowledged by law, by which many such children must have found their way into the ranks of citizens. The ordinary process by which a legitimate child came to the possession of his full rights was by his being presented by his father to the *phratRIA* and acknowledged by the *φράτερες* as a genuine member of their class or brotherhood. The father had to swear that the child was his legitimate child. In many cases fathers had no difficulty in swearing that children born to them of a beloved stranger were legitimate, and the *φράτερες* doubtless winked at the deception. This was specially the practice with the aristocratic party. In earlier times there had been no such strict law as afterwards prevailed in the democratic period. Indeed, the theory seems to have been

held that the blood of a mother could not affect the purity of the birth of a child, because there was really nothing of the mother in the child. She had nothing to do with the production of the child. She was merely its recipient and nurse. Æschylus has very strongly expressed this idea in the 'Eumenides,' and we have good reason for thinking that the opinion was held by large numbers of the aristocratic party to the end. It was Pericles that established the law that the child to be legitimate must be the son or daughter of an Athenian male citizen with full rights and an Athenian female citizen with full rights, legally betrothed to each other. It is when a distribution of corn takes place, or similar advantages are reaped, that the law is strenuously applied by the democratic party, and all the children of strangers disfranchised. But always when investigation is made many are found enjoying the privileges of citizens unchallenged, whose mothers were not genuine Athenian citizens. Themistocles was the son of a Thracian stranger, and so was the general Timotheus, according to one account. It was probably through the *φρατρία* that Sophocles got his favourite grandson through Theoris the Sicyonian, recognized as an Athenian citizen. [\[61\]](#) But though the women may have gained recognition for their children, no interest was taken in their own case, and mankind had to pay dearly for this exclusiveness.

Probably the condition of women in Athens had much to do with the decay of that city. The effort which Aspasia made to rouse the Athenian wives to higher mental exertions must have lost much of its effect after her death. The names of these wives are not to be found in history. But the influence of the Companions came more and more into play. Almost every famous man, after this date, has one Companion with whom he discusses the pursuits and soothes the evils of his life. Plato had Archeanassa, Aristotle Herpyllis, Epicurus Leontium, Isocrates Metaneira, Menander Glycera, and others in like manner. And some of them attained the highest positions. Princes can do as they like. In the earlier days of Athens, when tyrants ruled, princes frequently married foreigners. And now again princes married their Companions, and several of them thus sat on thrones. The beauty of some, especially of Phryne, the most beautiful woman that ever lived, attracted the eyes of all Greece; Apelles painted her, and Praxiteles made her the model for the Cnidian Aphrodite, the most lovely representation of woman that ever came from sculptor's chisel. Some were renowned for their musical ability, and a few could paint. They cultivated

all the graces of life; they dressed with exquisite taste; they took their food, as a comic poet remarks, with refinement, and not like the citizen-women, who crammed their cheeks, and tore away at the meat. And they were witty. They also occupied the attention of historians. One writer described one hundred and thirty-three of them. Their witty sayings were chronicled and turned into verse. Their exploits were celebrated, and their beauty and attractiveness were the theme of many an epigram. But it must not be forgotten that hundreds and thousands of these unprotected women were employed as tools of the basest passions; that, finding all true love but a prelude to bitter disappointment, they became rapacious, vindictive, hypocritical ministrants of love, seeking only, under the form of affection, to ruin men, and send them in misery to an early grave. Nothing could be more fearful than the pictures which the comic poets give of some of these women. But what else could have been expected in the circumstances? There was no reason in the nature of the women themselves why they should not have been virtuous, unselfish, noble beings; but destiny was hard towards them; they had to fight a battle with dreadful odds against them. They succumbed; but which of us could have resisted?

I have already remarked that no one claimed political rights for either the citizen-women or the strangers. I must make a slight exception, and I am not sure but the exception may be owing to the influence of Aspasia. We have seen that she was said to be the teacher of Socrates. Indeed, Socrates appeals to her as his teacher in the 'Memorabilia.'^[62] She was one of the great characters in the Socratic dialogues. She appeared several times in those of Æschines; and in the Menexenus, a Socratic dialogue, if not a Platonic, she prepares a model funeral oration. Is it not likely then that she influenced the opinions of Plato; and in the 'Republic' of Plato we have the strongest assertion of the equality of woman with man. Plato, and many others with him who lived after the ruin of Athens at Ægospotami, had become discontented with the Athenian form of government, and probably with the treatment of the women.

Accordingly, in his ideal State, which, however, still remained a city-State he took for his groundwork the Spartan system of education. The State was to be all in all. He went so far as to remove the monogamy which formed the barrier in the Spartan system to communistic principles, and he recommended the same mode of gymnastic exercises for both sexes. But he

went further. He affirmed that there was no essential difference between man and woman.

“‘And so,’ he says, ‘in the administration of a State neither a woman as a woman nor a man as a man has any special function, but the gifts of nature are equally diffused in both sexes; all the pursuits of men are the pursuits of women also, and in all of them woman is only a lesser man.’ ‘Very true.’ ‘Then are we to impose all our enactments on men and none of them on women?’ ‘That will never do.’ ‘One woman has a gift of healing, another not; one is a musician and another is not?’ ‘Very true.’ ‘And one woman has a turn for gymnastic and military exercises, while another is unwarlike and hates gymnastics?’ ‘Beyond question.’ ‘And one woman is a philosopher, and another is an enemy of philosophy; one has spirit and another is without spirit?’ ‘That is also true.’”^[63]

From these premises he draws the conclusion that the women endowed with the higher gifts should have the same education as the gifted men, and that they should have the same duties, even to fighting in defence of their country, only that in the distribution of labour the lightest tasks should be assigned to the women, as being naturally weaker in body. Some think that Plato’s community of wives was ridiculed the same year that it was propounded, by Aristophanes, in his comedy of the ‘Ecclesiazusæ or Parliament of Women’; but it is far more probable that the comedy was exhibited before Plato’s ‘Republic’ was written.^[64] In fact there is a likelihood that woman’s position was a subject much agitated. Clemens Alexandrinus quotes a line from the ‘Protesilaus’ of Euripides, in which community of women seems to be indicated.^[65] Xenophon certainly puts into the mouth of Socrates a decided assertion of woman’s equality with man. “Woman’s nature,” he says,^[66] “happens to be in no respect inferior to man’s, but she needs insight and strength.” And it is likely that many others held the same opinion, and proposed methods for elevating the position of women.

It was some communistic theory of the day that Aristophanes attacked, but he was not bitter in his ridicule. It has always to be remembered that it was the business of the Dionysiac priests, as we may call the comic poets, to show the laughable side of even the most solemn things, and often little harm was meant by these merry outbursts. Aristophanes, moreover, had changed greatly from what he was in the time when, in the ‘Acharnians,’ he had bitterly attacked Aspasia. He had become gentle to strangers. He did not dislike the Spartans and their ways. Though he said many harsh things against women, he also said many good things for them. It was through

them that, in the 'Lysistrata,' he urged on the Athenians the duty of reconciliation and peace. And now, in the 'Ecclesiazusæ,' he gives a kindly picture of what the women would do if they had the reins of power in their hands. This was the only form of government that the Athenians had not tried, and as all the rest had notoriously failed, there could be no great harm in entrusting the women with the administration of affairs. The gentle spirit of women might prevail. And surely under such a government men would be happy. The women would see to it that there would be no poor in the city, theft and slander would cease, and all would be content. Plato's speculations and Aristophanes's fun, however, were of no use. The city-State was too small an organization for the progress of man. It was destined to give way before a more humanizing government. And so the petty States had to yield to the Empire of Alexander, and with the change began a great change in the position of women. But this change had to be carried out under another and greater rule. The Romans swept over Greece and established a firmer and more comprehensive empire than that of Alexander.

BOOK II.

THE POSITION AND INFLUENCE OF WOMEN IN ANCIENT ROME.

CHAPTER I.

THE GOOD SIDE.

In early Rome we find the same state of matters as we have found in Greece. The city is the unit. This city-State consists of citizens who have all equal rights and privileges. All outside of the city have at first no rights within its territories, and if they come within the city, they have no claim to justice or consideration except what they can obtain through a citizen. In all ancient cities there was always a large number of slaves, men or women who either themselves or whose ancestors had been taken captive in war or stolen from their homes. Thus there were three classes of the population—citizens with full rights and privileges, aliens with no rights of their own, and slaves who were regarded as mere property. But the development of the city of Rome follows a different course from that of the Greek cities. The Romans gradually extended the privileges of citizenship till the unit was no longer a city, but a nation, and finally it became the civilized world. Aliens make no prominent figure in Rome, as they did in Athens, unless we consider the plebeians as aliens, and in the process of time the plebeians became citizens, and every civil distinction between them and the original citizens vanished. Besides, the Censor had the right to put the name of an alien on the list of citizens, and no doubt many foreigners became Roman citizens in this way. The slaves also had a more advantageous position in Rome. The road to citizenship was at an early period laid open for them. Their masters manumitted many of them, and they became freedmen. These freedmen came to be numerous and influential, and the Censor Appius Claudius in 312 B.C. ^[67] admitted them all to the full rights of citizenship. They were not, indeed, allowed to enjoy the honours of the State, but this same Appius Claudius granted to the sons of freedmen admission into the Senate, and his right-hand man, Cn. Flavius, curule ædile of the year 304,

was the son of a freedman. Thus, in course of time, the slave became the freedman, the freedman's son became an *ingenuus*, or freeborn citizen, with all the rights and privileges of Roman citizenship.

In Roman society there were these same three classes of women—the full citizen, the alien, and the slave. The Roman citizen could marry only a woman who was the daughter of a Roman citizen. Marriage with any other was impossible. The very object of marriage was to produce a race of citizens, and, therefore, both father and mother must belong to the class of citizens. It was for this reason that such care was taken of the purity of Roman women, and such a broad distinction was drawn between the conduct of the man and the woman. There must be no suspicion of spuriousness in regard to the Roman citizen. But the offspring of the man with a foreign woman or a slave did not become a citizen, and, therefore, the State was perfectly indifferent as to what relations might exist between a male citizen and alien women or slaves, and society was equally indifferent.

We have already seen what was the result of this state of matters in Greece. In Rome the result was different. The alien women attained to less prominence even than the alien men, and in this account of the position of women in Roman society we may pass them without notice. A few foreign women appear in the early history of Rome, and play a prominent part; but the tales are borrowed from Greek stories of the times of the Tyrants, and do not fit in with strictly Roman ideas. During the best period of Roman history alien women are never mentioned, except in plays borrowed from the Greek, and it is only when we come to the later days of the Republic that we begin again to hear the names of a few. But their presence is owing to the prevalence of Greek ideas and Greek customs, and even the few that are mentioned keep in the background.

The female slaves also do not demand our attention. The female slave was treated simply as a cow or sheep. If she produced healthy offspring, it was so much gain to her master, and he did not care who was the father. Of course she could not marry, and all her children were the property of her owner. Sometimes a male slave and a female slave were allowed or compelled to live together, and there was something like a marriage. But they had no right to their own children, and no obligations towards them except such as were imposed upon them by their proprietors. At the same time, as their fertility was a source of revenue to their masters, they were

often treated very kindly. In olden times, the female slave who had three children was allowed a dispensation from hard work, and if she had more she sometimes obtained her freedom. The Romans had a great liking for the slaves who were born within their households, and often brought them up along with the younger members of the family, with whom they thus became intimate. This close connexion tended to lessen the sense of absolute proprietorship in many cases, and the slave woman was treated with consideration. It was no doubt through such influences that the lot of the slave woman was ameliorated, and when we come to the times of the Empire, we see laws made to protect them, and freedom frequently conferred upon them. ^[68]

It is, then, the matrons alone who are conspicuous in Roman history. Every citizen girl married and became a matron, and it is that class exclusively which we shall discuss.

Now, the first remark that has to be made is that Rome gave the same expansion to marriage as to citizenship, and thereby produced a revolution in the position of woman: a revolution, however, gradual in its extension and gradual in its effects, but of most momentous consequence to the world, for it broke down completely the old constitution of city-States, by which their privileges were conferred on men as members of families, and established a new and world-wide constitution by which men obtained their privileges as men. In the earliest stages it is possible that the right of intermarriage may have existed between Roman citizens and citizens of various towns of Latium. Certainly the legends make Roman princes marry into Latin families. But on the establishment of the Republic the right of intermarriage existed only between patricians of the city. A patrician man could not marry a plebeian woman, nor a plebeian man a patrician woman. The children of either marriage could not be patricians; they could only be plebeians, and were not under the control of the father. But after various struggles this wall of separation between patrician and plebeian was broken down, and the Lex Canuleia, in 442 B.C., conferred the *conubium*, or right of intermarriage, on the plebeians. Livy puts speeches into the mouths of the proposers and opposers of this measure. They have no claim to be historical; but they reveal the fact that Livy thought the objections to the extension of the *conubium* were as much religious as civil. ^[69]

There was a further extension of the *conubium* when Rome, in the middle of the fourth century before Christ, admitted to its citizenship some of the Italian, especially Latin, towns which it had subdued. The bestowal of the citizenship on the *libertini*, or freedmen, still further extended the *conubium*. In 89 B.C. the Italians received the *conubium* by the Lex Julia and Plautia. During the later days of the Republic, and in the time of the Empire, the citizenship was conferred on men in various parts of the world, and especially on various towns in the provinces. Soldiers also, who had served for a certain time, and had allied themselves to foreign women, had these alliances converted into legitimate marriages. In fact, the right of intermarriage had become of much less value. In early days the privileges of patricians were great, and it was worth while to take care that these should be secured only to genuine patrician offspring, especially as only genuine patrician offspring could perform due sacrifice and worship to the gods of the family and the State. Even in the days from the Punic wars to the end of the Republic, Roman citizenship was at once valuable and honourable; for the Roman citizen paid no taxes, and in an indirect way might share in the plunder of the world, and he enjoyed peculiar advantages in the eye of the law. But these advantages vanished with the advance of the Empire, which reduced all to a dead level of subjection, and at length, in 212 A.D., one of the most hated of tyrants, Caracalla, conferred the citizenship on all the inhabitants of the Roman Empire, and with it the *conubium*. After this, any man might marry any woman, and the factitious distinctions which had ruled the ancient world vanished for ever. The world owes no gratitude to Caracalla for this grand consummation; for his only motive in conferring the citizenship on all was that all might be compelled to pay taxes, and that aliens might not escape, as some of them had hitherto done.

The outline of the history of what we may call the external emancipation of woman now given is, we have no doubt, substantially correct and based on trustworthy sources; but when we come to deal with the moral progress of women, and their position in the midst of Roman society, great difficulties meet us, which attach to all early Roman history.

Rome, according to the usual account, was founded in 753 B.C. There is no trace of any regular literature between that date and 390 B.C., when the city was burned to the ground. The Romans, no doubt, knew the art of

writing at an early period; but any records kept by them were of the most meagre kind, and nearly all of them must have perished in the conflagration of 390. One hundred and seventy years have to pass before regular histories of Rome began to be written, and nearly all the literature and monuments during these 170 years have disappeared. We are thus without authentic documents for the minute history of the Roman people for 500 years of their existence. During this period the position of women underwent important changes; but, owing to this absence of documents, we are unable to explain these changes. We have, however, a very definite tradition to start with. This tradition presents itself everywhere in the works of Roman poets and historians, and pervades the ideas even of the late jurists, and we may feel confident that it is substantially correct. This tradition is to the effect that the position of the Roman matron was quite different from that of the Greek matron in the time of Pericles. The Roman matron was mistress in her own household. As the husband took charge of all external transactions, so the wife was supreme in household arrangements. The marriage was a community in all affairs, and within the home the utmost diligence, reverence, and harmony prevailed. The wife sat in the atrium, or principal hall, dispensing the wool to the maidservants, and herself making the garments of her husband and family. She did not cook or do what was regarded as menial work. She dined with her husband, sitting while he reclined, when they were alone. She received the friends of her husband, and dined with them also. She walked in and out with great freedom, and she nursed and brought up her own children.

This is a bright and beautiful picture, and some of the traits remained true to the end of Roman history. Many stories are told of the affection of husband for wife, wife for husband, children for parents, and parents for children. Thus we are informed of the father of the Gracchi, that he caught a couple of snakes in his bed, and, on consulting the haruspices, or diviners, he was told that he must not kill or let go both: that if he killed the male, he himself (Tiberius) would die; if he killed the female, his wife Cornelia would die. Tiberius did not hesitate in his choice. He loved Cornelia. He was elderly, she was young. He therefore killed the male snake, and a short time after this occurrence he died. The story is no doubt true, as the authority for it was his famous son Caius.^[70]

Nothing could be more striking than the affection of Cicero for his daughter. He writes to her in the most endearing terms, cared for her every want, and was inconsolable for her loss when death carried her away. There are numerous instances in which wives resolved to share the ill-fortune of their husbands to endure calamity along with them, and to die rather than survive them.

This ideal remained with Roman men till the end of the Empire. It is the standard by which Juvenal metes out his criticism on the women of his own day, and many of the ill-natured judgments uttered against the sex are based on the old-fashioned conception of a Roman matron's duties.

CHAPTER II.

THE OTHER SIDE.

But there is quite another side to this picture. In the early stages of Roman history there is reason to believe that the Roman wife was completely under the control of her husband. The Roman idea of a family made the father a despot, with power of life and death over his children, who could do nothing without his consent. This was the case in regard to male children, even after they had reached a considerable age. Women, according to the opinion of the early Romans, were always children. They required protection and guidance during their whole life, and could never be freed from despotic control. Accordingly, when a Roman girl married, she had to choose whether she would remain under the control of her father, or pass into the control or—as it was called—into the hands of her husband. It is likely that in the early ages of the city she always passed from the power of her father into the hands of her husband, and the position she occupied was that of daughter to her husband. She thus became entirely subject to him, and was at his mercy. Roman history supplies many instances of the despotism which husbands exercised over their wives. The slightest indiscretion was sometimes punished by death, while men might do what they liked without let or hindrance. “If you were to catch your wife,” was the law laid down by Cato the Censor, “in an act of infidelity, you would kill her with impunity without a trial; but if she were to catch you, she would not venture to touch you with her finger, and indeed she has no right.” Wives were prohibited from tasting wine at the risk of the severest penalties. The conduct of Egnatius was praised who, surprising his wife in the act of sipping the forbidden liquid, beat her to death.^[71] The same sternness appears in the reasons which induced some of the Romans to dismiss their wives. Sulpicius Gallus dismissed his because she appeared in the streets without a veil; Antistius Vetus dismissed his because he saw her speaking secretly to a freedwoman in public; and P. Sempronius Sophus sent his away because she had ventured to go to the public games without informing him of her movements.^[72]

I think that we may see that the Roman matrons did not like this arbitrary treatment, and that they protested against the assumption that they were

beings quite different from their husbands, and entitled to no rights and privileges as against them. And the interesting feature in the history of the Roman matron is the gradual emancipation which she effected for herself from these fetters of Roman tradition and usage. Unfortunately, we are not able, as I have explained, to trace fully the processes of this emancipation, but we can indicate some influences which worked in this direction.

First, the Roman records show that it was not safe to trifle with the feelings of Roman women. They were, like Roman men, possessed of great decision of character, and, when provoked, could do the most daring deeds, reckless of the consequences. If they were treated kindly, and on equal terms, they were the best of wives; and I am convinced that their goodness and firmness were the most effectual causes of the freedom which they attained. But if husbands put into force their traditional power, and claimed supreme domination over them, they were exactly the women to resist. And the history of Rome throws a lurid light on this aspect of their character; for occasionally they took stern and wild vengeance, when husbands went too far in their despotic actions. I will adduce one or two instances of this.

In the year 331 B.C. many of the Roman citizens, and especially many of the Roman nobles, were attacked by an unknown disease, which showed the same symptoms in all, and nearly all perished. The cause was wrapped in obscurity, but at length a maid-servant went to a curule ædile, and said that she could explain the origin of the disease, but would not do so unless security were given her that she would suffer no harm in consequence. The curule ædile brought the matter before the consuls, the consuls consulted the Senate, and a resolution was passed guaranteeing safety to the maid-servant. Whereupon she declared that the deaths arose from poison; that the matrons were in the habit of compounding drugs, and she could take the officials to a house in which they would come upon the matrons while engaged in the operation. The officials accepted her offer, followed her, and found, as she said, the matrons compounding drugs. About twenty of them were conveyed to the Forum, and were subjected to an examination on their doings. Two of them, of noble family, and with patrician names, Cornelia and Sergia, affirmed that the drugs were perfectly wholesome. That could be easily tested, and the two matrons were requested to prove their truthfulness by drinking the mixture. The two matrons begged for a few moments of private talk with the rest of their associates, but within sight of

the people. Permission was granted, a few words were exchanged, and then all the twenty matrons came back, boldly quaffed the liquor, and died in consequence. Then a search was made for all the matrons who had been engaged in this conspiracy, and 170 of them were found guilty. The men explained the occurrence by asserting that the women were infatuated; but probably they knew well why recourse was had to such violent measures, and that Roman matrons were not likely to be subjected to tyranny without making an effort in one way or another to put an end to it.^[73]

An occurrence of a similar nature took place in 180 B.C. In this case there can scarcely be a doubt that a real plague raged, for it lasted for three years, and decimated Italy. But the women were enraged with the men for the harsh measures which had been taken against them in connexion with the Bacchanalian mysteries, and they seem to have regarded the plague as affording a favourable opportunity for the use of poison. In 180 B.C. the prætor, the consul, and many other illustrious men died.^[74] A judge was appointed to inquire into these deaths, and especially to examine if poison had been employed. The historians do not narrate the results of this investigation, but we are told that the wife of the consul was tried and condemned to death. Thirty-six years after this, two men of consular rank were poisoned by their wives. In subsequent times the use of poison became frequent; and particularly in the early days of the Empire, the matrons about the Court were accused of having constant recourse to it to get out of the way men whom they did not like, husbands, and sons, and others connected with them, as well as strangers. And one writer remarks that wherever there were irregularities there were poisonings. Some historians have rejected these tales of poisoning as the inventions of credulous annalists, I think without good reason. But whether the stories are true or false, the Romans believed them, and they embody the Roman belief in regard to what women could do. And it seems to me that we must regard them as indicating that the Roman matrons felt sometimes that they were badly treated, that they ought not to endure the bad treatment, and that they ought to take the only means that they possessed of expressing their feelings and wreaking their vengeance by employing poison.

CHAPTER III.

RELIGION.

In the history of civilization, religion often acts as a liberator of women. Sometimes, indeed, it acts in an opposite direction, when, by false conceptions of humanity, it restricts the duties and privileges of women. But, on the other hand, religion generally excites the mind to a wild state of enthusiasm, and in this enthusiasm the ideas and prescriptions of conventionality are set aside, the pleasures of liberty are felt, and by degrees a permanent gain in freedom is established. We find this to be the case in Greece, where almost the only occasions on which the women came in contact with the outer world were supplied by the observance of religious festivals. The Roman religion was in many respects unlike the Greek. It was not brightened by genial fancies, it afforded no scope for emotional outpourings, its prayers were confined to fixed formulas, and its ritual was strictly prescribed. It was, like the Romans themselves, solemn and sedate. The Roman religion, therefore, did not contain those elements which could contribute to enlarge the freedom of women. There were, indeed, various festivals which were celebrated by matrons alone, into which it was death for a male to intrude, and these afforded women opportunity to consult with each other. But it may be doubted whether the Roman women ever used these meetings for any other than purely religious purposes, and whether these gatherings were ever characterized by fervour and frenzy. It was in the introduction of foreign gods and worships that the craving of the Roman women for religious excitement was gratified, and in the celebration of these worships we see that the women were sometimes as daring as in their poisonings. They naturally took to the foreign gods, whose worship was accompanied by great elevation of the spirit and outward demonstrations. Thus we are told that the worship of the Idæan Mother, the goddess whose priests danced wildly, cutting their bodies until the blood streamed down, was introduced in 204 B.C., and that on that occasion the highest matrons of the city went forth to receive the goddess, and, amidst prayers and incense, and in the sight of the whole population, carried the goddess to her temple. [75] In this case there was no irregularity in the introduction of the new worship, for the act had been ordered by the Senate at the instigation of the Decemviral College, the keepers of the Sibylline books. [76]

But the women did not always wait for the sanction of the State, but acted on their own impulse. The most notable instance of this nature was the introduction of the Bacchanalia, or worship of Bacchus, in 186 B.C. The historian Livy gives us details of this event, and his account is confirmed by a contemporary tablet of brass, containing a decree, or rather a letter of the Senate, found in Southern Italy in 1640. The narrative throws great light on the effects produced by the introduction of a new worship, and therefore I will relate the circumstances with some minuteness. A Greek of low birth came to Etruria, offering to initiate the people in the mysteries of Bacchus. The rites of that god were often celebrated in Greece by night, and were accompanied by feast, dance, and song. This was to some extent a new feature of worship to the Italians, and the people of Etruria were seized with a fury for it as by a plague. It spread from Etruria to Rome. At first the worship was carried on in secret, but at length the matter reached the ears of the consul. A woman who had been initiated, testified that at first women alone were admitted to the celebration of the rites, that they met in the day time thrice in the year on fixed days, and that matrons were elected priestesses.^[77]

At length, however, a priestess, acting as if by the advice of the god, initiated her sons, changed the festival from the day time to night, and appointed the celebrations to take place five times every month. At the rites the men leapt and tossed their arms about in the most frantic manner, amidst the clashing of cymbals and the beating of drums, and they uttered prophecies; while the women, dressed as the worshippers of Bacchus, howled and yelled, rushed with dishevelled hair and blazing torches down to the river Tiber, plunged their torches into the river, drew them forth still blazing as if by miracle, and returned, still howling and yelling, to their celebrations. The woman also declared that the frenzy had taken hold of a large portion of the population, including many of the nobility; but that for some reason or other, very recently a resolution had been passed that none should be initiated who were above twenty years of age. The consuls, on receiving this information from the woman, brought the matter before the Senate, an inquiry was instituted, and it was discovered that above 7,000 men and women had engaged in these secret celebrations. The feature in this case which interests us, and at that time attracted the notice of the Senate, was that persons of both sexes and various ages met together at night and engaged in orgies, in which wine was freely drunk. The Roman

citizen was forbidden to practise any worship not sanctioned by the State; but here the women defied the law of their country and outraged the old Roman notions of propriety. Stories soon got abroad, as they always do in such matters, that it was not merely for the worship of the god that these nocturnal assemblies were held; that, in fact, these meetings were scenes of revelry, and that in them poisonings and fabrications of wills were concocted. The worship thus became, according to these reports, an immoral conspiracy, and all who had taken any part in it were searched out and punished. Many were thrown into prison: some were put to death. The women were handed over to their relatives to be punished in private, and if no relatives could be found, then they were punished in public.

It may be doubted whether the immoral character of this religious outburst was not grossly exaggerated, and whether the scandals attributed to it did not arise simply from the fact that it was the work of women. "First of all," said the Consul, in his public harangue on the subject, "a great portion of the initiated were women, and that was the source of this evil." Such ebullitions of women were regarded by the stern old-fashioned Romans as in the highest degree discreditable, and they must be repressed even by the severest measures.

For a time the religious mania seems to have subsided; but in the later days of the Republic and the commencement of the Empire, the Roman matrons displayed the same rage for foreign worships. The temples of the Egyptian goddess Isis were crowded, and her priests were caressed and revered. Many women became adherents of the Jewish faith, and Eastern divinities had numerous devotees.

In these cases the women claimed for themselves the right to worship whatever god pleased them. Often, in carrying out this worship, they had to break through the rules of conventionality, and they thus asserted for themselves a freedom which nothing but a religious impulse would have led many of the more sensitive to claim.

CHAPTER IV.

LEGISLATION AND MARRIAGE LAWS.

The women of Rome were also roused to self-assertion by the interference of the laws with their special concerns, and they did not hesitate to step out of their usual routine to oppose such laws. Thus, for instance: a law had been proposed in 215 B.C. by Oppius, a tribune of the people, to the effect that no woman should be allowed to possess more than a half ounce of gold, to wear a parti-coloured garment, to ride in a chariot within the city of Rome or a town occupied by Roman citizens, or within a mile of these places, except for religious purposes. The exact object which this law had in view is not made clear to us. Long before this, at the time of the Gallic invasion 392, the liberty to ride in a chariot had been conferred on Roman matrons as a special privilege, because, when the Roman State had not sufficient money to pay the ransom demanded by the Gauls, the Roman matrons came forward and presented their gold and other ornaments to the treasury. It is possible that Oppius may have thought that the Roman matrons in 215 B.C. were too slow in imitating the generosity of their ancestors, and the law may thus have implied an insulting rebuke. But there cannot be a doubt that the law was specially designed to put a curb on the extravagant expenditure of the women at a time when all the resources of the community were required to meet the dreadful emergencies which had befallen the State. It was, therefore, one of those sumptuary laws which make their appearance in early stages of government, examples of which are to be met with in Scottish legislation; as, for instance, when the Estates in 1567 passed a law that “no woman should adorn herself with dress above what was appropriate to her rank.” But whatever may have been the object, the law became peculiarly galling to the matrons. They might submit patiently while distress prevailed, but the terrible Punic war had now ended gloriously, success crowned all the military expeditions of the Romans, wealth flowed in from the East, the men had taken advantage of the prosperity, and it seemed singularly hard that women alone should not share in the indulgences which riches had carried in their train. [\[78\]](#)

Probably many complaints had been uttered in private, but the full current of feeling did not come to light until two tribunes of the people

proposed the abrogation of the Oppian law. Then the subject seized the public mind. It became the topic of conversation at the baths and the barbers' shops, at the public and the private gatherings of men. Some were for the abrogation, some were against it, and intense bitterness prevailed on both sides. It was not likely that the matrons would remain silent on such an occasion. They, no doubt, plied their husbands, sons, and other relatives with every possible argument, by every form of entreaty. But their ardour could not be confined within the limits of the house. They left house-keeping to take care of itself, and issued forth into the streets and public places to waylay every man that had a vote. They did not wait till they became acquainted with the men. They assailed strangers as well as friends. They also held meetings among themselves and had secret deliberations. Each day their numbers swelled. Roman citizenesses from distant towns and villages flocked in to help their sisters of the city. No stone was left unturned. They went to the nobles, they interviewed prætors and consuls. At length the day drew near when the vote was to be taken in the public assembly. A great meeting was held on the previous evening. One of the consuls, the obstinate red-haired Cato, delivered a savage speech against the matrons. Others joined in his resistance. The tribunes who had proposed the abrogation spoke in their favour, and they were well supported. But the matrons must have spent that night in great anxiety. They knew that two of the tribunes were ready to oppose the abrogation, and that their veto was sufficient to prevent the abrogation passing. And therefore their resistance must be overcome. The women were determined. They rose early; they gathered in vast crowds; they surrounded the houses of the obstinate tribunes; they coaxed, they threatened, they employed every form of womanly persuasiveness on these two tribunes, and at last the tribunes gave way. The abrogation of the law was formally put to the meeting; there was no opposition, and the women gained their point. One historian (Zonaras) asserts that, on hearing the news, they burst into the assembly, donned their ornaments once more, and then marched out, dancing joyously from the legislative buildings into the streets.

The historian Livy, to whom we owe the most vivid account of this outbreak of the matrons, furnishes us with a report of the public meeting held on the day before the vote was taken. Especially he supplies us with the speeches of the principal opponent, Cato the Consul, and of L. Valerius the Tribune, who proposed the abrogation. We can have no hesitation in

believing that these speeches are the productions of the historian himself. Cato, we may be sure, did speak on the occasion, and the speech which Livy puts in his mouth is in harmony with his character. The stern lover of old ways had a detestation of woman's rights and a contempt for woman herself, mixed, doubtless, with a sneaking dread of her power. One of his sayings handed down to us is: "Had there been no women in the world, the gods would still have been dwelling with us."^[79] But another is also attributed to him—a modification of a saying of Themistocles: "All men rule their wives, we rule all men, and we are ruled by our wives." The speech in Livy shows little of his ferocity. It contains the arguments that would have been used in the time of Livy, and for his time it is valuable:—

"If men," he says, "had retained their rights and dignity within the family, the women would never have broken out publicly in this manner. If women had only a proper sense of shame, they would know that it was not becoming in them to take any interest in the passing or annulling of laws. But now we allow them to take part in politics. If they succeed, who knows where they will end? As soon as they begin to be equal with us, they will have the advantage over us. And for what object are they now agitating? Merely to satisfy their inordinate craving for luxury and show, which will become only the more intense the more it is gratified."

The reply of L. Valerius was, like many of the replies of men in behalf of women, I am afraid, far from satisfactory to them:—

"Cato is wrong in asserting that women make a public appearance on this occasion for the first time. The wives of the first Romans stepped publicly between fathers-in-law and sons-in-law. Roman matrons went on deputation to Coriolanus, they interfered at the Gallic invasion, they performed public services in religious matters. Then the prosperity following the Punic Wars has brought advantages to all classes of the community; why should the matrons alone be excepted from this good fortune? And why should men grudge them their ornaments and dress? Women cannot hold public offices or priesthoods, or gain triumphs; they have no public occupations. What, then, can they do but devote their time to adornment and dress? Surely, then, men ought to let them have their own way in these matters."

On another occasion the women of Rome gathered in numbers, and made a public appeal. The circumstances were these. The triumvirs, Octavianus, Antony and Lepidus, had proscribed a large number of citizens, and they confiscated and sold their estates in order to meet the expenses of a war then going on. But land was a drug in the market, and, besides, people were unwilling to purchase property exposed to sale in consequence of violent acts. The sum, therefore, obtained from the sales fell far short of the amount required, and the triumvirs had to look to other sources of revenue. They accordingly passed a decree that 1,400 of the richest women in the

city should lay before them an exact statement of their means, with severe penalties against concealment or undervaluation; and they claimed the power to employ any portion of the wealth thus reported to them for paying the expenses of the war. The women were thrown into the utmost perplexity and distress, but they could find no man daring enough to plead their cause before the triumvirs. Left to their own resources, they went first of all to the sister of Octavianus and the mother and wife of Antony. The sister of Octavianus and the mother of Antony gave them a kindly reception, but Fulvia, the wife of Antony, drove them from her door. Thus insulted, they turned to the tribunal of the triumvirs. Hortensia, the daughter of the famous orator Hortensius, spoke in their name. She delivered a powerful speech, which is highly praised by the great Latin critic Quintilian, and she succeeded in getting the demands of the triumvirs reduced to a comparatively small sum. ^[80]

These public appearances of women were, of course, only occasional; but they were frequent enough to show that women had interests of their own, and had resolution enough to assert them when such a course was necessary.

Perhaps the cause which altered the position of women most of all, next to their own goodness, was the change in the circumstances of the Romans, brought about by the extension of their empire and the increase of wealth. I have already said that it was held as a maxim that woman can do nothing of herself; that she must be under the guardianship of her father, her husband, or some tutor; and that in the earliest period the girl, on being married, passed from the power of her father into the hands of the husband. It has been inferred by some, from one form of the Roman marriage rite, that there was a time when the Roman bought his wife from her father or guardian, and thus acquired full power over her. He did not treat her as a slave. His own respect for Roman citizenship and the mother of Roman citizens would prevent this; but his power over his slaves could scarcely be greater than that over the wife for whom he had paid. Then there was a time when religion required that the wife should pass into the hands of her husband. Every family in Rome had special gods of its own, who were supposed to protect it, and these gods could be worshipped properly only when the sacrifices were offered by members of the family. It was profanation for others to attempt this service. So if the wife had not been

taken into the family of her husband, she could not have shared in his worship, she would not be present at the family festivals, and she would be bound to go to the worship of the gods and celebrate the festivals of her father, to whose family she would still belong. Thus pecuniary and religious considerations would create a transference of the wife into the family of the husband. But when we come to historical times we find both of these influences dying out or dead. The pecuniary influence was gone. The wife was no longer bought. And the religious influence existed only in a few families whose members might attain to the highest priesthoods of the State. In fact, the Romans had given up, to a large extent, their special family gods, and therefore transference of the wife into the family of the husband became unnecessary.

What, then, took the place of this transference into the family? To answer that we must look into the condition of the Romans in respect of wealth. At the earliest stage the Romans lived in humble cottages. The consul might command armies, but he dwelt within a house of few chambers, and might often be seen ploughing his own land. The household lived on the produce of its own farm. In these circumstances the wife could be nothing else than an economic housekeeper, working with her hands and entirely dependent on her husband for her maintenance. Probably her father would not wish to have her sent back to him, as he might have enough to do for the rest of his family, and he would be very unwilling to pay back the sum which he had received for her, and so the wife had to make up her mind to submit. But a change in her position took place when wealth began to flow into Rome. Then the men obtained ample means, and money would be to them no consideration. The fathers scorned in such circumstances to sell their daughters; but, on the contrary, came to feel that it was their duty to provide for them for life. The daughters would thus no longer wish to be in the power of their husbands, but in that of their fathers.

A further development took place when the women themselves came to possess wealth. Fathers left large sums to their daughters, husbands left large sums to their widows, and thus arose a class of rich women. This seemed such an anomaly to some of the Romans that they tried to check it. A law^[81] was passed (the Lex Voconia) in 169 B.C., by which it was illegal to make a woman heir to a fortune above 100,000 asses, and she was never to get more than the heir appointed in the will. But the necessity of the law

might have proved its futility. Throughout Roman history a marked feature is the strong affection of fathers for their daughters and of husbands for their wives, and no law could effectively restrain them from contriving to give the most part of their goods to those whom they loved. Accordingly, the fathers and husbands invented devices by which all such laws might be evaded. A father, for instance, named as his heir some man who had solemnly promised that he would hand over all the fortune to the daughter. The heir thus became a mere trustee, and the Roman law at length sanctioned such trusteeships. In this manner, although the woman was nominally under the power of a guardian, she had yet full liberty to do with her property as she liked, and she gained the importance and influence which belong to wealth. These changes produced a revolution in the nature of marriage. Marriage now became a contract. It was the invariable custom for the father to give a dowry with his daughter. The interest of this dowry was sufficient to support her, so that she could be no burden on her husband. In fact, the husband was not liable for her support except remotely; the duty fell on the father first, and then on various kinsmen, coming only at a late stage on the husband. The husband had the right to the use of the dowry while the marriage continued, but if it was dissolved, without blame on the wife's part, he had to return the entire dowry. Of course the wife might have money of her own besides the dowry. That remained entirely in her own power, or the power of her father or guardian; the husband could not meddle with it. He might persuade her to bestow some of it on him, but he had no legal control over it.

Marriage was thus a contract which came into full force when the woman was led to the house of the man. It was a contract which must be made in the presence of witnesses, and it could be dissolved, but again, the dissolution of it must be carried out legally—*i.e.*, in the presence of competent witnesses. Religious ceremonies accompanied the marriage, but the religious ceremonies had nothing to do with the contract, and therefore were not essential to the marriage. It was necessary in this contract that husband and wife should give their consent, and when they were under control, that their parents or guardians also should consent. Generally each family had a family council, consisting of friends and relatives, and this council would be summoned to decide on the terms of the contract, and it was deemed disreputable in a man to dissolve his marriage without invoking this council. Husband or wife might dissolve the marriage for any

reason, but precipitation was guarded against by the necessity of legal forms and by the practice of asking the advice of this council, at the head of which was the father of the husband or wife.

Such, then, was the position of woman in respect to marriage in the last centuries of the Roman Republic, and it will be seen that she was on a practical equality with man. This state of matters sometimes caused curious combinations in life. The most singular case, one throwing much light on the ideas of marriage prevalent among the nobility of Rome, is that of Hortensius, which has been related by Plutarch. Hortensius, the great Roman orator, was anxious to be allied to Cato, the champion of Roman liberty, who died at Utica, and to marry Cato's daughter. There was one difficulty in the way. Cato's daughter, by name Porcia, was already married to Bibulus. But Hortensius did not regard this as a serious obstacle. He went to Bibulus, told him his wish, and begged him to dissolve his marriage with Porcia, and thus afford himself an opportunity of marrying her. He stated that after she had borne him two children he would relinquish his marriage claims, and she might remarry Bibulus. Cato, the father, was consulted, and refused his consent. But Cato suggested a way out of the difficulty. He himself would yield up his own wife Marcia to Hortensius on condition that her father did not object. Her father agreed, but on one stipulation, that her former husband should be present at the marriage. Cato accepted this stipulation, and Marcia was married to Hortensius. Hortensius died and Marcia became a widow. But she did not remain a widow long, for she soon married her former husband, bringing with her the fortune of Hortensius. In this case there is no constraint of any one and no illegality. Cato and Marcia dissolve their marriage voluntarily and legally; Hortensius and Marcia marry voluntarily and legally; and Cato and Marcia marry again voluntarily and legally. Marriage existed so long as both parties were fully agreed; and the only obstacle to a dissolution of the marriage was the necessity of carrying it out in a strictly legal manner, and the duty of consulting near relatives.^[82]

In our next chapter we shall discuss what was the effect of this arrangement on the happiness and character of women.

CHAPTER V.

THE EFFECTS OF MARRIAGE AND OTHER ARRANGEMENTS.

We are to consider in this chapter the effect of the marriage arrangements of Rome on the happiness, character, and influence of the Roman women. It is needless to say that it is impossible to reach incontestable conclusions on such a subject. Our evidence cannot but be fragmentary and one-sided, whatever be the nation or period whose happiness or morals we choose for the subject of our investigations. Even in our own day it would be easy, from the reports of the divorce and police courts and newspaper paragraphs, to draw together such materials as might lead one to assert that women were treated with the greatest cruelty, and that the age was one of the most licentious. But the evidence in the case of the Romans is peculiarly fragmentary. Only this has to be said for it: that it is not selected, that the facts which bear on the subject have been recorded for other reasons, and that therefore they may be expected to give a fair average picture of the state of matters into which we are inquiring.

It is necessary to deal at the outset with a prejudice which has influenced the views of many modern writers. It is supposed that Christianity must have appeared at a time when the ancient world was falling to pieces; when, therefore, morals were particularly low, society was in an utterly corrupt condition, and licentiousness universally prevailed. There is no sure foundation for this opinion. There is no picture of the last days of the Republic or the first years of the Empire that is so black as that painted by Ammianus Marcellinus^[83] of his own times. And the licentiousness of Pagan Rome is nothing to the licentiousness of Christian Africa, Rome, and Gaul,^[84] if we can put any reliance on the description of Salvian. I may adduce one instance of the effects of this prejudice. Drumann, in his laborious work of six volumes, has collected all the biographical facts that records have sent down to us in connexion with the last period of the Republic. In his index to this book he has a very short list of passages that refer to the virtues of women, and a very long one referring to their degeneracy. We turn to the first of these latter passages, and what do we find? Drumann^[85] is describing the proscriptions carried out by the triumvirs, Octavian, Antony, and Lepidus, and he narrates how the Roman

trembled before his own wife, children, slaves, and freedmen, and adduces instances in which Romans were betrayed by their relatives or slaves. He mentions three instances of the treachery of wives, and we may be sure that these were all the instances with which the records of the period furnished him, for it is not likely that any one has escaped his most diligent search. But he allows that another side of human nature was brought to light, and, in exhibiting it to his readers, he quotes eight instances in which wives saved their husbands at the risk of their lives or followed them into exile. It would be rash to draw an inference from these facts; but, if inference is to be drawn, it is that, even in the midst of wild disorders in the State and a general reign of terror in which each one feared for his life, wives were far more frequently true to their husbands and ready to share every peril with them, and that, therefore, we have really no proof of degeneracy, but, on the contrary, of strong affection between husband and wife.

In considering the effect of the marriage customs of the Romans we think naturally first of the fact that consent was the essence of a Roman marriage. No woman could be compelled to marry. It is true that women very frequently married when they were exceedingly young, often when they were only fourteen or fifteen years old, and that we must suppose that in these cases the influence of the fathers was predominant. But even in these cases the girl had to give her consent, and consent remained the essence of the obligation to a married life. Whenever there arose a feeling of bondage, the woman as well as the man could arrange for a dissolution of the connexion. And the woman had no pecuniary difficulties in the way. Every father provided for the support of his daughters for life by the dowries which he bestowed on them; and, therefore, no woman was compelled to put up with a faithless and cruel husband because she was entirely dependent on him for her subsistence. The complaints which we hear of Roman marriages are not from the female, but the male side. The women were too independent. A Roman marries a Roman woman who has ample means of her own. He finds that the old times are gone, and he cannot now lay hold of her money or property without her consent. He must now humour her if he is to enjoy her wealth, and the effort to gain her over in this way is held up as degrading and humiliating to a man, and it is represented that it is better for a man to be without a wife than to be subject to all the imperious whims of a wealthy woman.

Then, again, there was no shame attached to a dissolution of marriage. Marriage was a contract. Religious ceremonies were connected with it, but they did not constitute the marriage, and they were not essential to it. No sacredness invested the idea of marriage. It was an agreement between two parties, and, whenever this agreement began to gall the one or the other, there was no reason why the agreement should not come to an end. The strength of the Roman feeling on this point is seen in the attitude towards breach of promise. In Latium actions for breach of promise were common, as we are told by Servius Sulpicius in his book 'De Dotibus,' quoted by Gellius (iv. 4), and they continued till the citizenship of Rome was conferred on the Latins by the Lex Julia. But the Romans never seem to have allowed them. Sometimes the sponsalia or betrothal, though a private act, was celebrated with great pomp; but the Romans thought that "it was dishonourable that marriages should be held together by the bond of a penalty, whether future or already contracted,"^[86] and "if," says Juvenal, "you are not going to love the woman who has been by a legal agreement betrothed and united to you, there seems to be no reason why you should marry her."^[87]

Appeal is often made in this connexion to the frequency of divorce. In early days the Romans did not divorce their wives, and this fact is exhibited as a proof of the virtue of early times and the degeneracy of the later period. The first Roman divorce is said to have occurred about the year 231 B.C., when Spurius Carvilius dismissed his wife because she bore him no children. One writer represents Spurius as fond of his wife, but every citizen had to answer the Censor's question "Have you a wife for the purpose of procuring children?" Spurius's wife was by nature incapable of bearing children, and he therefore felt conscientious scruples in answering the Censor's question in the affirmative, as he was bound to do, and so dismissed his wife, according to the advice of the family council. It is not likely that this was the first divorce. At least, it is recorded that the Censors of 307 B.C. removed L. Annius from the Senate because he had divorced his wife without consulting the family council, and there is no reason to doubt the truth of the statement. But it is probable that divorces came into vogue about the middle of the third century before the Christian era. The Roman Catholic lady, Mlle. Bader,^[88] who has lauded the virtue of the Romans because no divorces took place before this time has suggested an

explanation of the fact. "The Roman husbands," she says, "did not divorce their wives; they killed them." As long as the Roman wives were under the control or in the hands of the husband, the husband unquestionably could kill his wife under certain restrictions; but when this state of matters ceased, then the obvious course was, unless the wife committed great crimes, and thereby incurred severe punishment, to dissolve the marriage quietly. And it seems to us that women would prefer divorce to death, and that, instead of a degeneracy, the altered state of matters implies a softening of manners and an advance in civilization.^[89]

It cannot be denied that divorces became frequent after women attained freedom, but much exaggeration prevails in regard to this matter. It is only about the men and women who occupied a prominent position in society that we get information, and their political interests often led to marriages and divorces. To form an estimate of general society from these would be as erroneous as to form an estimate of English and French society from Henry VIII. and the Napoleonic family. Marquardt^[90] notes the cases of frequent marriages. "Ovid," he says, "and the younger Pliny married three times, Cæsar and Antony four times, Sulla and Pompey five times, Cicero's daughter Tullia three times." It is needless to say that there is nothing wonderful in this. Many men and women in modern times marry three times, and there are some who have married four and five times, and one Moderator of the General Assembly of the Church of Scotland had seven wives.^[91] Yet these cases have not been deemed indicative of an exceptional state of low morality. The satirists and moralists are fond of employing exaggerated language in regard to women in this connexion. Juvenal talks of a woman having eight husbands in five years, and Martial of a woman being married to her tenth husband. Seneca describes some noble women as reckoning their years, not by the names of the Consuls, but by the names of their husbands. And it is possible that a few women may have become notorious in this way. The Augustan marriage laws offered strong temptations to go through the form of marriage, when there was no real union, and thereby elude the penalties inflicted on the unmarried state. But there are no clear instances recorded. Some suppose that in the inscription on the tomb of a woman it is affirmed that she had seven husbands; but the interpretation is incorrect, as Wilmanns has conclusively shown. The authentic case of the largest number of husbands is that of the

woman of Samaria, who had five husbands, and was living with one who was not her husband. But her case may have been quite peculiar; and, strangely enough, it is to this notorious woman to whom the grandest revelation of universal worship ever made to mortal was vouchsafed. There is no good reason to suppose that divorces were very frequent in ordinary society. There were not the same causes at work as prevailed in the circles in which political power was the predominant motive of action. From the earliest times of subjection came down, the idea that, while the man might marry frequently, the woman ought to marry only once, and this idea had its influence even to the last period of Paganism. In the later period the woman was not forced into marriage, and if her first marriage, owing to her early age, may generally have been the result of parental arrangement, the second would almost certainly be one made with her own free will, and with her eyes open to all the consequences of the act, and therefore it was likely to be a marriage of permanent affection.

Examining history, then, I think we must come to the conclusion that the Roman ideas of marriage had not a bad effect either on the happiness, or morals of the women. If we take the period of Roman history from 150 B.C. to 150 A.D., we shall be surprised at the number of the women of whom it is recorded that they were loved ardently by their husbands, exercised a beneficial influence on them, and helped them in their political or literary work. Many of these women had received an excellent education, they were capable and thoughtful, and took an active interest in the welfare of the State. It is well known that it was Cornelia, the mother of the Gracchi, who inspired her sons with the resolution to cope with the evils that beset the State, and her purpose did not waver when she knew that they had to face death in their country's cause. Julia, the daughter of Julius Cæsar, and the wife of Pompey, kept the two leaders on good terms as long as she lived, and acted with great sweetness, and prudence. Cornelia, Pompey's second wife, was a woman of great culture, and a most faithful and devoted wife. Plutarch thus describes her^[92]: "The young woman possessed many charms besides her youthful beauty, for she was well instructed in letters, in playing on the lyre, and in geometry, and she had been accustomed to listen to philosophical discourses with profit. In addition to this, she had a disposition free from all affectation and pedantic display, which such acquirements generally breed in women." The intervention of Octavia, the wife of Antony, in affairs of State was entirely beneficial and judicious. The

first Agrippina displayed courage and energy, herself crushed a mutiny among the soldiers, and was in every way a help to her husband. Tacitus praises his mother-in-law, the wife of Agricola, as a model of virtue, and he describes her as living in the utmost harmony with her husband, each preferring the other in love. And Pliny the younger gives a beautiful picture of his wife Calpurnia, telling a friend how she showed the greatest ability, frugality, and knowledge of literature. Especially “she has my books,” he says; “she reads them again and again; she even commits them to memory. What anxiety she feels when I am going to make a speech before the judges, what joy when I have finished it. She places people here and there in the audience to bring her word what applauses have been accorded to my speech, what has been the issue of the trial. If I give readings of my works anywhere, she sits close by, separated by a screen, and drinks in my praises with most greedy ears. My verses also she sings, and sets them to the music of the lyre, no artist guiding her, but only love, who is the best master.”^[93]

These are only a few of the numerous instances that might be adduced, in which wives behaved with a gentleness or courage or self-abnegation worthy of all praise. It is true that they took an active part in the management of affairs, but, on the whole, it must be allowed that they acted with great good sense. And there is a curious proof of this in the times of the Empire. Wives went with their husbands to their provinces, and often took part in the administration of them. Some of the old stern moralists were for putting an end to this state of matters, and proposed that they should not be allowed to accompany their husbands to their spheres of duty; but, after a debate in the Senate, the measure was rejected by a large majority, who thereby affirmed that their help was beneficial.^[94]

No doubt it was their good sense, their kindness, and their willingness to co-operate with men, that led to their freedom and power in political matters. And this power was sometimes very great. Cicero,^[95] in a letter to Atticus, relates an interview which he had at Antium 44 B.C. with Brutus and Cassius. Favorinus was also present, and besides him there were three women—Servilia, the mother of Brutus; Tertulla, the wife of Cassius and sister of Brutus; and Porcia, the wife of Brutus and daughter of Cato. Servilia strikes in twice in the course of the discussion, and it is evident that her words carried weight. On one of the occasions she promises to get a clause expunged from a decree of the Senate. There must have been many

such deliberations where women were present. Even in earlier times the influence of women is represented as great. Livy^[96] asserts that Licinius was induced to propose his laws to gratify the ambition of a daughter of M. Fabius Ambustus, whom he had married.

It is true that some of the women who engaged in political affairs were reckless and disagreeable. A woman played a most important and daring part in the Catilinarian conspiracy, and it was through a woman that the plot was revealed. Cicero's wife, according to his own account of her, knew more of political affairs than he knew of her household arrangements, and when his love grew cold to her, partly perhaps on account of her temper, but partly because he had become fond of a rich young lady, who might help him out of his pecuniary straits, a divorce took place, and Terentia married the political enemy of her former husband. Livia, the wife of Augustus and the mother of Tiberius, was, according to some, the prime mover of most of the public deeds during the reigns of both; but a doubt still remains whether we ought to place her among the good or the bad. But even these women had much enjoyment from their careers and the companionship of their own choice. At all events, the women enjoyed great freedom, and a wide field for the exercise of their power. And many of them certainly made a good use of their opportunities and wealth. Some of them were charitable. They bestowed public buildings and porticoes on the communities among which they lived; they received public honours, and one woman^[97] in Africa so impressed her fellow-citizens with her excellence that she was elected one of the two chief magistrates of the place. Especially in Asia Minor did women display public activity. Their generosity took the most various forms, even to bestowing considerable sums on each citizen in their own cities. They erected baths and gymnasia, adorned temples, put up statues, and contributed in every way to the enjoyment of their fellow countrymen. They often presided at the public games or over the great religious ceremonies, having been regularly appointed to this position, and they paid the expenses incurred in these displays. In consequence of this they received the most marked distinctions, and were elected to the highest magistracies. They also held priesthoods, and several of them obtained the highest priesthood of Asia—perhaps the greatest honour that could be paid to any one. And they were admitted to aristocratic clubs, such as the “gerousia” is generally supposed to have been.

It cannot be said that all the professions were thrown open to them, because many of the professions were not open to the men. Medicine and teaching and similar arts were still to a large extent practised by slaves or freedmen, and were deemed unworthy occupations for freeborn citizens. Law was not a profession, and women had a wide range of action in legal matters.

Valerius Maximus^[98] mentions that Amaesia—or Maesta (the name is uncertain)—of Sentinum, when accused, pled her own cause amidst a vast concourse of people, and managed the transaction with accurate knowledge of the forms of procedure as well as with bravery. She was acquitted almost unanimously. For her masculine mind they called her Androgyne, or Man-woman. He also mentions Afrania, the wife of the senator Licinius Bucco, whom he brands as fond of getting up lawsuits and pleading her own cause before the prætor, not because she could not procure advocates, but because she had an over-supply of impudence. He says that her name became a byword for a woman of unexampled forwardness and immorality. He states that she died in the first consulship of C. Cæsar, and the second consulship of P. Servilius, that is, in 48 B.C., remarking that her death was the one event in the life of such a monster that deserved record. In the ‘Digests,’ a quotation is made from Ulpian^[99] to the effect that women were not allowed to prosecute on behalf of others, because it was not in harmony with the modesty becoming the sex to mix themselves up with other people’s affairs, and assume to themselves functions appropriate to men. The origin of the restriction is assigned to the conduct of a most impudent woman, Carfania, who, by pestering the prætor with her shameless prosecutions, obliged him to issue the prohibition. Some have identified this Carfania with Afrania, but it is likely that the prohibition was made at a later date than 48 B.C.

As we have already seen, the women of Rome sometimes held meetings among themselves in early times, and Livy mentions instances to which I have not alluded. Under the Empire we hear of a regular assembly or corporation of women (*Conventus matronarum*). On the first occasion on which this *Conventus* crops up in history, we get a glimpse of the lively scenes which must have occasionally taken place in it. Agrippina, the mother of Nero, had been trying to seduce Galba, who afterwards became Emperor, from fidelity to his wife. His mother-in-law was very wroth with

her for this, and when Agrippina came to a meeting of the Conventus she rated her soundly, adding force to her words by vigorous blows with her hands. Afterwards, the Conventus appears again in the reign of Elagabalus, who assigned his mother a place among the senators. He built on the Quirinal a meeting-place for the Conventus, which his biographer calls a Senate, and the matrons decided there the various points of court etiquette, such as precedence and the dresses to be worn by ladies of different ranks. Probably this senate of women came to an end through its absurdity, and we do not hear of it again till the reign of Aurelian, who is said to have restored to women their senate, and to have made the priestesses take first rank in it. [\[100\]](#)

Many Roman women devoted themselves to philosophy and literature, and showed considerable ability in these subjects. But there is no proof that any one of them attained a great reputation. Only one literary work of a Roman woman has come down to us, the Satire of Sulpicia. It is creditable to her good sense and ability, but it does not take a high place among satires.

What, then, are we to say in regard to the morality of the Roman women? Unquestionably some of the Roman writers depict their morals in the blackest colours, but the facts that I have adduced seem to me to prove that the accounts are greatly exaggerated. It would be absurd to deny that there were many bad women in Roman society, just as there have been bad men and women in all societies, but we are apt to form too gloomy a picture of the conduct of the women, because it has been the delight of writers, who wish to demonstrate the superiority of Christianity to heathenism, to bring out into special prominence the supposed vices and humiliations of pagan women. But in regard to this matter it is of great importance that we view the facts from the right point.

First of all we must be on our guard against confounding Pagan with Christian notions of morality. The Romans highly esteemed purity in a woman, but they confined these ideas of purity to the female citizens, and their notions were based on the necessity of having a pure and unadulterated breed of citizens. Their notions of purity did not extend to the male citizens, and therefore, when the woman was still under the control of the husband, the woman could not divorce her husband, though her husband could divorce her without assigning a reason to her. There was, indeed, an

institution among the Romans which has been thought to exalt the idea of purity and virginity. But a slight knowledge of Roman thought shows the error of this opinion. Every sacrifice offered to a god required to be pure. The ox that was to be sacrificed must not have dragged the plough or undergone any toil. It must be reared and kept exclusively for the homage that was paid to the god. And so the vestal virgins consecrated to the goddess Vesta must be pure and undefiled by subjection to any one, as long as they were in the service of the goddess. But this was not a moral but a ritual purification. Marriage was not an obstruction to service to a god, if the god presided over functions that were consistent with it and, indeed, in all the great priesthoods in Rome it was essential that the priest should be married, for his wife acted as the priestess, and it was advantageous that the priest should have a family, as his children were expected to assist in his various priestly functions. Even the vestal virgins were allowed to marry, after they had served the goddess for the prescribed period of thirty years. The Roman women were not therefore restrained by a sense of moral wrong in connexion with this matter. And accordingly when they escaped from the firm grasp of the husband's power, they could not see why that which was allowed to the man should not be allowed to the woman; why, if he gratified his passions without restraint or the condemnation of society, the same indulgence should not be conceded to her. And, accordingly, some of them did plunge into the wildest careers of licentiousness and shamelessness. They adopted the prevalent philosophy of the day, Epicureanism, with their fathers and brothers and husbands; they abjured all belief in a future state and in moral distinctions, and they acted as the men who held the same creed did. Others of them took to Platonism, [\[101\]](#) and were particularly fond of "The Republic," because it advocated community of wives. But these women were not worse than the men of their day, and there were much fewer bad women than bad men.

Then our ideas of the immorality of Roman women are often drawn from what is said of the women connected with the Court of the early Empire. But our accounts of these women are derived from a bitter satirist, a pessimist historian, and a scandal-mongering biographer. And there can be no doubt that the most notorious of the licentious women of the Court had, like the men, a strong taint of insanity. If we take into consideration what I have already said about all Pagan notions of purity, and along with this keep in sight the state of matters at the end of the Republic and the beginning of

the Empire, I think that a milder view of the case will present itself to us. The Roman Republic came to an end through the rivalry of the great houses, whose matrons are the subjects of history. These houses were divided against each other, even though they were sometimes closely related by blood and marriage. Occasionally, even son was arrayed against father, and nephew against uncle. The lives of the principal men were in continual jeopardy. Very many of them died violent deaths. Their homes were thus frequently broken up, and selfish feelings were brought prominently into play. In these circumstances women had to act a difficult part, and their motives were often misconstrued.

Thus the suspicion is suggested that Livia, the wife of Augustus, had frequent recourse to poison; but surely the circumstances of the case render this suspicion doubtful. Livia was unquestionably a bold, resolute woman, and took an active part in the management of the Empire. She had been married before, and by her former husband had two sons, one of whom was Tiberius. Augustus also had been married before, and had one daughter, Julia. It was natural that Augustus should seek to establish his dynasty through his own daughter Julia, and not through his stepson. Accordingly he gave her in marriage to his nephew Marcellus, whom he intended to be his successor, but Marcellus died at an early age without offspring. Augustus then gave the widowed Julia in marriage to Agrippa, in whom he had great confidence, but Agrippa died also. Agrippa left a family, two of whom were youths of much promise, and Augustus naturally looked to these grandsons as possible successors, but they died also. Meantime Augustus gave his daughter in marriage to his stepson Tiberius, who by no means valued the gift; for he had to part from a wife whom he loved to unite himself with a wife whom he detested, and whom all the world knew to be dissolute. And in the end Tiberius succeeded to his throne. Now it was suggested that Livia from the first had made up her mind to make Tiberius the successor of Augustus, and that, with this object, she employed poison—poisoning Marcellus, poisoning Agrippa and his two sons, and probably poisoning Augustus himself. But we must suppose the acts of poisoning to be most fitful; for Marcellus died in 23 B.C., Agrippa in 12 B.C., the sons of Agrippa in 2 A.D. and 4 A.D., and Augustus himself in 14 A.D., each at a considerable interval of years from the other; and it seems to me impossible that, if a woman had made up her mind that her son should succeed, she would follow out her plan only at widely separate periods.

Some of the other women who are notorious for their bad conduct were unquestionably bad. But in the case of Messalina, whose name has become a byword, it has to be remembered that she was only twenty-six years of age when she died. The second Agrippina, who is equally infamous for her wickedness, may be paying the penalty for having written memoirs, in which she blackened the characters of her contemporaries. And nearly all the women who are gibbeted as monsters of iniquity belonged to the imperial family. The Emperor held a position of power and glory such as never had fallen to the lot of any mortal before him. The wealth and honours that were heaped on him were such as might turn the head of any man. They could not but have a very injurious effect on the women of the family. The descendants of this family intermarried cousins with cousins, or even in closer connexion, and, between the unique exaltation of their lot and the frequent intermarriages, need we wonder that a taint of insanity infected them? I think that in this way we may account for a considerable number of the wild excesses that are laid to their charge.

I do not deny that there were many licentious women outside of the imperial circle; I do not deny that there may have been some foundation for the railing accusations which Juvenal brings against the sex; but I am confident that these accusations are exaggerated in a high degree.

And if there were women who plunged into vice because they saw their husbands and brothers claim and exercise the wildest licence for themselves, there were other women who took an opposite course. They argued that the equality was right, but that men and women were equally bound to abstain from licentiousness, that the same law prevailed for the man as for the woman. This opinion was a tenet of the Stoic philosophy, and it was to this sect of philosophers that many of the noblest Roman women belonged. I will mention but two of them. Porcia, the daughter of Cato and the wife of Brutus, was a Stoic—"a philosopher," as Plutarch says, ^[102] "full of spirit and good sense." When married to Brutus, she perceived that her husband did not communicate to her his political movements and secrets. So she removed all her attendants, took a knife, and inflicted a deep wound in her thigh so that the blood flowed out copiously and then fever ensued. Her husband, in alarm, came to her, and she then addressed him: "I, Brutus, Cato's daughter, was given unto thy house, not, like women who serve as concubines, to share thy bed and board only, but

to be a partner in thy happiness and a partner in thy sorrows. But, with respect to thy marriage, everything is blameless on thy part; but as to me what evidence is there, or what affection, if I must neither share with thee a secret sorrow nor a care which demands confidence? I know that a woman's nature is considered too weak to carry a secret, but, Brutus, there is a certain power towards making moral character in a good nurture and an honest life: and I am Cato's daughter and also Brutus's wife, whereon hitherto I had less relied, but now I know that I am also invincible to pain."^[103] Then she showed her husband the wound. He admired the deed, and, stretching out his hands, he prayed the gods "that they would render him worthy of so noble a wife."

The other Stoic woman whom I shall mention is the well-known Arria, the wife of Pætus. Pliny gives the following narrative, received from her granddaughter: "Her husband, Cæcina Pætus, was sick; her son also was sick, both, to all appearance, by a fatal attack. The son died; a youth of exquisite beauty, of equal modesty, and dear to the parents as much because he was their son as for other reasons. She made all the preparations for the funeral, and paid the last rites to him, in such a way that her husband remained in ignorance of what was going on. Whenever she entered his chamber she pretended that her son still lived and was even improving in health. And when he often asked, 'How is my boy?' she would answer, 'He had a good night, he took a little food eagerly.' But when the tears, long kept in check, overcame her and began to stream forth, she would go outside and give herself up to a flood of grief, and then come back with dry eyes and calm countenance."^[104] It was this same woman who taught her husband how to die. He had received commands from the Emperor Claudius to put himself to death. He hesitated. His wife thereupon took a dagger, plunged it into her breast, drew it out and offered it to her husband, with the words, "Pætus, it does not pain." There were many such Stoic women. What opinions did they entertain in regard to the education and position of their sex? We are well informed on this point.

A Stoic philosopher, C. Musonius Rufus, who flourished in the time of Nero, spoke or wrote treatises on the education of women and on marriage, and large fragments of his sayings or writings have come down to us. He argues that the same training and education must be suitable for both sexes. He affirms that this ought to be the case for training in all the mental

qualities, but that possibly certain tasks may in some cases be more appropriate for man or for woman. The sum of his exposition is perhaps contained in the following words:^[105] “I say that, as in the human race men have a stronger and women a weaker nature, each of these natures should have the tasks assigned to it which are most suited to it, and the heavier should be allotted to the stronger, and the lighter to the weaker. Spinning, as well as house-keeping, would, therefore, be more suitable for women than for men; while gymnastics, as well as out-of door work, would be fitter for men than for women; though sometimes some men might properly undertake some of the lighter tasks and such as seem to belong to women; and women, again, might engage in the harder tasks, and those which appear more appropriate for men, in cases where either bodily qualities or necessity or particular occasions might lead to such action. For perhaps all human tasks are open to all, and common both to men and women, and nothing is necessarily appointed exclusively for either; not that some things may not be more suitable for one, and others for the other nature, so that some are called men’s and others women’s occupations. But whatever things have reference to virtue, these one may rightly affirm to be equally appropriate to both natures, since we say that virtues do not belong more to the one than to the other.” Musonius applies his principle of equality to sexual relations and to marriage. He held that what was wrong in a woman was equally wrong in a man, or rather was more disgraceful to a man, inasmuch as he claimed to be a stronger being, and therefore more capable of controlling his passions. He therefore denounced all illicit amours as unjust and lawless. He also propounded a view which was afterwards adopted by the Christian writers, that all indulgence of the flesh not requisite for the propagation of the race was unworthy of a philosopher. But he differed from the great mass of the Christian writers, and regarded marriage as the happiest condition of life. He describes it as a community of life, and a mutual care for each other in health and sickness, and in every occurrence of life, and he brands a marriage when there is no community of feeling as worse than a desert. He argued that the man who does not marry must be inferior in his experience and usefulness to the man who does, and that therefore the solitary life is not advantageous even for the philosophers. And he urges that the whole of civilization rests upon the institution of marriage. “For,” says he, “the man who takes away marriage from the

human race takes away the household, takes away the State, takes away the human race.”

The opinions of Musonius and the Stoics greatly influenced subsequent legislation in regard to marriage. But this is an obscure and disputable subject, and we can refer here only to the commencement of legislation on marriage. It was the Emperor Augustus who first drew up laws in regard to it. Before his time marriage was deemed essentially a private transaction, and no enactments had taken place in reference to it except as to the disposition of dowries. Family councils controlled it, and, like all other private acts, it was subject to the judgment of the Censors, who in this matter followed prevalent opinion. The prevailing opinion was that all Romans were bound to marry. The Censors put the question to every Roman, “On your word of honour have you a wife?” If the answer was in the negative the Censor weighed all the circumstances of the case, and, if he deemed the man negligent of his duty, he imposed on him a fine called *uxorium*. From the earliest times it had been reckoned a Roman’s imperative duty to marry. Dionysius embodies this practice in the statement that the “ancient law compelled all adults to marry.” The historians mention several instances in which the penalty for neglect of this custom was imposed by the Censors.^[106]

We are told^[107] that the Censors, M. Furius Camillus and M. Postumius Albinus, in 403 B.C., obliged all who had reached old age without marrying to pay a sum of money to the public treasury, and Valerius Maximus, in stating this fact, puts into their mouths words to the following effect: “As nature imposes on man the necessity of being born, so it imposes on him the obligation to produce birth, and your parents bind you by maintaining you to the obligation of maintaining their grandchildren. In addition to this, fortune has given you a long period to listen to her appeals to you to perform this duty, while, in the meantime, your years have wasted away, and you have remained without the name of either husband or father. Go, then, and pay the knotty coin which will be useful to a numerous posterity.” We need place no implicit belief in the exact details of this narrative, and Plutarch may be nearer the truth when he relates that the Censors induced, either by persuasion or penalties, the unmarried Romans of their day to wed the women who had been made widows by the devastating wars of Veii. But, whatever may have been the particular occurrences, there can be no

doubt that the sentiments put by Maximus into the mouths of the Censors were the genuine sentiments of the Roman people, and they continued to be the same till the latest days of the Republic. We are told^[108] that Quintus Metellus in his censorship, the date of which is uncertain, but it was either 131 B.C. or 101 B.C.—according as we accept the statement of Livy that it was Quintus Metellus Macedonicus, or the statement of Gellius that it was Quintus Metellus Numidicus—urged that all should be forced to marry *liberorum creandorum causa*, and delivered a speech on marriage which Augustus^[109] deemed so convincing that he read it aloud in the Senate, and drew the attention of the people to it by edict. And Cicero, in his treatise ‘De Legibus,’^[110] makes it part of the duty of Censors to prevent people being bachelors.

There would not be the same obligation on females to marry, but it is likely that every Roman citizen girl married. It is probable that the number of the females was not so great as that of the males. Every father had the right to expose his children, and, while he had no reason to make away with his male children, the necessity of providing dowries for females would induce him to think seriously before he took up and reared the female children that were born to him.

This, then, was the state of matters in the best times of the Republic; but this state was changed by the violent civil wars that preceded the establishment of the Empire. Then the great families of the commonwealth were decimated and family ties broken up. A feeling of the utter uncertainty of life and an indifference to its continuance pervaded all classes. Moreover, luxurious habits had become prevalent. Formerly sons with their wives lived in the house of their father, and constituted, in fact as in law, one family. Instances of this conjoint family life are recorded so late as the second century B.C. But now the expense of bringing up a family had come to be felt by many as a burden, and the trouble of family cares was regarded as an encroachment on the enjoyments of life. And hence arose an unwillingness to marry. People saw no good and felt no pride in having families. Their children might be a curse to them, or they might be exposed to lives of poverty, accusations, harassment, and proscription—lives, in fact, which were miseries, and not blessings. But Augustus held that the prevalence of such sentiments and practices was fatal to the welfare of a State, and the special circumstances of the time made them peculiarly

dangerous to Rome. For the State had suffered enormous loss by its civil wars. Appian^[111] asserts that at the census of Julius Cæsar it was said that the population was only half of what it had been before these wars. Dio Cassius^[112] describes the scarcity of the population as terrible, and the number of women had decreased. Friedländer^[113] estimates the free population of Rome in 5 B.C., omitting senators, knights, and soldiers, as consisting of 320,000 males and 265,600 females.

A remedy for this state of matters was urgently required, and Augustus believed that a remedy could be found only in legislation. Accordingly legislation was the remedy which he adopted. The accounts of this legislation are very confused. Mention is made of three Bills—one, *Julia de adulteriis coercendis*; a second, *Julia de maritandis ordinibus*; and a third, *Lex Papia Poppæa*. He commenced his legislation in the very beginning of his reign, in 28 B.C.; but as, on assuming the supreme power, he abrogated the decrees of the triumvirate, and claimed to be restoring the Republic, his Bills had to go through the ordinary processes of discussion in the Senate and proposal to the Assembly. This afforded scope for every form of obstruction, and, besides difficulties in passing the Bills, the laws met with fierce private resistance. The *Lex Papia Poppæa* probably embodied all the regulations which Augustus had made in regard to marriage, with such additions and amendments as experience had proved to be necessary. Its great object, was to encourage and reward marriage, and punish and prevent celibacy. Before passing his final law, the *Lex Papia Poppæa*, in 9 A.D., Dio Cassius^[114] states that Augustus, knowing that the equites were eager for the abrogation of his previous laws, summoned the whole of them to a meeting. He divided them into two classes—those who had married and those who had not. He deplored the fact that the latter class was more numerous, and addressed to them strong words of reproof, and at the same time expounded the reasons why marriage should be praised and rewarded, and bachelors condemned and fined. The principal points of this speech are contained in the first two chapters of Dio Cassius, 56. “That first and greatest god,” he says, “who fashioned us divided the mortal race into two, the male and the female, in order, through the instinctive love of the one to the other, he might make that which was mortal eternal after a fashion from continual new births. And he who is born of a father is bound to become a father if the race is to continue. Every feeling of patriotism makes this a

sacred duty. And what better means could there be than a chaste wife, guardian and manager of the house, a rearer of children, for cheering the man when he is in good health and attending to him when he is ill, sharing with him his good fortune and consoling him in misfortune, restraining the mad impulses of the young and tempering the unseasonable austerity of the old? What could be more delightful than to take up a child, the offspring of both, and rear and educate him, an image of the body and an image of the soul, so that the man himself reappear in this child when he grows to maturity.”

Julius Cæsar, painfully alive to the effects of the civil wars on the destiny of the Empire, had already offered rewards for a numerous offspring, and we find that in his agrarian law for the distribution of lands in Campania, he gave the lots to fathers of three or more children, of whom at the time there were twenty thousand. Augustus resolved to carry out this idea systematically. Any married woman who had three children received special privileges, and the *jus trium liberorum* became an honour, which was also conferred at first by the Senate, and subsequently by the Emperors, on distinguished women on whom nature had not bestowed the requisite number of children. Four children released a freedwoman from the guardianship of her patron, and three children put a free patroness on an equality with a patron.^[115]

Similar privileges were conferred on men. The consul who had the greater number of children had precedence over him who had fewer, and the married consul took precedence of the unmarried. The candidate for office who had children was permitted to assume certain offices of state at an earlier age than the unmarried, and other privileges were bestowed on the married. Fines and disabilities were imposed on bachelors. The ages fixed for males were twenty and sixty, and for women twenty and fifty and whoever was unmarried within these ages was subjected to a tax, and could not become heir except to near relatives and could not receive legacies.

Such were some of the provisions of this *Lex Papia Poppæa* for the encouragement of marriage. Our information in regard to it is in many respects defective and unsatisfactory. The law was much discussed by subsequent jurists, and it is likely that some of the clauses, which are represented as the work of Augustus, were inserted by later legislators.

Augustus did in regard to adultery what he did in regard to marriage. He translated ordinary private practice into public law, and on the whole made the conduct of the Romans milder than it had been, though he was strongly tempted by the licentiousness of his daughter to prescribe stern punishment for the crime. His law required that the divorce should take place in regular form. The freedman of the man who wished to divorce must hand over the repudium, or bill of divorce, in the presence of seven Romans of full age, and the wife who wished a divorce must do the same. The law ordained, that a woman who was found guilty of adultery should be banished to an island, and lose half of her dowry and a third of her property, and similar punishments were inflicted on a faithless husband. In the case of the wife, it still lay with the husband to inflict the penalty, and he himself was liable to be punished if he did not carry out the sentence. The husband could still kill his wife if he found her in the act; but he could execute vengeance only if he put to death both the guilty parties.

The Lex de maritandis ordinibus, which was no doubt embodied in the Lex Papia Poppæa, brings to light a new phase of Roman life. Distinctions had arisen among the Roman citizens, and more anxiety was felt to maintain the honour and purity of the highest of these classes than to preserve the ordinary Roman citizen from the outside world. Senators were forbidden to marry freedwomen, but all other citizens were allowed to marry them, owing to the scarcity of free women, but prohibited from marrying prostitutes, procuresses, condemned criminals, and actresses.

The legislation of Augustus in regard to marriage has generally been regarded as a failure. Horace celebrated the success of the Lex Julia de adulterio cohibendo in Ode iv. 5:—

“Nullis polluitur casta domus stupris,
Mos et lex maculosum edomuit nefas”—

words which seem to me to prove that the accounts of the degeneracy of the women were grossly exaggerated—for no legislation could produce effects in any way approaching to those described by Horace, if the evil were deeply seated. From Horace's words we may gather that the law had some good effect; and the prominence of the Lex Papia Poppæa in the discussions of jurists, renders it likely that it continued to act for some time with

considerable force. The general effect of legislation based on it, and of the course of events, was to alter the basis of the Roman State, and to make the individual, and not the family, the unit. Husband and wife became more closely connected together, the wife becoming to some extent the heir of the husband, and her children being entitled to inherit her property. But causes were working, in combination with the aversion to marriage, which rendered the Lex Papia Poppæa nugatory. In the Christian Church arose an inordinate estimate of the virtue of celibacy. A large family came to be regarded almost as a disgrace, as a proof of lasciviousness. And thus, when Constantine, a Christian Emperor, ascended the throne, he abolished most of the pains and penalties of celibacy and childlessness, and Justinian abolished all the clauses that dealt with inheritance.

BOOK III.

THE POSITION AND INFLUENCE OF WOMEN IN EARLY CHRISTIANITY.

CHAPTER I.

HIGH POSITION OF WOMEN AND THEIR SUBSEQUENT DEGRADATION.

The opinion has been continually expressed that woman owes her present high position to Christianity, and the influences of the Teutonic mind. But an examination of the facts seems to me to show that there was no sign of this revolution in the first three centuries of the Christian era, and that the position of women among Christians was lower, and the notions in regard to them were more degraded than they were in the first. Unquestionably in the Gospels women occupy a prominent position. Many of them followed Christ and ministered to Him. With a woman who had had five husbands and was living with a man not her husband, He holds the most profound conversation, and to her He proclaims the grandest truths of His revelation. And the women of His day and country seem to have had great liberty of movement and action. One of them, described by St. Luke as "a sinner in the city," finds her way into the house of a Pharisee with whom He was dining, pours a box of ointment on His feet, and washes His feet with tears and wipes them with the hairs of her head. Christ mingles freely in the marriage festivities where His mother and doubtless other female residents were present. His intercourse with the family of Bethany is of the most unrestrained character, and He talks to both sisters on the highest subjects. And, according to St. John, His first appearance after His resurrection is made to a woman, Mary of Magdala, from whom he had expelled seven demons. But in the Gospels there is no special doctrine propounded in regard to women, and if there is any approach to this, it exhibits great mildness, if we take the story of the woman caught in adultery as genuine. It is when we come to the writings of St. Paul that opinions are pronounced in regard to marriage and the conduct of women, and there can be no doubt that these opinions are of a stern and restrictive

nature. The Ebionites^[116] explained the Apostle's conversion by stating that he was, as he himself allowed, a native of Tarsus, that he was not a Jew, but a Greek with a Greek father and a Greek mother; that he went up to Jerusalem and stayed there for some time; that he fell in love with the high priest's daughter, became in consequence a proselyte, and asked her in marriage, but on being refused he was enraged, and wrote against circumcision, the Sabbath, and the law. Some have thought that there is a bitterness against women in the writings of St Paul, which can be explained only by some such rejection as that related by the Ebionites. Perhaps, also, the character of the women of Tarsus, his native city, may have had an effect upon him. At an early time they were particularly prim and modest. They were in the habit of covering the entire body with clothing, so that no one could see a single part of their face or the rest of their body, and they themselves could see nothing except the road on which they were walking. This habit continued till the time of Dio Chrysostom,^[117] who relates the fact. But he regards the habit as a remnant of a chastity which no longer existed. Impurity rushed in upon the women through the ears as well as the eyes, and the most of them became thoroughly licentious and corrupt. "They walk," he says, "with their faces covered, but with soul uncovered, and indeed wide open." St. Paul's words had a great influence on the formation of opinion in regard to women in the ancient Church. They fell in with the tendencies of the times, and were made the groundwork and support of the depreciation of marriage, which became prevalent in the third and fourth centuries of our era.

Christianity also soon brought with it a new state of feeling in regard to questions relating to sex. Acts that had been indifferent before, now became morally wrong, and the Christian writers inquire minutely into points which had not previously been discussed. The Christian writers are particularly frank in their treatment of these questions. Their sense of decency is quite different from that of the moderns, and the consequence is that it is not possible for a modern writer to give a full exposition of their ideas and reasonings.

There are two Christian books belonging, the one to the beginning of the third century, the other to the beginning of the fourth, that make large reference to the duties and position of women. The first is the "Pædagogus," or Instructor, of Clement of Alexandria. In this work the Alexandrian Father

guides the Christian in all the affairs of common life. He exhibits how the Christian ought to behave at meals, what food and drink he ought to take, how long he should sleep, what kind of clothes he ought to wear, how he ought to conduct himself in church, and similar matters. Now in dealing with the duties of women he refuses to employ any euphemism. A spade with him must be a spade or it is a lie. God created man and woman, every part of them, and “no one,” he says, “ought to be ashamed of naming what God was not ashamed to create,” and to go about the bush is to act in disrespect of Him. Besides, he thought it very important that every detail of the Christian life should be directed according to the instructions of Divine Reason, and therefore he would have regarded it a dereliction of duty if he had not discussed all that concerns the functions of women. But the feeling of the present age is for euphemism and concealment, and accordingly when we had to translate Clement’s work into English, in the Ante-Nicene Library, there were portions so completely opposed to modern ideas of decency that we considered it better to present them in a Latin and not an English dress. The same peculiarity characterizes the other work which I mentioned—‘The Banquet of the Ten Virgins,’ by Methodius. In this book ten virgins praise virginity; but the virgins show a remarkably intimate acquaintance with the physiology and aberrations of women. Now in the case of Clement no one can doubt the purity and simplicity of his mind, and his expositions, though they have been denounced by some divines, are absolutely devoid of all pruriency. Perhaps there is a little of the meretricious in the style of the Banquet, for the writer is imitating somewhat unsuccessfully the Banquet of Plato; but the language is entirely consistent with perfect purity, and the difference from our own times is to be attributed to the sentiments of the age, not to a debasement of character.

There is another remark that has to be made before we proceed with our subject. We may have to employ the term Christianity frequently; but a great mistake would be committed if it were assumed that the term has always the same meaning. There is the Christianity of Christ, the Christianity of the first century, the Christianity of Hildebrand, of Luther, and of Calvin. Christianity is different as it appears in different ages and persons. In the early centuries the Christianity of Rome differed from that of Greece and of Africa, and it is not to be assumed that because one Christian writer mentions a practice, that practice was therefore universal in the Church. So when we quote a writer, that writer is of good authority for

his own opinion or practice, of tolerably good authority for the doctrine and practice of the Christianity of his own country and age, but more faintly for the Christianity of other countries and ages.

At the time when Christianity dawned on the world women had attained, as we have seen in our chapters on Roman women, great freedom, power, and influence in the Roman Empire. Tradition was in favour of restriction, but by a concurrence of circumstances women had been liberated from the enslaving fetters of the old legal forms, and they enjoyed freedom of intercourse in society; they walked and drove in the public thoroughfares with veils that did not conceal their faces, they dined in the company of men, they studied literature and philosophy, they took part in political movements, they were allowed to defend their own law cases if they liked, and they helped their husbands in the government of provinces and the writing of books. One would have imagined that Christianity would have favoured the extension of woman's freedom. For Christianity itself was one of the most daring revolutions which the world has ever seen. It defied all past customs, it aimed at the overthrow of the religions of the world, it overleapt the barriers of nationality, and it desired to fuse all mankind into one family and one faith. Necessarily, such a movement was accompanied by much excitement and agitation; but when enthusiasm sways any association of men, and they live in a state of ferment, they break in pieces the bonds of custom—those very bonds which most firmly chain women down to a slavish position of routine. Accordingly, at the very first stage women take a prominent part in the spread of Christianity and all the activities of Christians.^[118] But in a short time this state of matters ceases in the Church, and women are seen only in two capacities—as martyrs and as deaconesses.

As martyrs they presented a magnificent spectacle of what poor weak woman can dare and do when under the impulse of an inspiring faith. There are especially two genuine Ante-Nicene writings which relate the courage of women under the agonies of trial. The first is the letter of the Churches of Lyons and Vienne, written in the reign of Marcus Aurelius, and the second narrates the martyrdom of Perpetua and Felicitas in the beginning of the third century. In the letter of the Church of Lyons the most conspicuous woman is a delicate young slave of the name of Blandina, to whom every possible kind of torture was applied, until her body was a mass of

deformity, but no word could be wrung out of her in denial of her Lord. "I am a Christian," she said, "and there is no evil done amongst us." The torturers, finding her resolution immovable, allowed her a short respite. After an interval of a day or two she was taken to the amphitheatre to be exposed to the wild beasts. She was hung up fastened to a stake in the midst of these animals, but they did not touch her, and she was conveyed back to the noisome and dark dungeons of her prison. Neither wild beast nor prison altered her determination. The magistrates were very anxious that she should recant, and day by day they led her to the scenes of torture, in the hope that she would be frightened by the terrible sufferings which she saw her companions endure, and on each occasion they urged her to swear by the gods. Blandina remained steadfast, and on the last day of the gladiatorial shows she was taken to the amphitheatre. There she was scourged and roasted on a red-hot iron chair, then enclosed in a net and tossed by a bull, and finally stabbed, triumphant in the faith of a glorious resurrection and a blessed union with her Lord.

The martyrdom of Perpetua and Felicitas was carried out in similar circumstances. Felicitas was a slave. Vivian Perpetua belonged to the higher ranks. She had received a good education, and was married at the time of her apprehension, and had a child at the breast. She was only twenty-two years of age. Her father was still a heathen, and urged her by every possible form of argument and appeal to renounce her faith, but she was firm. She was then cast into a dungeon, and suffered agonies on account of the darkness and separation from her child. But her friends were influential enough to procure an alleviation of her hardships, and she was permitted to have her infant and to receive visits from her Christian brethren. After some days the prisoners were taken to the town hall and tried. Perpetua's father again assailed her with entreaties to swear by the gods, and so did the Roman procurator. "Spare," said the latter, "the grey hairs of your father, spare the infancy of your boy, offer sacrifice for the well-being of the emperors." But Perpetua was unmoved, and to the fatal question "Are you a Christian?" she replied "I am a Christian," and was condemned to the wild beasts. She returned to her dungeon, there to await the day of the games. On that day the various prisoners were conveyed to the amphitheatre, and when the turn of the young women came, Felicitas and Perpetua were placed in nets and exposed to the attacks of a mad cow. Perpetua was first tossed up in the air and fell on her loins, but was not injured so much as to be unable

to help Felicitas when she was crushed to the ground, for she gave her hand to her companion and lifted her up. The savage fury of the populace was appeased for a time, and a demand was made for other combatants. As the evening drew on, all the Christians alive were summoned to receive the final sword-thrust; they kissed each other and then submitted to their fate. Then the writer of the narrative exclaims, "O most brave and blessed martyrs, O truly called and chosen unto the glory of our Lord Jesus Christ." Every honour was heaped after death on the women who thus suffered for Christ's sake, and their ashes and other relics were supposed to exercise a sanctifying and miraculous influence; but during their lives it was their duty to stay at home and manage the affairs of their household and not meddle in teaching or any spiritual function.

Let us look now at the organization of the church. Various ideas are entertained in regard to this subject. The view that I take of it is that the organization was the outcome of the necessities of the case directed by the institutions of the age and the place. The idea that regulated the forms of organization was that each member should contribute to the Church, in an orderly way, any gift that God had given him. And, in the first enthusiasm of the Christian movement, women were allowed to do whatever they were fitted to do. Accordingly, we meet in the early Church with prophetesses. Special mention is made of the four daughters of Philip.^[119] The women combine with the men in spreading the Gospel. St. Paul calls several of them his fellow-labourers, and one he designates a minister or deaconess (as some have translated it) of the Church in Cenchreæ. But not many generations elapse when all this comes to an end, and we hear only of two classes of women in connexion with the administration of Church affairs. The first is that of widows. The Church supported its own poor, and took upon itself especially the maintenance of widows and orphans. For the widows work was found. Some persons were required to visit sick women, to convey assistance to poor women, and to rear orphan children. Widows were selected for this service, but not all widows. Certain qualifications were deemed essential. The widow must be at least sixty years of age; she must have made up her mind not to marry again, and she must have experience in the nursing of children, so as to give suitable advice to mothers in their distress and difficulties. And, of course, she must have a good character for sobriety, discretion, and piety. In process of time the widows no longer are prominent, and, at length, the institution passes out of

sight. A new class arose. This new class received the name of deaconesses. Some have thought that deaconesses existed in the apostolic times, and others have supposed that the office was of early origin but confined to special localities.

It seems to me that the passages on which these opinions have been based do not substantiate a fixed and definite office, but mere casual and sporadic services. It is towards the middle of the third century that in all probability the new order became common in all the Churches of the East, for then the circumstances were such as to demand its existence. First of all widowhood had fallen in the spiritual market and virginity had risen. It was not wrong for the widow to have married, but the act implied a certain weakness and she thereby contracted a stain which rendered her less fit for the service of the Church. Accordingly, even in the time of Tertullian^[120], virgins were elected for the duties and called widows. "I know plainly," he says, "that in a certain place a virgin of less than twenty years of age has been placed in the order of widows." He himself objects in the strongest manner to this innovation, and speaks of this virgin as a monster—a virgin-widow, and unfit for the work, because she had not had experience in the married life and in the training of children. But the respect for virginity was at that time growing, and other circumstances combined to evoke the new order. To the end of the second century there were no public buildings for Christian worship. The Christians met in private houses, and the tenants of the houses made all the arrangements necessary for the meetings. But when churches began to be built, officials had to look after them, and this duty was assigned to the deacons. In the advance of ascetic ideas, the women sat or stood apart from the men, and entered by a separate door. And at this door stood the deaconess to direct the worshippers to their places, and to see that all behaved quietly and reverently. This was the great work of women in the Church, and in the end became nearly their only work. But they had also to help the deacons in any service which was deemed more suitable for women. Thus, in baptism, the women were immersed, but it was not seemly that all the preparations for the ceremonial should be made by the men, and the dressing and undressing were committed to the care of the deaconess. At the same rite the deacon anointed only the forehead of the Christian woman with oil; the deaconess then anointed her whole body. The deaconess also undertook the work which the widows had done in carrying messages and ministering to the temporal wants of poor women. "Thou

shalt send a woman a deaconess, on account of the imaginations of the bad,” is the order given in the Apostolical Constitutions.^[121]

The widows had no spiritual function. They were not to teach. How jealous the Church was in this matter is seen from the instructions given to them: “Let the widow,” is the commandment in the Constitutions, “mind nothing but to pray for those that give and for the whole Church, and when she is asked anything by any one let her not easily answer, excepting questions concerning the faith and righteousness and hope in God.... But of the remaining doctrines let her not answer anything rashly, lest by saying anything unlearnedly she should make the word to be blasphemed.” And the occupation of the widow is summed up in these words, “She is to sit at home, sing, pray, read, watch and fast, speak to God continually in songs and hymns.” And if she wishes to go to any one to eat or drink with him, or to receive anything from any one, she must first ask the deacon’s consent, and if she acts without first consulting him she is to be punished with fasting or separated on account of her rashness.^[122]

The deaconesses also were prohibited from teaching. They were superior to the widows in the liberty of movement which they had, and the widows were enjoined to be obedient to them; but they had no spiritual function, and while there is no doubt that they were ordained for their service, as the widows also were, they had no sacred character, and could perform no priestly office. To take one instance from Tertullian. In discussing the administration of baptism, he states that the bishop has the right of conferring it first of all, then presbyters and deacons, and then, if none of these are at hand, a layman might administer, but a woman never. Tertullian thus appeals to the Apostle Paul. “For how credible would it seem that he who has not permitted a woman even *to learn* with over-boldness, should give a female the power of teaching and baptizing. ‘Let them be silent,’ he says, ‘and at home consult their own husbands.’”^[123]

In the West it is likely that the Church never assigned any ecclesiastical functions to women, as they were deemed in every respect inferior to men, and it was regarded as dishonourable to a man to receive any instruction, direction, or ecclesiastical blessing from a woman. But it is possible that even in some of the orthodox churches of the East, probably in remote regions, women may have been entrusted with the duty of teaching. In the

‘Testamentum of our Lord,’ recently published by Rahmani, and translated into English by Canon Maclean, “the widows who had front seats” were enjoined to instruct women, to prove deaconesses, and to exercise a general superintendence over the conduct of all the women in the Church.^[124] They also seem to be included in the clergy. But this honour shown to women, some scholars deem to be indicative of heresy. Bishop Wordsworth^[125] regards it as a proof of semi-Montanism. It is not certain that the Testament was ever used by any part of any Church called orthodox, or that it represents actual institutions, though it is more probable that it did represent the Church order of some small division which considered itself to be among the orthodox.

The entire exclusion of women from every sacred function stands in striking contrast with both heathen and heretical practice. The contrast was present to the minds of the early Christians. “But if,” says the ‘Constitutions,’^[126] “we have not permitted them [women] to teach, how will any one allow them, contrary to nature, to perform the office of a priest? For this is one of the ignorant practices of the atheism of the Greeks (Gentiles) to appoint priestesses to the female deities.” Priestesses had a high and honoured position among the Greeks. In early times the Argives dated the events of their history from the priestesses of Hera, and erected statues to them. Equal honours were paid to priestesses of Hera in other Doric states, and to those of Athena Polias, Demeter and Core and many more divinities. These priestesses took part in the celebrations of festivals, and were treated with every mark of respect.^[127] In Rome the wife of the Pontifex Maximus took the lead in the worship of Bona Dea, and in the religious rites which specially concerned women. The most honoured priest attached to a particular god in Rome, the Flamen Dialis, must be married, and must resign his office when his wife died, for his wife was also a priestess, and his family were consecrated to the service of the god. And the vestal virgins received every mark of respect that could be bestowed on them, and the amplest liberty. The highest officials made way for them as they passed along the streets, they banqueted with the College of Pontifices, they viewed the games in the company of the Empress, and statues were erected in their honour. The same respect is accorded to women by many of the heretical Christians. Nearly every founder of a sect has a woman to aid him. Simon Magus has his Helene, Montanus his Maximilla, Apelles his

Philumene, and so in the case of other sects. One sect^[128] belonging to the Montanists deserves special notice for the energy with which it supported the claims of women. It bore various names, such as the Quintiliani, the Pepuziani, the Priscilliani, and the Bread-and-Cheesites because they celebrated their mysteries with bread and cheese. They gave special thanks to Eve because she first ate of the tree of knowledge. They lauded the sister of Moses and the four daughters of Philip, because they asserted the right of women to prophesy—that is, to speak in public the message of God. Frequently in their church seven virgins, clothed in white and bearing torches, stood up and addressed the people, and spoke so eloquently that tears of repentance ran down the cheeks of the audience. In this sect women held the place of bishops and elders and deacons as well as men,^[129] and they appealed to St. Paul for their practice: for he says, “In Christ Jesus there is neither male nor female.” It is against this sect that Tertullian, or one assuming his name, launches his thunderbolts. “The very women,” he says, “of these heretics how wanton they are! For they are bold enough to teach, to dispute, to enact exorcisms, to undertake cures, it may be even to baptize.”

In describing another sect, Epiphanius states the reasons why women should have no priestly functions. The sect was that of the Collyridians. Epiphanius^[130] asserts that there are some who make the Virgin God. “For they relate,” he says, “that some women in Arabia [ἐκεῖσε, not intelligible]^[131], from the parts of Thrace have introduced this new dogma, so as to offer up a cake (κολλυρίδα) to the name of the Ever-Virgin, and assemble together and attempt—going beyond all bounds—to perpetuate an unlawful and blasphemous deed to the name of the Holy Virgin, and to her name to perform sacrifice through women, which is an action entirely impious and unlawful, alien to the preaching of the Holy Spirit; so that the whole is an energy of the devil, and the teaching of an unclean spirit.” He then mentions^[132] that worship was paid in some places to the daughter of Jephtha and the daughter of Pharaoh, and Thermutis, the daughter of Amenoph, the Pharaoh, because she reared Moses. In ‘Haer.’ 79, c. i., he says that those who exalted Mary above humanity are none else than women: “for the race of women is prone to slip, and is unstable and low in their thoughts.” The thought comes from the devil, as formerly the devil inspired Quintilla, Maximilla, and Priscilla. And he proceeds, “For some

women, adorning a curiculum or four cornered seat, and covering it with a cloth on some special day of the year, place out bread on some days and offer it to the name of Mary; and all of them partake of the bread, as we have already explained partially in the letter which we wrote to Arabia.” He then refutes the heresy, the principal point attacked being that the heretics made women priestesses. No woman was at any time a priestess to God: Eve herself was not; none in the Old Testament, none in the New. No woman was ever made a bishop or presbyter, and a deaconess is not a priestess, but a servant of the Church appointed for special purposes. Christ made none of the women who served Him priestesses—not Salome, not even His mother, nor Martha, nor Mary, &c.

Such, then, was the position which woman occupied in the Church in the course of the first three centuries of Christianity. The highest post to which she rose was to be a doorkeeper and a message-woman, and even these functions were taken away from her during the Middle Ages. Was there a reason for this? Perhaps we may find some clue to this phenomenon in the conceptions which the Fathers of the Church formed of the nature of woman.

It is one of the curious features of early Christianity that it did not discuss some of those social problems which would naturally have suggested themselves. Thus no objection is taken to slavery, though the Therapeutæ had already denounced it as unlawful and inhuman. Christianity proclaimed a gospel of love, which had no limit but that of the human race. And it applied this gospel to all classes. The Christian slave thus became the brother of all members of the community, received kindness from all, and was admitted to equal rights and privileges. But Christianity also enjoined on him submission to the will of his proprietor urging the belief that man is bound to be content with the position in which he is, to bear patiently all the ills of this life in the certain hope of a glorious future. The marriage laws and customs prevalent throughout the Roman world in the first ages of Christianity ought to have created difficulty, but nothing is said of this difficulty. Thus a Christian slave woman was the property of her master, her children were a source of gain to him, and he took entire control over this matter, as over the breeding of cattle. Yet we do not hear of any discussion in regard to this arrangement, nor of any attempt to rescue the slave woman from the treatment to which she must have been

subjected. Again, the Roman law recognized marriages only between citizen and citizen; but a very large number of the early Christians had not the rights of citizenship until the beginning of the third century, and if they made associations of the nature of marriage, their children were deemed illegitimate by the civil law. Probably the Church defied the civil law. It became a maxim that Christians were not to go to law with each other, and the Church established laws and a jurisdiction of its own. In the case of marriage this was peculiarly necessary, as the marriage of a believer with an unbeliever caused to the former great inconvenience in carrying out his faith, and, indeed, supplied strong temptations to apostasy. Such marriages were therefore from the first forbidden, on pain of expulsion. It is likely, then, that any Christian man and woman were regarded as duly married, notwithstanding the civil law, if they had got the consent of the bishop; and secret connexions—that is, connexions not first professed in the presence of the Church—were considered akin to vice.

The questions that occupied the Christian mind related rather to the moral character of marriage. These questions were raised first of all by the heretical sects, which applied philosophy to the tenets and practice of the Church. And it is one of the most interesting facts in early Christian history that the Church, in combating these sects, succeeded in defeating them, but always carried off a large portion of their heretical opinions for its own permanent use. The sects may be divided into two classes. Some^[133] affirmed that marriage was unnecessary, that full liberty had been conceded to them of indulging the passions, and that, indeed, the way to rise to perfection was by a practical acquaintance with all forms of action possible to man. Others^[134] held that marriage was immoral, that the flesh was corrupt, that those who sowed to the flesh must reap corruption, and that in the kingdom of God on earth, as in heaven, there is neither marrying nor giving in marriage. It is difficult to trust all that is said about these heretical sects—for our accounts are derived from the orthodox alone—and in regard to this matter of marriage the orthodox invariably accuse the heterodox of licentiousness. But there was no class of people who ought to have been more careful in their assertions than the orthodox, as they themselves were accused of the vilest crimes.

It is one of the most striking facts in all history that in the second century the Christians were universally believed by Pagans to be secret conspirators

combined for immoral purposes, and at their trials it was sufficient for a man to confess that he was a Christian to be condemned as a licentious villain. The assertions made in regard to them were that they met in secret, that slaughtering an infant they poured his blood into a cup, and that passing this cup round they all drank of it; that then the lights were extinguished, and the men and women proceeded to indiscriminate licentiousness. How could such ideas have arisen? An explanation of this reveals to us marked peculiarities of the early Church in the treatment of women, and may help us to see how the later opinions arose. Christianity came at first in the fervour of an overpowering love—love to God and love to man, irrespective of his race, position, or belief. But this fervour of love directed itself with special force to those who accepted the same faith. They called each other fathers and sons, mothers and daughters, brothers and sisters. They were in the habit of assembling before dawn or at night, men and women together, in private houses, to conduct their worship. The assembly consisted of a strange assortment of characters and grades. The Apostle Paul, [\[135\]](#) in writing to the Corinthian Church, says to them: “Be not deceived: neither fornicators, nor idolaters, nor adulterers, nor effeminate, nor sodomites, nor thieves, nor cheats, nor drunkards, nor revilers, nor plunderers, shall inherit the Kingdom of God: and these things were some of you.” And there were in the assembly the bond and the free, the rich and the poor, the high and low, but with a large preponderance of the low. It was natural for a heathen to suppose that an assembly composed, as he would consider it, of the dregs of society, and meeting in hours of darkness, had no good object in view. And the account which they themselves gave of their worship sounded to a Pagan equally contemptible. The Christians affirmed that they worshipped a poor carpenter, a son of despised Galilee, the child of a husbandless mother. Then they spoke of eating a body and drinking blood. But perhaps colour was given to the accusation most of all by two institutions which have now passed away, except in the case of one or two small sects.

In the days of the first fervour the Christian brethren set up a plan of voluntary socialism, and wished to have all things in common; but the plan did not work, and they had recourse to a systematic relief of the poor. One feature of this relief was what were called Love-feasts. It was not unusual in ancient times for large bodies of men to dine together, and large dinner-parties were often made up by each man bringing his contribution to the

feast. With some such idea as this the Christians met, men and women together, the rich bringing the supplies, and they all dined together. Probably they did this every day at the earliest period, and some think that these meals constituted the celebration of what is called the Lord's Supper. The love-feasts were unquestionably associated with this institution; but in the course of time they became less frequent, and generally took place after the administration of the Eucharist. They continued till the fifth century at least, and were often held in the churches after churches were erected. These dinners were not always scenes of perfect propriety, as St. Paul's First Epistle to the Corinthians shows, and on some occasions intoxication and riotousness prevailed. These feasts went by the name of Loves, or Love-feasts, as we now translate the word. We need not wonder that Pagans should suspect that the Loves were not of the purest.

Then there was another practice, still more foreign to our Christian ideas. There is no command in the New Testament to keep the Sunday, or to stand or sit at singing, or to repeat the Creed or to keep Good Friday or Christmas, or to do a hundred other things about which Christians have wrangled with all earnestness; but there is a commandment five times repeated in the Apostolic Epistles, and indicative of the strong bond of brotherhood which bound Christian brothers and sisters to each other, to this effect: "Salute the brethren with a holy kiss," or in another form, "Salute the brethren with a kiss of love." It is likely that at first this kiss was imparted at every meeting, but gradually it became limited to the great sacramental occasions, such as baptism and the Eucharist. At first, too, and for a considerable time, the Christian brothers and sisters kissed each other. It is easy to see that such a practice would give rise to scandalous reports, and there is evidence in the ecclesiastical writers that the early Christians did not always make it a holy kiss, as it should have been. Athenagoras^[136] quotes a saying which he attributes to our Lord, and which evidently deals with an abuse of this practice. It is to this effect: "Whoever kisses a second time, because he has found pleasure in it, commits a sin." And Clement^[137] of Alexandria thus speaks of the matter: "Love is not tested by a kiss, but by kindly feeling. But there are those that do nothing but make the churches resound with a kiss. For this very thing, the shameless use of the kiss, which ought to be mystic, occasions foul suspicions and evil reports."

These customs prove that considerable freedom prevailed among the earliest Christians, and doubtless sometimes this freedom was abused. In the very first epoch some of the Corinthian Christians sided with a man who committed incest and persisted in it after rebuke, and the Apostle had to exert himself to the utmost to repress the sympathy and the sin, but the accusations, speaking generally, were hideously false and unfounded. They are of some consequence for our purpose, for they must have acted powerfully on the minds of Christians in inducing them to avoid everything that might furnish even the semblance of justification for them.

CHAPTER II.

EXPLANATION OF THE DEGRADATION.

From a very early date two currents can be traced in the Church—one in the direction of upholding marriage, another in that of despising and rejecting it. No one with the New Testament as his guide could venture to assert that marriage was wrong, and the tradition remained firm in the Church during the Ante-Nicene period that it was unlawful and heretical to forbid marriage. The Apostolic Fathers^[138] offer exhortations to wives to love their own husbands truly, and to love all others with no partiality for any one and in all chastity, and to train up their children in the knowledge and fear of God. As time moves on, such exhortations become less frequent, but still marriage is held up as a modified blessing. Tertullian,^[139] whose words in an opposite direction are very strong and numerous, has this passage, “Whence are we to find language adequate to describe the happiness of that marriage which the Church cements and the oblation confirms, and the benediction signs and seals, which angels report and the Father holds as ratified?” And then he describes the joys of the couple: “Together they pray, together prostrate themselves, together perform their fasts, mutually teaching, mutually exhorting, mutually sustaining.” But Tertullian, it has to be noticed, is not here insisting on the blessings of marriage, but on the blessedness of a marriage between two believers celebrated in the face of the Church, in contrast with a marriage between a believer and an unbeliever not sanctioned by the Church. The duties of the wife were simple: She had to obey her husband, for he was her head, her lord and superior; she was to fear him, reverence him, and please him alone; she had to cultivate silence; she had to spin and take care of the house, and she ought to stay at home and attend to her children. The only occasions for her going out were when she went to church, or with her husband to visit a sick brother.^[140]

The other current of thought which I mentioned ran against marriage, and it was of an ascetic nature. The seeds of it occur in the ‘Republic’ of Plato, and it attached itself to the Pauline conception of flesh. I can explain it best by a reference to food. We take food in order to sustain the body. But various kinds of dainties please the palate, and we may take the food not

merely for health, but for the pleasure that it gives. In the first instance we are acting rightly and under an irresistible necessity. In the second instance we are sinning, for we are yielding to a base appetite, the outcome of the flesh. The flesh, its appetites and passions, are the sources of human corruption, and gratification of the flesh is a sin. In like manner the sole object of marriage is that children may be born, and if any other object is sought, it is a gratification of lust; and, therefore, while marriage is allowable, man may be nearly as licentious in marriage as out of it. These inferences are drawn with the utmost precision by Christian writers of the second and third centuries, and the opinions I have mentioned will be found expressed in numerous passages. But it is easy to see that the mind could not halt in this position. Marriage, even for the sake of children, was a carnal indulgence, and such thinkers could not help feeling that the arrangement of the Creator was not altogether satisfactory. They did not venture on saying this. They did not dare to condemn marriage. But they held that it was much better not to marry at all, that the man or woman who had never married was a nobler and more exalted being than the man or woman who had married. Of course these ideas did not spring into vogue at once, but gradually forced their way. They were aided by the increasing rigour in the distinction between clerical and lay. The clerical man must possess a peculiar sanctity. A man who aspired to a clerical office in the church must, above all, show control over the lusts and passions of earth, and so refrain from marriage. The lay brother might be unable to free himself from the trammels of earth; the cleric could rise to the throne of heaven only on the wings of virginity. There thus arose a gradation of merit which had its counterpart in the evolution of the world's history. "For the world," says Methodius,^[141] "while still unfilled with men, was like a child, and it was necessary that it should first be filled with these, and so grow to manhood. But when hereafter it was colonized from end to end, the race of man spreading to a boundless extent, God no longer allowed man to remain in the same ways, considering how they might now proceed from one point to another and advance nearer to heaven until, having attained to the very greatest and most exalted lesson of virginity, they should reach to perfection, that first they should abandon the intermarriage of brothers and sisters and marry wives from other families, and then that they no longer should have many wives, like brute beasts, as though born for the mere propagation of the species, and then that they should not be adulterers, and

then that they should go on to continence, and from continence to virginity, when having trained themselves to despise the flesh, they sail fearlessly into the peaceful haven of immortality.” Marriage, according to this writer, was not abolished by Christ, but it was a state of inferiority. “For I think,” he makes a virgin say, “I have gathered clearly from the Scriptures that after the Word had brought in virginity, He did not altogether abolish the generation of children; for though the moon may be greater than the stars, the light of the other stars is not destroyed by the moonlight.” There thus arose the gradation of virgins, widows, and wives. Tertullian^[142] speaks of wives as women of the second degree of modesty who have fallen into wedlock.

The current of thought which I have exhibited displays itself, first of all, in the condemnation of second marriages. The Apostle Paul permitted these, and the Church could not forbid them. In the Pastor of Hermas they are not condemned, but Athenagoras^[143] raises his voice against them. “He who deprives himself,” he says, “of his first wife, even though she be dead, is a cloaked adulterer.” The argument used against them was that God made husband and wife one flesh, and one flesh they remained, even after the death of one of them. If they were one flesh, how could a second woman be added to them? She could not become *one* flesh. Tertullian,^[144] diverging from the Catholic to the Montanistic faith, maintained that a second marriage was equal to a marriage with two wives at one time, and therefore forbidden. But whatever their arguments were, at the root of the opinion lay the ascetic tendency of thought. This is seen in Tertullian^[145], who wrote a treatise addressed to his wife, admonishing her not to marry again if he died first. In speaking of the resurrection he says to her: “There will at that day be no resumption of voluptuous disgrace between us”; and in another treatise he remarks: “Let us ponder over our consciousness itself to see how different a man feels himself when he chances to be deprived of his wife. He savours spiritually.”^[146]

Tertullian, for his age, is exceptional in the strength of his denunciations, and the Church so far adhered to the Apostolic permission as to allow laymen to marry twice.

This antagonism to marriage had a great influence on family life. It is strange how seldom children are mentioned in the Christian writings of the

second and third centuries. Almost nothing is said of their training; no efforts are mentioned as being made for their instruction. The Christians had come to the belief that the world had enough of children, and was fully stocked, and that every birth was a cause of sorrow and not of joy. One writer^[147] interprets the wail of the infant as he enters the world thus: “Why, O mother, didst thou bring me forth to this life, in which prolongation of life is progress to death? Why hast thou brought me into this troubled world, in which, on being born, swaddling bands are my first experience? Why hast thou delivered me to such a life as this, in which a pitiable youth wastes away before old age, and old age is shunned as under the doom of death? Dreadful, O mother, is the course of life which has death as the goal of the runner. Bitter is the road of life we travel, with the grave as the wayfarer’s inn.” Tertullian^[148] says: “Further reasons for marriage which men allege for themselves arise from anxiety for posterity, and the bitter, bitter pleasure of children. To us this is idle. For why should we be eager to bear children, whom, when we have them, we desire to send before us to glory (in respect, I mean, of the distresses that are now imminent); desirous as we are ourselves to be taken out of this most wicked world and received into the Lord’s presence.” He describes children as “burdens which are to us most of all unsuitable, as being perilous to faith.” And again: “Let the well-known burdensomeness of children, especially in our case, suffice to counsel widowhood—children whom men are compelled by laws to have, because no wise man would ever willingly have desired sons.” And he exclaims,^[149] “A Christian forsooth will seek heirs, disinherited as he is from the entire world.”

Such ideas had necessarily a very powerful effect on the place and position of woman and on the conception of her nature. What was that effect? I will attempt to describe it in a few words. I may define man to be a male human being, and woman to be a female human being. They are both human beings, both gifted with reason and conscience, both responsible for their actions, both entitled to the freedom essential to this responsibility, and both capable of the noblest thoughts and deeds. As human beings they are on an equality as to their powers, the differences in individuals resulting from the surroundings and circumstances of spiritual growth. But man is a male and woman is a female, and this distinction exists in Nature for the continuance of the race. Now what the early Christians did was to strike the

male out of the definition of man, and human being out of the definition of woman. Man was a human being made for the highest and noblest purposes; woman was a female made to serve only one. She was on the earth to inflame the heart of man with every evil passion. She was a fire-ship continually striving to get alongside the male man-of-war to blow him up into pieces. This is the way in which Tertullian^[150] addresses women: “Do you not know that each one of you is an Eve? The sentence of God on this sex of yours lives in this age: the guilt must of necessity live too. You are the devil’s gateway; you are the unsealer of that forbidden tree; you are the first deserter of the divine law; you are she who persuaded him whom the devil was not valiant enough to attack. You destroyed so easily God’s image, man. On account of your desert, that is, death, even the Son of God had to die.” And the gentle Clement of Alexandria^[151] hits her hard when he says: “Nothing disgraceful is proper for man, who is endowed with reason; much less for woman, to whom it brings shame even to reflect of what nature she is.” Gregory Thaumaturgus^[152] asserts: “Moreover, among all women I sought for chastity proper to them, and I found it in none. And verily, a person may find one man chaste among a thousand, but a woman never.” The Testament of the Twelve Patriarchs^[153] makes a similar statement, and adds: “By means of their adornment they deceive first the minds of men, and they instil poison by the glance of their eye, and then they take them captive by their doings,” and therefore “men should guard their senses against every woman.” “The angel of God showed me,” it says in another passage, “that for ever do women bear rule over king and beggar alike; and from the king they take away his glory, and from the valiant man his strength, and from the beggar even that little which is the stay of his poverty.”^[154]

How, then, were men to treat this frivolous, dress-loving, lust-inspiring creature? Surely the best plan was to shut her up. Her clear duty was to stay at home, and not let herself be seen anywhere. And this duty the Christian writers impress upon her again and again. She is not to go to banquets, where her looks are sure to create evil thoughts in the minds of men who are drinking largely of wine. She is not to go to marriage feasts, where the talk and the songs may border on licentiousness. Of course, she is not to wander about the streets in search of sights, nor to frequent the theatre, nor the public baths, nor the spectacles. Does she want exercise? Clement of

Alexandria prescribes for her:^[155] “She is to exercise herself in spinning and weaving, and superintending the cooking, if necessary.” He adds: “Women are with their own hand to fetch from the store what we require; and it is no disgrace for them to apply themselves to the mill. Nor is it a reproach to a wife—housekeeper and helpmeet—to occupy herself in cooking, so that it may be palatable to her husband. And if she shake up the couch, reach drink to her husband when thirsty, set food on the table as neatly as possible, and so give herself exercise tending to sound health, the Instructor will approve of a woman like this.” During the only occasions on which she may quit her own house—namely, when visiting the sick or going to church—she must be veiled; not a portion of her face must be seen, and when she is in church she must remain covered. These are the injunctions which occur repeatedly in the Christian writers. Voices were raised against this ascetic treatment, among them that of one Bishop of Rome,^[156] but they were drowned in the current of invectives that were directed against woman’s love of dress and finery and show. These invectives and discussions on the dress of women and veiling of virgins are numerous. Tertullian, Cyprian, Clement of Alexandria, Commodian, and the Apostolic Constitutions deal minutely with the subject—all on the idea that woman is a most inflammatory being. Is a woman beautiful? “Natural grace,” says Tertullian,^[157] “must be obliterated by concealment and negligence, as being dangerous to the glances of the beholder’s eyes.” Then she must clothe herself from head to foot. In speaking of her going to church, Clement of Alexandria says: “Let her be entirely covered, unless she happen to be at home. For that style of dress is grave, and protects from being gazed at. And she will never fall who puts before her face modesty and her shawl; nor will she invite another to fall into sin by uncovering her face. For this is the wish of the Word, since it is becoming for her to pray veiled.”^[158]

Then she must not adorn herself in any way. “It is not right in God,” says Commodian,^[159] “that a faithful Christian woman should be adorned.” The purpose of clothing is to defend the body against excess of cold and intensity of heat, and the simplest materials are sufficient for this purpose. The Christian woman must therefore bid farewell to embroidery of gold and Indian silks; she is strictly forbidden to wear gold ornaments of any kind, and she is to avoid all dyed clothes, as the dye is unnecessary for health,

afflicts greedy eyes, and, moreover, it is false; for God would have made the sheep purple if He had wished the woollen clothes to be purple. Strong condemnation is uttered against any attempt to trick out the person. “Head-dresses,” says Clement^[160] of Alexandria, “and varieties of head-dresses, and elaborate braidings, and infinite modes of dressing the hair, and costly mirrors in which they arrange their costume, are characteristic of women who have lost all shame.” And if the adornment of the natural body is thus condemned, the endless variety of artificial contrivances employed by the Roman and Greek ladies is necessarily considered abominable. In regard to the hair, Cyprian^[161] addresses virgins thus: “Are sincerity and truth preserved when what is sincere is polluted by adulterous colours, and what is true is changed into a lie by the deceitful dyes of medicaments? Your Lord says, ‘Thou canst not make one hair black or white,’ and you, in order to overcome the word of your Lord, will be more mighty than He, and stain your hair with a daring endeavour and with profane contempt; with evil presage of the future, make a beginning to yourself already of flame-coloured hair.” And he uses equally strong expressions in regard to tinting the eyes, “You cannot see God, since your eyes are not those which God made, but those which the devil has spoiled. You have followed him, you have imitated the red and painted eyes of the serpent. As you are adorned in the fashion of your enemy, with him also you shall burn by-and-by.” And he thus sums up the exhortations which he addresses to the virgins: “Let your countenance remain in you incorrupt, your neck unadorned, your figure simple; let not wounds be made in your ears, nor let the precious chain of bracelets and necklaces circle your arms or your neck; let your feet be free from golden bands, your hair stained with no dye, your eyes worthy of beholding God.” Notwithstanding all the exhortations which were showered upon the wives and virgins, the Christian writings prove that human nature often had its own way. Both Clement and Cyprian tell dreadful stories of some of the virgins, and in the treatise of Cyprian from which I have quoted there are lamentations like this: “For this reason, therefore, the Church frequently mourns over her virgins; hence she groans at their scandalous and detestable stories; hence the flower of her virgins is extinguished, the honour and modesty of continency are injured, and all its glory and dignity are profaned.” At the same time we ought to do justice to the self-control and perseverance with which many pursued their high ideal—for the ideal was a high one, as the purity aimed at was not corporeal merely, but

extended over the whole range of life. “For it would be ridiculous,” says one of the virgins in Methodius, “to preserve the lustful members pure but not the tongue, or to preserve the tongue but neither the eyesight, the ears, nor the hands, or, lastly, to preserve these pure but not the mind, defiling it with pride and anger.”^[162]

Such, then, was the position of women among the early Christians. We have said nothing of Christian legislation, for we have been treating of a period when the legislation was carried on entirely by pagans. But we ought to mention two facts, or two phases of one fact, which had a great effect on the destinies of mankind, but especially of woman, and which have found their way into modern legislation. The Roman father had absolute power of life and of death over his children in the primitive times of Rome. Gradually this power slackened, but he retained to the end of heathendom the right to expose his children, and pagan sentiment supported him in such conduct. The infants, on their birth, might be drowned or exposed to the cold air, or starved, or abandoned to wild beasts. In this way deformed and weakly children were left to perish. A very large number of the children who were thus disposed of were girls. Christianity condemned this practice from the first as murder. It went further. It was a question with the ancients at what time the human foetus became a living being, and many maintained that the soul came to it only when it was born. Tertullian has discussed this subject fully in his ‘Treatise on the Soul.’^[163] He says: “This view [that the foetus has no soul] is entertained by the Stoics, along with Aenesidemus, and occasionally by Plato himself, when he tells us that the soul, being quite a separate formation, originating elsewhere and externally to the womb, is inhaled when the new-born infant first draws breath.” This was the opinion prevalent among all classes of the Pagan world, and the practice was universal and avowed of killing the foetus by drugs. But Christianity took the other view, that the soul came at the earliest stage, and maintained that it was equally sinful “to take away a life that is born, or destroy one that is coming to birth.”^[164] Accordingly the heathen practice was forbidden by the Church. The prohibition made its appearance at an early period in Christianity, for it occurs in the Epistle of Barnabas,^[165] written about the beginning of the second century, and we are told that Peter says in the Apocalypse (an apocryphal writing probably of early date) “that abortive infants shall share the better fate: that these are committed to a guardian

angel, so that, on receiving knowledge, they may obtain the better abode, having had the same experiences which they would have had had they been in the body.”^[166] This view of the Christians in regard to infanticide would tend largely to increase the number of women in the world, as infant girls were the most frequent victims of the practice.

The ascetic tendency, on the other hand, repressed the growth of population. It had also a deteriorating effect on posterity. The less spiritual classes of the people, the laymen, being taught that marriage might be licentious, and that it implied an inferior state of sanctity, were rather inclined to neglect matrimony for more loose connexions, and it was these persons alone that then peopled the world. It was the survival of the unfittest. The noble men and women on the other hand, who were dominated by the loftiest aspirations and exhibited the greatest temperance, self-control, and virtue, left no children. During this period there is a striking absence of home life in the history of Christians. No son succeeds his father, no wife comforts the wearied student, no daughter soothes the sorrow of the aged bishop. Perhaps this absence of domestic affection, this deficiency in healthy and vigorous offspring, this homelessness, may account in some degree for the striking features of the next century, and especially the prevalent hardness of heart. Then men disputed with the utmost bitterness and ferocity about minute points of doctrine which are now incomprehensible almost to every one, and matters of absolute indifference to this generation, and they pronounced sentence of eternal damnation without the slightest compunction on all who differed from them. Then treatises were written to show why every heretic should be put to death in this life and tortured eternally in the life to come. And there is scarcely a champion of the faith, orthodox or heterodox, who was not accused of fearful crimes. If a lesson is to be drawn, it surely is that, as with individuals there is no place like home, so with a State there is no institution like home; that a community can be great only where there are happy, harmonious, and virtuous homes, and that homes cannot be happy and harmonious and virtuous unless woman is accorded a worthy place in these homes, with freedom of action, with a consciousness of responsibility, and with the right, unfettered by circumstance or prejudice, to develop all that is best and noblest in her to the utmost perfection.

BOOK IV.

SUPPLEMENTARY.

CHAPTER I.

WOMEN IN THE HOMERIC PERIOD.

(1) THE GENTLENESS OF THE PERIOD.

A remarkable mildness pervades all that Homer says of women. The Greeks were monogamous, but they were so not by law, but from affection, or principle. Homer, accordingly, finds no fault with the polygamy which presents itself in the palace of Priam, King of Troy. "He had fifty sons, nineteen from the same womb, and the rest were borne to him by women in his halls."^[167] Some of these women are spoken of as if they were considered the wives of Priam—Laothoe,^[168] for instance, and the beautiful Castianeira,^[169] though Hecabe appears as if she were the only wife. But, in fact, there was no clear line drawn between marriage and other associations of men with women in Homeric times. Achilles calls Briseis his wife (ἄλοχος), though she was acquired by the spear.^[170] And Ulysses promises that he will give wives to his slaves, Melanthius the goatherd and Eumæus the swineherd.^[171] Some have supposed that the words imply that Ulysses would make them free, but there is no hint of this in Homer. The ordinary wife, or what in later times might be called the legal wife, is distinguished by the epithet *κουριδίη*; but there is no certainty as to the exact meaning of this word.

Homeric society knows nothing of a degraded class of women. There are some instances in which what would be called concubinage occurs, but only twice in the 'Iliad' does the word occur (*παλλακίς*) which was used to designate this in later ages, both times in the same passage.^[172] And it occurs once in the 'Odyssey,'^[173] in a passage in which Ulysses invents a tale about himself to prevent recognition. It is evident that the word involved no idea of blame or reproach.

Still more evident is this gentleness in the treatment which the children of these women experienced. When a name is assigned them they are called nothoi (νόθοι), but the name, whatever its meaning might be, had, as Eustathius points out,^[174] and the facts show, no depreciatory association. The children whose mothers were not the ordinary wives were still treated as children of the house. When Helen had no hopes of a son, Menelaus had a son born to him from a slave,^[175] and he married this son to the daughter of Alector with great festivities. Medesicaste is described as the daughter of Priam nothen (νόθην). She was married to Imbros, a great warrior who lived with Priam, and that king “honoured him equally with his sons.”^[176] Pedaios was a nothos to Antenor, “but the divine Theano reared him with great care, like to her dear children, to please her husband.”^[177] Agamemnon addresses the Telamonian Teucros thus: “Telamonian Teucros, dear head, ruler of peoples, strike thus if you are to become a light to the Greeks and to your father Telamon, who reared you when you were little, and though you were a nothos (νόθος) took care of you in his own house.”^[178] Medon the nothos (νόθος) of Oileus was a leader among the Greeks, and brother of Ajax.^[179]

The nothoi most frequently mentioned are those of Priam.^[180] All of them occupy high positions as warriors, and one of them is the charioteer of his brother Hector, a position which only the foremost men could occupy. In the ‘Iliad’^[181] two sons of Priam are killed, a nothos and a gnesios (son of the acknowledged wife), both in one chariot, the nothos being the charioteer and the gnesios the fighter.

No mention is made in the ‘Odyssey’ of the nothoi. In the passage already alluded to, in which Ulysses gives a false account of himself,^[182] that hero says that he was the son of a rich man in Crete, who had many other sons reared in his house, “gnesioi from a wife; but me a purchased mother, a pallakis, bore, but he honoured me equally with those who were directly born.” When he died, the haughty sons divided the livelihood among themselves, casting lots. “But they gave me very little, and assigned me a house, and I married a wife from among very rich people, on account of my excellence.” From this passage we gather that kindness was shown to children born outside the ordinary marriage, and provision was made for them.

The gentleness of the treatment of the pallakis (παλλακίς) and the nothoi (νόθοι) has been frequently portrayed with praise in books on Homer. One of the last who has discussed the subject, Hruza,^[183] says: "This relatively so favourable condition of the nothos and his mother, both socially and legally (juristisch), is wonderful enough from the Roman and modern standpoint; but these customs of the age of Hellenic chivalry find their image in the institutions of mediæval chivalry, in whose sphere the birth outside of wedlock does not appear as a stain on mother or child, as it does in the present day."^[184]

Lasaulx^[185] tries to show that the kind treatment of nothoi and pallakis was Asiatic, but his arguments fail, though it is probable that where polygamy prevailed such treatment would be more common. Morillot asserts that "according to the later law contained in the Talmud, all infants whatsoever, even those of a prostitute or an outcast, had a right to the succession of their father. The sole exception to this rule referred to infants born of female slaves or strangers." In Egypt, no one was regarded as νόθος, not even the child of a purchased mother. No civil disadvantages attached to illegitimate children, and the Egyptian papyri of Roman times recognize no social distinction between the legitimate and illegitimate.^[186]

Κουριδίη ἄλοχος in all probability means the wife who belonged by birth to the predominant and free race to which the husband also belonged. She was κουριδίη in opposition to the stranger and slave, who however, might have belonged to an equally free and predominant race in their own country,^[187] and who might be, as Agamemnon says of Chryseis,^[188] "not inferior to the regular wife in form or stature or in mind and skill in works." The word does not signify, as many of the scholiasts influenced by later customs suggested, the lawfully wedded wife, as there was no law, but only custom, in Homeric times. In the same way the word nothos (νόθος) was afterwards taken to mean, and in later Greek did mean, illegitimate and spurious. But it could not mean illegitimate in Homeric times, for there was no law in regard to offspring. And it is doubtful if it could be spurious, for as Hruza has pointed out in the passage referred to, the Homeric Greeks, like some later Greeks mentioned hereafter, were probably of opinion that the son partook of the substance of the father and derived nothing essential from the mother, her function in birth being conceived to be very much that of the modern incubator. The sons were therefore always the genuine sons of their

fathers. The word γνήσιος which in later Greek signified genuine, occurs only once in the ‘Iliad’^[189] and once in the ‘Odyssey.’^[190] Both passages may be later interpolations and the text of the passage in the ‘Odyssey’ is uncertain, for the Harleian MS. of the scholia has “born of wives” instead of “born of a wife.” It also contains a word which occurs nowhere else in Homer, ἰθαιγενής, “born in the straight line,” probably meaning born of a mother who belonged to the predominant race or, as moderns would say, to the good society of her city or country. The chance of text corruptions in this matter is seen in a passage in the ‘Iliad’^[191] where one transcriber, not being able to understand the words καβησόθεν ἔνδον, altered them into Ἐκάβης νόθον υἱόν: “the nothic son of Hecabe”!

(2) THE DARKER SIDE OF THE QUESTION.

Some students of Homer may think that I have drawn too mild a picture of the life and character of Homeric women. They would base their criticism on some passages of which I have not taken note. These would be the following:—

In the ‘Odyssey’ a number of women behave badly. They take the side of the suitors, and act insolently to Ulysses on his return. Especially the slave Melantho, to whom Penelope had been particularly kind, is shameless and forward, and Ulysses applies to her epithets that express strong contempt. But such cases are exceedingly few, and are well accounted for by special circumstances.

Then, again, a passage occurs in the twenty-fourth Book of the ‘Iliad,’^[192] which has excited much discussion. Thetis the goddess advises her son to find consolation for his distress in the arms of a woman, and he follows her advice, and seeks out Briseis. Perhaps it is the direct way in which the statement is made that has offended critics (ἀγαθὸν δὲ γυναῖκί περ ἐν φιλότῃ μίσγεσθ’), though it is to be noticed that here, as throughout Homer, the physical enjoyment is always blended with the notion of friendship. The passage forms a feature in the dispute whether the last book of the ‘Iliad’ was written by the author of most of the other books. Some condemned it because it was unworthy of Homer. Among these was Aristarchus, the great Alexandrian critic, who was followed by other Alexandrian critics. But the passage seems to have the simplicity of early

thought and expression. Koechly appears to me to be right when he says in regard to it: "It is self-evident that we must not let ourselves be deprived of verses 130–132, which are characteristic, and required by line 675 and following, through the prudery of the Alexandrians which occurs also sometimes in other places, although my honoured friend Faesi appears to approve of striking them out, more, I think, as a gymnasial director than as a critic of Homer."^[193] Düntzer says^[194] "that there is a similar sentiment in Goethe's 'Hermann and Dorothea,' and that it is entirely in harmony with old naïve times, 'der alten naiven Zeit.'"

The last classes of passages that require to be adduced in this connexion relate how the women washed the men. They are all like each other, and so only one need be quoted. In the 'Odyssey'^[195] it is said that "the beautiful Polycaste, youngest daughter of Nestor, son of Neleus, washed Telemachus; and after she had washed him and anointed him with olive oil, and cast upon him a beautiful cloak and tunic," &c. A similar act is attributed to Calypso.^[196] A servant of Circe bathes Ulysses "out of a great caldron, pouring the water over head and shoulders."^[197] The δμῳαί, or slaves, bathed Peisistratos and Telemachus,^[198] and the exact words used in this passage are repeated in 8, 454; 17, 88, and similar words occur in the 'Odyssey.'^[199] Only once is reference made to the custom in the 'Iliad,'^[200] where it is said Hebe bathed Ares. Mr. Gladstone says the natural meaning of the words would seem to be that the women actually poured water over the men, and actually washed them and anointed them with oil. But he was shocked by the idea that young maidens should perform such acts, and some critics, both before and after him, have spoken of the immodesty of the acts.^[201] Mr. Gladstone thought that "it is almost of itself incredible that habitually, among persons of the highest rank and character, and without any necessity at all, such things should take place,^[202] and as it is not credible, so neither, I think, is it true." And he gets rid of all difficulties by explaining the words to mean that the maidens brought the water and oil to the men and left them to wash and anoint themselves. Mr. Gladstone finds support for his opinion in the 'Odyssey,'^[203] where Ulysses says: "Nausicaa washed me in the river and gave me these clothes"; and Ameis agrees with him. In fact, the words must mean that Nausicaa supplied him with the means of bathing, for Ulysses plainly refers to the narrative in the

‘Odyssey,’^[204] where Nausicaa orders her maidservants to give food and drink to the stranger, and to wash him in the river, where there is shelter from the wind. And then it is related how the attendant maidens brought Ulysses to a sheltered part of the river, placed clothes beside him, gave him the moist oil in a golden flask, and urged him to bathe in the currents of the stream. But the circumstances of Nausicaa and Ulysses, as described in the episode, are altogether unique. Ulysses comes entirely unawares on the princess. She is completely disconcerted at first, and shows unusual presence of mind in facing the strange adventure. Ulysses himself is also embarrassed, as he shrinks from appearing nude before a beautiful princess, disfigured as he was by the brine of the sea and by his long wrestling with the waves. It could not be expected, therefore, that Ulysses, in concisely narrating what had taken place, should be precise in the exact use of words. And, therefore, though *λοῦσε* (bathed) may be employed loosely in this passage in summing up what had been told in detail in the previous book, this is no warrant for attributing the same meaning to it in ordinary occurrences where no expansion of the subject is made or explanation furnished. And there is one very strong case against Mr. Gladstone’s notion. In the ‘Odyssey’^[205] Helen says: “I myself was washing him and anointing him with oil.” Emphasis here is evidently laid on the *ἐγώ*. Ulysses had penetrated into the city of the Trojans as a beggar, and no one recognized him but Helen; but he eluded every test that she employed to make herself sure. She therefore washed him herself, and she did this probably because she knew that she could find absolute proof of his identity if she could but see the scar above the knee, by which afterwards, on his return home from Troy, Eurycleia recognized him. In all likelihood, therefore, the natural interpretation is right, and the remark of Schneidewin on the subject^[206] is true: “Die Entblössung scheint für den Zweck des Badens so sehr ihre Unstatthaftigkeit zu verlieren wie etwa in der modernen Gesellschaft die Umfassung einer Dame zum Tanz.” And he might have added that modern nurses and doctors in our own times have no hesitation in doing what the Homeric maidens did when there is any necessity, and no one imagines that there is any impropriety in so doing. Certainly, whatever was the mode, there is no taint of immodesty in the action. The Homeric maidens, princess and slave, acted with perfect and unconscious innocence.

I may notice here, as I am dealing with clothes, another case that comes later—that of the Spartan girls. The testimony is very decided that these girls wrestled with each other in a state of nudity. The testimony itself, indeed, is not contemporaneous, though it is good, and therefore it is possible that it may be erroneous. It is possible, also, that the word translated “nude” may not in some of the authorities imply absence of all clothing. Some scholars have rejected the statements with scorn.^[207] One writer has devoted a monograph to the subject, and his conclusions are of the moderate type. “*Illud pro certo habendum esse puto non in omnibus exercitationibus virgines prorsus fuisse nudatas neque ulla vestimenta exceptis fortasse iis, quae ad pudenda tegenda opus essent, retinuisse. Quod quidem in una exercitatione luctandi factum esse verisimile est. Quoniam enim virgines luctantes more virorum, ut ait Theocritus poeta, corpora oleo unguere solebant, fieri non potuit, quin corpora nudarent atque etiam tunicam, vestimentum interius, exuerent.*”^[208] But whatever may be the conclusions reached on this point, testimony is unanimous that the Spartan girls were modest, and the very opposite of licentious. “Their stripping,” says Plutarch, “had nothing disgraceful about it, for modesty was present and incontinence absent”; and he censures Herodotus for saying that the woman in putting off her tunic puts off modesty, “for, on the contrary, the chaste woman puts modesty on instead.” And this was the opinion of the conservative Greeks of the time of Aristophanes, for they regarded the addition of clothing to men and women, and the wrapping the limbs up in Ionic dress as a vile innovation, tending to luxury and lasciviousness.^[209]

Bekker points out^[210] that the custom of women washing men prevailed in the middle ages, and he quotes passages in which women bathe the men and then clothe them. He also supplies a parallel to the Spartan girls divesting themselves of their clothes. One passage describes the baptism of damsels by an archbishop, when it is said that the maidens were stripped of all their clothing before all the barons, and they were whiter than the flower of the eglantine.

The question has not yet been finally settled whether shame in regard to the uncovering of parts of the body is or is not a mere social convention. It is a point which anthropologists should decide. A curious contribution to it occurs in a recent book of travels by G. F. Scott Elliot. “These people,” he says of the Wakavirondo,^[211] “are dressed chiefly in air, and, as one always

finds in scantily clothed native races, are peculiarly moral as compared with the decently attired Waganda and other races. In Madagascar, West Africa, and the Cape I have always found the same rule. Chastity varies inversely as the amount of covering." Mr. Henry T. Finck discusses the question fully in his chapter on nudity and bathing, with copious illustrations from the sentiments and practices of various countries, in his 'Lotos-Time in Japan.'^[212] But whatever the results of such inquiries may be, they seem to me to bear only slightly on the determination of the influence which women have exercised in past times.

(3) LOVE-MAKING IN HOMER'S TIME.

There is no trace in Homer of that passionate and bewildering love of a man for a woman which is the favourite theme of modern novels. Buchholz, in discussing the feelings of the Homeric Greeks in regard to sexual passion, thus describes this love: "Von der Ueberschwänglichkeit der modernen Gefühlsschwärmerei, vermöge deren zwei Individuen verschiedenen Geschlechts mit himmelhochjauchzendem Entzücken im Gefühle des ewigen Füreinanderexistirens und Ineinanderaufgehens sich berauschen und selige Wonne schlürfen, haben die homerischen Menschen keine Idee."^[213]

There has been much discussion as to when Greek writers began to treat of this love. There is a full treatment of the subject in Rohde's 'Der Griechische Roman' (p. 14), where he refers to the essay of Bulwer Lytton on the influence of love and real life, and quotes his opinion that it is in Euripides that first appears the distinction between love as a passion and love as a sentiment. Bennecke devotes a large portion of his chapter on 'Women in Greek Poetry' to show that "there is no trace in literature of what we now understand by the word 'love' earlier than the end of the fourth century B.C." "The general consensus of opinion," he says, "has agreed to ascribe this great change, the greatest change, perhaps, that has ever come over art, to the influence of two men, Euripides and Menander. My object in writing now is to endeavour to show, firstly, that this general view is a mistaken one, arising from an insufficient appreciation of the true nature of the change; and, secondly, that the real originator of the new feeling which we encounter in Alexandrian literature—in other words, the first man who had the courage to say that a woman is worth loving—was

Antimachus of Colophon.”^[214] It is evident that Bennecke’s appreciation of modern love is widely different from that of Buchholz.

CHAPTER II.

WOMEN IN THE GREEK PERIOD.

(1) ON THE CHARACTER OF SAPPHO.

In 1816 Welcker published a pamphlet entitled ‘Sappho von einem herrschenden Vorurtheil befreyt,’ in which he endeavoured to show that the principal accusation against the poetess was totally unfounded. It was republished in his ‘Kleine Schriften.’^[215] He carried most of the scholars of his own day with him. But Col. Mure renewed the accusations in his ‘History of Greek Literature,’^[216] and especially in an article in the ‘Rheinisches Museum.’^[217] Mure was much influenced by what he had seen of society in the courts of European capitals, where, according to him, the courtly ladies were stained with every vice. The German scholar Kock (1862) defended the same opinions as those of Mure. Welcker replied to both critics, but especially to Kock, in an article in the ‘Rheinisches Museum’ (1863), which was afterwards republished in his ‘Kleine Schriften.’^[218] Since that time judgment has generally been given in favour of Sappho, though the subject has been noticed rather than discussed in most treatises on Sappho and her works. Among those who have examined the subject carefully, Kublinski and Brandt deserve special attention. Kublinski subjects to minute criticism the notices in ancient writers regarding those historians and critics who were the first to concern themselves with Sappho. Some of these flourished at a very early date, and were natives of Mytilene. They all speak of her poetry and her virtue in the highest terms. The Mytileneans honoured her though she was a woman,^[219] and it was said that she united splendour and grace of diction with all that was honourable.^[220] Brandt in his charming book on Sappho brings vividly before us the spirit and the life of the poetess. He refuses to discuss the details of the accusations against her, which he describes as the “chatter of a later, unpoetic and degenerate period,” “because through Welcker’s excellent treatise the honour of the poetess has been vindicated, and we are firmly convinced that the accusations are untenable.” Then he shows how the writers of the later age were incapable of appreciating the warmth of her friendships, her passionate love of beauty, and her delight in all that is fair and lovely in this lovely world.

The vile insinuations of the later times against Sappho arose from the misrepresentations which the writers of the new comedy made of her. She was one of their stock characters. Kock^[221] quotes one play called 'Sappho,' written by an ancient comic writer, and five by writers of the new comedy. Unfortunately, the fragments are meagre in the extreme, and do not furnish us with any idea of the contents of the plays. They show, however, that the writers paid no regard to chronology, for one of them represented the poets Archilochus (700 B.C.) and Hipponax (546 B.C.) as in love with Sappho. In other plays also, named 'Leucadia,' Sappho was the subject, and in one of these Menander describes the poetess as madly in love with Phaon, and in consequence, throwing herself from the Leucadian rock. This is no doubt a pure invention, and it is likely that all the late stories about Sappho owed their origin to the unbridled and loose imaginations of the comic poets. Some of these stories are embodied in a Latin letter from Sappho to Phaon. This letter has been attributed to Ovid, and appears in the modern editions of the 'Heroides.' But its genuineness has been rejected by many scholars. It does not appear in the best MSS. of the 'Heroides.' It imagines Sappho to be furiously in love with Phaon, and in her passion she throws away all sense of self-respect and decency. But it does not support the contentions of Col. Mure and Kock. The two scholars who have lately defended the ascription of it to Ovid^[222] insist that the verses of the letter which give a colour to the accusations have been wrongly interpreted, and that on the contrary they imply that she was entirely innocent.

(2) ASPASIA.

Schmidt believes these statements, and attributes the making of Pericles and Socrates to Aspasia. Similar opinions are expressed by Filleul, who will not allow that she was a courtesan. And Lloyd is equally emphatic on her merits. Only one voice, as far as I know, has been raised against her, that of Ulrich von Wilamowitz in his 'Aristoteles und Athen.' In a note in vol. ii. p. 99, he uses extraordinary language in regard to Aspasia, calling her a prostitute, and strangely describing the ideas about her salon, and about her being in a kind of way the wife of Pericles, as the invention of German romantic Philhellenism. He is equally contemptuous towards Phidias, whom he describes as a low mechanic, and Pericles, who he asserts had no friends, guests, or concubines after he separated from his wife. In a later

production^[223] he employs less coarse language, and tries to defend the historical position which he assumes. But it seems to me that a complete answer to his assumption is to be found by anticipation in Müller, ‘Attisches Bürgerrecht.’^[224] Meyer and Bruns have discussed his opinions on this subject adversely.

(3) PORTRAITS OF SAPPHO AND ASPASIA.

There is, as is usual in matters connected with art, no end of differences of opinion. The two principal monographs on the portraits of Sappho are those of Jahn and Comparetti. Comparetti remarks on the image of Sappho on the Girgenti vase, “Sappho is here anything but small in stature; she is as tall as Alcæus.” But both writers are inclined to regard the figures as ideal. Even if they, however, should be ideal, they represent the notions of the poetess prevalent at the time of their production. There is much discussion about the coins. Those of them which have the name stamped on them belong to the period of the empire. Some have supposed that the head on an early Lesbian electrum and another on an autonomous bronze of Mytilene are those of Sappho, but Wroth, who has gone into the subject carefully, agrees with Furtwängler that the head is probably that of Aphrodite. Furtwängler thinks that the bust assigned to Aspasia is also really that of a goddess.^[225]

(4) RIGHT OF INTERMARRIAGE—ἐπιγαμία.

The corruptions in the text of Lysias as quoted by Dionysius, are well seen in the recent edition of Dionysius’s minor works by Usener and Radermacher.^[226] The words also may mean only “We were for granting the right of intermarriage with the Eubœans.” It is the imperfect that is used, and the context suggests this meaning of the imperfect.

No mention is made of ἐπιγαμία with the Eubœans elsewhere. One might have expected notice of it in some decree, but the decrees referring to the Eubœans are of such a nature that the existence of an epigamic agreement is rendered doubtful.^[227] From the extract from Lysias, Philippi^[228] infers that the ἐπιγαμία was given to the Eubœans without citizenship. Otto Müller, also on the strength of the same extract, believes that there was ἐπιγαμία granted by the Athenians to the Eubœans^[229] not only before 404, but

before the failure of the Sicilian expedition, but he does not argue the question.

(5) ATHENIAN CITIZENSHIP.

Doubts have been raised^[230] as to whether Pericles was the author of this law, because a supposed Solonian law decreed that he only should be a citizen who was the child both of a citizen and of a citizeness, and it is maintained that Pericles merely insisted on the observance of the law. But Aristotle^[231] says distinctly that it was on the motion of Pericles that the Athenians resolved that no one should partake of citizenship unless both his parents were citizens. He further states that the law was passed on account of the great number of citizens (451 B.C.). In c. 42, in describing the constitution of Athens as it existed at the time of the composition of the book, Aristotle says that they partake of the citizenship who are born of parents both of them citizens. Aristotle nowhere mentions that there was any suspension or alteration of this law from 451 B.C. to his own time. Müller thinks that there was an alteration, and no doubt the aristocratic party would be inclined to abrogate it. But probably they thought it sufficient to treat the law as obsolete when it suited them, and then it was renewed in 403 by Aristophon or Nicomenes.^[232]

The importance of this law of Pericles in the history of women cannot well be overestimated. It practically led to the distinction which is expressed in the Oration against Neæra, attributed to Demosthenes. "For we," it says, "have the Companions (Hetairæ) for the sake of pleasure, the concubines for the daily care of the body, and the wives that genuine children may be born to us, and that we may have a trustworthy guardian of our household property."^[233] At the time no moral stain was attached either to Hetairæ or to the concubines. Their position was one that could not but arise out of their destiny and the law of Pericles. But these two classes were not treated with the same respect as the women who were citizens. The Romans adopted the same law as that of Pericles. They did not encourage concubines, and the Companions were for the most part degraded women or slaves. The Church subsequently followed the practice of the Romans, the restrictions on marriage, however, leading to the frequency of concubinage among the clergy. But what had formerly been regarded as the result of inevitable destiny was now deemed proof of a depraved disposition.

The law also produced distinctions in the male population. They were divided into two classes—citizens to whom many privileges were assigned—and outcasts who had no rights nor privileges. This was a great change from the Homeric times. The subsequent history of the two classes of men is curious and suggestive, but this is not the place to deal with it. Morillot in his treatise on the subject exclaims, “Strange circumstance! It is nearly always on the person of the infants that the law strikes those who transgress its ordinances.” This is true of the Christian era; but at first the law looked solely to the interests of the citizens who made it, and did not suggest culpability on the part of those who were not citizens.

(6) DATE OF ‘ECCLESIAZUSÆ.’

The date of the comedy is clearly ascertained within two years. The date of the ‘Republic’ cannot be so definitely ascertained. Accordingly there have always been writers who have maintained that Aristophanes held up to ridicule the communistic ideas of Plato expressed in the ‘Republic.’ In recent times Chiappelli^[234] has advocated this opinion, and Rogers, in his edition of the ‘Ecclesiazusæ,’^[235] supports it by appealing to the exact resemblances in the words used by both. But Platonic scholars have generally held strongly that the ‘Republic’ is considerably later than the play. The date of the play must be somewhere between 390 and 393. But Stallbaum, in his ‘Prolegomena to the Republic,’^[236] adduces what seem to me convincing arguments that that work could not have been published before 385 B.C. Lutoslawski, in his ‘Origin and Growth of Plato’s Logic,’^[237] maintains that all the parts of the ‘Republic’ except the first book were written after the ‘Phædo,’ which he places between 384 and 383 B.C., and that they occupied Plato for about six years up to nearly his fiftieth year. He and others have remarked that the coincidences between Aristophanes and Plato are slight and that the comedy does not really deal with the special proposals of the philosopher. The ideas in the comedy are too general.

The date of the comedy is discussed fully in Kaehler’s ‘De Aristophanis Ecclesiazuson tempore et choro Quæstiones Epicriticæ.’ Jenæ, 1889, which gives the literature and history of the discussion. He holds that there is no connexion between the play and the ‘Republic.’ Prof. Ritchie^[238] says of

the 'Republic,' "Probably written at various times between 387 and 368 B.C." [\[239\]](#)

(7) THE WOMEN OF PLAUTUS.

Perhaps we can best see the representations of the Greek new comedy [\[240\]](#) in the plays of Plautus, for no complete Greek comedy of this class has come down to us. Terence no doubt transferred more literally from these plays, but his selections do not bring us so closely into contact with the life of the period. It is difficult, however, in Plautus to know whether his pictures refer to Greek or to Roman life—for he unquestionably introduced many allusions to the habits of his Roman audience.

Most of the women that appear in the pages of Plautus belong to the slave class. Often, when the Greeks took a city, they razed it to the ground, killed nearly all the men, and carried off the women to be slaves in lands far away from their own homes. These women had to submit to the greatest cruelties and indignities. Plautus borrows his scenes from Greek plays—and accordingly most of his women have become slaves in this way. There can be no doubt, however, that the Romans trafficked in female slaves as well as the Greeks—and thus the picture of the female slaves in the one nation will hold good for the other. When superior officers made these women captive they generally kept them in their own houses; but as such slaves brought a large sum, there were men who made a livelihood by stealing them away. These sold them to persons whose occupation was again to sell them to the rich inhabitants of the cities, sometimes lending them only for a year, and sometimes giving them up for life. The laws regulated the conveyance, if I may so speak, of these women-slaves, and one of the plays turns upon a scoundrel of a slave pretending to be an Eastern, and coming to the slave-dealer's house with the daughter of another man, a parasite, and selling her at an enormous loss, but without a legal form. The parasite goes at once to the slave-dealer and claims back his illegally sold daughter. These slave-women were employed in various ways. Sometimes they were kept as household servants, sometimes as nurses; but most frequently they were used at banquets to dance before the festive gentlemen, and to sing, play the lyre, and amuse them with witty sayings. They were often, therefore, highly cultivated, conjoining the accomplishments of our most expert acrobat with those of an opera singer and an educated lady. Some of

them descend to the lowest degree of coarseness in Plautus; while a few are exceedingly sweet, modest, and gentle.

The women of the plays of Plautus are naturally divisible into two classes: those who were free, and those who were or had been slaves. It is important to keep in mind that this distinction reached far into all the social relations. The slave-girl, however nobly descended she might be, could not marry a free citizen. The free man could only marry the daughter of a free fellow-citizen. In consequence of this the choice of a wife was narrowly restricted, and a large class of women were necessarily thrown out beyond the social pale. The women who could marry were closely confined. They grew up in the recesses of the women's quarter of the house. They had seldom opportunities of seeing any one but their most intimate relatives. They rarely gazed upon the general public except when they marched in some religious procession and took part in religious festivals. Their higher education was neglected, and for the most part their society was despised. Their marriages were arranged by the fathers. They had no voice in the matter themselves, and frequently the main question was as to the dowry which they could bring to their future husbands. In these circumstances we could not expect to see marriageable young girls in the Plautine plays. They did not appear in public or mingle in society. Only one is to be found acting a part in the plays of Plautus, and that, too, in extraordinary circumstances. Her father is the parasite in the 'Persa.' This wretch is ready to do anything for the sake of a good dinner, and his daughter is a small matter if placed in competition with that. So he compels her to play the part of slave-girl. She objects very strongly. She sees that it is not a proper act for her. She sees also that it will damage her prospects of marriage. But the authority of a father was paramount. He commands and she must obey, and obeys gently and meekly. Mention is made of other marriageable girls. In the 'Trinummus,' the good youth Lysiteles seeks the hand of the sister of Lesbonicus the spendthrift. His father, Philto, undertakes to see Lesbonicus on the subject, and an interesting dialogue ensues. Lesbonicus cannot believe that Philto is in earnest in asking a portionless daughter, and when at last he is convinced that Philto is not making a fool of him, he states that he will part with the only remaining little property he has in order to give some dowry to his sister. It would be such a disgrace to him, if she were to bring nothing to the family stock. Another marriageable girl appears in the 'Aulularia.' Her father, the miser Euclio, is very glad to get her off his

hands without dowry, and the man who wishes to marry her prefers to have an undowried wife. His reasons for this preference are notable. Megadorus, the suitor, is rich. He has lived with his widowed sister for some time, but she thinks that he ought now to marry. She is not, however, very favourable in her account of women. "We are," she says, "deservedly regarded as very garrulous, and people strongly affirm that not a single silent woman has been found in any age up to this day." She further informs him that there is no chance of his getting a good wife: he can merely have a selection out of bad: "alia alia pejor, frater, est." However, she ends with recommending one whom she knows and deems suitable in age and circumstances. He does not accept her proposal, but says that he wishes to marry the daughter of Euclio, and he is very glad that she is so poor. The dowried wives have become wildly extravagant and insolent, and if the rich were to do as he intends, that is, marry undowried wives, there would be more concord in the state; the women would pride themselves more on their manners than their dowry, they would have less reason to fear punishment than they now have, and the husbands would have less expense. In one word, "the undowried wife is in the power of her husband, the dowried one tortures and ruins him." In the course of this discussion Megadorus expatiates on the extravagances of the women of his day. "They must have purple and gold given them, maidservants, mules, mule-drivers, attendants, salutation boys, and carriages." And then he gives a list of the various artisans who wait upon the matrons. Here it is in the Latin, for an exact translation would require a dissertation: [\[241\]](#)—

"Stat fullo phrugio aurifex linarius
Caupones patagiarii indusiarii,
Flammarii violarii cararii,
Propolæ linteones calceolarii,
Sedentarii sutores diabathrarii—
Solearii astant, astant molocinarii,
Petunt fullones, sarcinatores petunt,
Iam hosce absolutos censeas: cedunt petunt
Trecenti: circumstant phulacistæ in atriis,
Textores linbularii, arcularii:
Aut aliqua mala crux semper est quæ aliquid petat."

The extravagance of the women is rather a favourite subject of attack with Plautus. Adelphasium, in a beautiful passage in the 'Pœnulus,'

describes how the whole day is frittered away in bathing, polishing, painting, and such operations, and in 'Epidicus' we have an enumeration of the vast variety of dresses which they wore. It may be questioned how far these descriptions were taken from the Greek, and how far they are applicable to Roman women. Wagner supposes that the passage in the 'Aulularia' refers to Roman women, and bases on it an argument for the date of the play. It is scarcely possible to imagine that Plautus would have introduced such passages if they did not tell, but it would be difficult to fix the date of the commencement of extravagance among the Roman ladies. All we can affirm with certainty is that there must have been extravagance in some shape or other, and it is interesting to note how, at this early stage of it, it had already begun to frighten men from marriage. Here are the reasonings of a bachelor, somewhat compressed from 'Miles Gloriosus': [\[242\]](#)__

"*Pe.* By Hercules, it is a splendid thing to be a bachelor. If a good wife were to be got anywhere in the world, that would alter the case; but where am I to find such an one? And do you think, am I to bring to my house a woman who will never say to me, 'Buy a nice warm coat for yourself, to keep the cold away this winter,' but, on the contrary, who will awake me out of sleep before the cocks crow, and say to me, 'Now, dear, give me some money to make a present with to my mother on the calends of March; or give me some money to buy stuff for making sweetmeats; give me some money to give to the witch and the dream interpreter,' &c.? Then I don't need children. I have plenty of relatives. I live as I like—no one to interfere with me—and when I die I shall leave my possessions to my friends; they know that, and take good care of me. They come and see what I am doing and what I wish. Before daybreak they are at my door, asking how I slept in the night. They sacrifice, and then send the best part to me. They invite me to breakfast and dinner, to all their feasts, and they all vie with each other in sending me gifts. Of course I know why—but what matters that? They nurse me and bestow gifts on me."

The wives, then, in Plautus, are not represented in the most amiable colours. The old men stand in most awful dread of their old girls, as they called them. Dæmones, for instance, is afraid to look at Palæstra and Ampelisca, lest his wife fly upon him. Menæchmus gives a most vivid picture of the prying propensities of his wife. And some of them have wonderful command of abusive language, and rate their husbands in no measured terms. They even play most insolent tricks on them, as in the 'Casina.' But bad as some of these wives may have been with their extravagance and their tongues, they are not accused of unfaithfulness. The Romans and Greeks agreed with the French in making the fathers select the wives for their sons, but they differed from them in having divorce

procurable on comparatively easy terms. And this circumstance makes a wide difference in the plots of their respective dramas. The plot of such a piece as ‘*La petite Mariée*’ would be as utterly repulsive to a Roman audience as to an English. There is not one instance throughout the twenty plays of Plautus in which the virtue of a married woman is assailed. We might except, from a modern and an early Christian point of view,^[243] Jove’s amour with Alcmena, but in the Roman opinion Alcmena and her husband were honoured by this marked token of a god’s favour. There is one instance in which the man himself, the braggart soldier, supposes that he has committed the crime. He is led to believe that a courtesan is really a married woman and that she is dreadfully in love with him, and he yields to the deception. He is severely punished for it in the end, and acknowledges that he has well merited what he has received.

The absence of freedom before marriage is not, however, without its evil consequences. The young men had generally got attached to some handsome slaves before they married, and the old men seemed very much inclined to renew their youthful recollections by pranks of a similar nature. This is the cause of the most serious quarrels between husband and wife. In one passage the unfairness of the position of husband and wife in this respect is set forth, though not by a wife, but by a slave:—

“By Castor, wives live on hard terms, and much more unfair—poor wretches that they are—than their husbands. For if the husband has his courtesan without the knowledge of his wife, and she comes to know, he gets off scot-free; but if the wife go but to the outside without the knowledge of her husband, the husband has a case made for him, and she is divorced. Would that there were the same law for husband as for wife! For a good wife is content with one husband, why should not a husband be content with one wife?”^[244]

When the wife thinks that she is badly used, she generally sends for her father. She expects him either to effect a reconciliation, or procure the return of her dowry and a divorce. In some cases, as in that of *Menæchmus*, the father takes the side of the husband and counsels submission.

Though there are some bad wives, there are also some very good. Foremost among these is Alcmena in the ‘*Amphitruo*.’ She is a true, loving, faithful wife. She greets her supposed husband on his return from war with the kindest welcome. She is never impure even in any single thought, but is simply chaste throughout, even in scenes which might have tempted the poet to pander to his rough audience. She is astonished and amazed at the

suspensions of her real husband, but no consideration will make her confess to a crime which she has not committed. She always retains the dignity of stainless purity. But if jealousy is to rule his soul, she is willing to part from him, and asks her dowry:—

“Valeas: tibi habeas res tuas, reddas meas.

Juben’ mihi comites?

“*Jup.*

Sanan’ es?

“*Al.*

Si non jubes,

Sinito: Pudicitiam egomet comitem duxero.”

When at length her husband confesses that he was wrong, she is ready at once to receive him back into her affection, and restore him all the old love. The resemblance between her character and some of the circumstances of her life and those of Desdemona has struck some critics, and is worth examination. Both Molière and Dryden have imitated the ‘Amphitruo’ of Plautus, but there cannot be a doubt that the play of the Roman is the purest of the three and that of the Englishman the most impure, and that the character of Alcmena is not improved by Molière, if not deteriorated, and is certainly made worse by the handling of Dryden. There is another wife in Plautus whose character is very beautiful, so far as we have a glimpse of it. In the opening scenes of the ‘Stichus,’ there are two married sisters, bearing the names of Panegyris and Pinacium in the old editions, but those of Philumena and Pamphila in the Ambrosian palimpsest. Their husbands have been a considerable time away from them, and their father thinks that they might now come under his protection, and marry again according to a liberty allowed by law in the case of absconding husbands. Pamphila (Pinacium) has strong affection for her husband, and refuses. She thus urges her sister to continue faithful:—

“It is reasonable, in my opinion, that all wise people should attend to and do their duty. Wherefore, I, though I am younger than you, warn you to remember your duty; and if our husbands should be wicked, and should act otherwise than is right, so much the more, by Pollux, does it become us to remember to do our duty with might and main.”[\[245\]](#)

She is resolved also to be firm towards her father, but at the same time, as she has a true affection for him and respect for his authority, she will not have recourse to any other means than earnest entreaty. Unfortunately

Pamphila disappears from the play after the introductory scenes, or if she appeared again, that portion of the play has been lost.

There is one other free woman who deserves special notice—the priestess of the Temple of Venus in the ‘*Rudens*.’ Priestesses, as Benoist has remarked, had much more liberty of movement than ordinary matrons, and could appear in public on many occasions on which the others could not. When Palæstra and Ampelisca flee to her temple for refuge, she is astonished to find that they have not come in white garments, and with victims, as visitors to a temple should; but no sooner does she learn the real state of the case than she remembers mercy, and not sacrifice, and gives them a hearty welcome. With all the power she possesses she will defend and help them.

“I don’t think,” says Ampelisca, in regard to her, “that I ever saw any old woman more deserving the blessing of gods and men. How tenderly, frankly, honourably, and ungrudgingly did she take us to herself—trembling, needy, wet, shipwrecked, and fainting creatures that we were; not otherwise than if we were her own daughters.

How she tucks up her dress and herself warms the water that we may bathe.”^[246]

A truly Christian woman, and not merely, as Benoist makes her, “*Fere Christiana et Christianis sensibus animata*.”

The second class of women were practically outcasts from society, and they knew it, and acted accordingly. Some might take to spinning and other feminine occupations; but a large number were either definitely set apart by the slave-dealers for the pleasure of men, or applied themselves to the trade as the easiest means of livelihood. Very frequently they strove to attain their liberty, and through their influence with their lovers they often succeeded. But they could not marry, and therefore continued to live the life in which they had been trained, or dealt in slave-girls. The whole mode of life of such women could not but brutalize them. And some of the characters which Plautus gives us exhibit the lowest coarseness and utter and irredeemable selfishness. They looked upon men as their victims. Men are the sheep that they have to fleece. The courtesan woman who would dream of being faithful to one man is a fool. She must have money. As soon as a man is ruined he must be turned out of doors; and the next rich idiot that comes must be fleeced in a similar manner. Such sentiments are common to the whole class; but there are shades of differences in the characters. Some are absolutely mercenary. They have no heart, and know and allow that they

have none. They are fond of coarse language. They are strongly addicted to wine; and they have almost no interest in anybody. Others, on the contrary, are fond of one man above another, so long as he has money. They are cultivated and witty. They know how to dress well, and have studied all the arts that can attract. They can give nice little dinner-parties; they take an interest in their serving-maids; they have kindly feelings towards those who have brought them up. But there is still, in Plautus's portraiture of them, a radical hardness of heart. They are selfish to the backbone, fond of dress, and inclined to wine, and will probably end like the others in becoming free, drunken, and traffickers in young slave-girls. [\[247\]](#)

There is one curious and notable series of exceptions to this degradation. The Greeks viewed these outcasts from society with a very friendly eye. They recognized the fact that it was their destiny that had put them into the difficult circumstances with which they had to struggle. And when these women happened to have great powers of mind, or were particularly pleasing, the Greeks chose them as companions for life, and if they could not make them their wives, they treated them as such, and were very kind to them. Thus Pericles lived with Aspasia, and Sophocles with the mother of the father of his favourite grandson. But in Plautus there is not one instance of such a connexion. There are, however, three or four beautiful characters among the slave-girls—Selenium, Planesium, Adelphasium, and Palæstra. They are modest and kindly. They wish to live with one man. Like the Mirah of 'Daniel Deronda,' they move about in bad society, and are exposed to every temptation, but by a miraculous providence they remain pure. M. Benoist, probably touched by compassion, thinks that Palæstra is the most lovely of these characters. We are inclined to give the palm to Adelphasium in the 'Pænulus,'—though perhaps she is somewhat prim—because we can judge her better, since the play affords more scope for the development of her character. All these girls are found in the end to be freeborn. They have been exposed or stolen in early childhood. Marks of identification go with them in their wanderings. And at last the happy father recognizes his long-lost child, and the lover is delighted with the thought that he can marry.

These, then, were the girls with whom the young Greeks and the young Romans had to fall in love, and fall in love they did. But this love was rarely anything else than a mad, headstrong, and even bestial passion.

Rarely could the Romans have come in contact with such women that they could realize the fine remark of Steele, "To have loved her was a liberal education." And indeed the Romans seem to have looked on love as one of those fits which come upon a man once or twice in his life, and which, like too much wine, made him stagger and reel for a time, and then left him in his older years a more sedate and indifferent person. Some such love intrigue occurs in almost every play of Plautus. There are three plays in which no female character appears—the 'Captivi,' the 'Pseudolus,' and the 'Trinummus'; but even into two of these love is introduced. In the second the whole play is concerned with the acquisition of a courtesan girl, and in the 'Trinummus' Lesbonicus has lost his property through love, and Lysiteles has one or two long speeches on the ruin that attends the lover.

Several writers have adduced many passages from Plautus to show that he did not think it a wrong thing for a young, or even for an old man, on a rare occasion, to have intrigues with these courtesans.^[248] The fact cannot be denied. But it is also true that Plautus uniformly represents the residences of these women as the jaws of ruin. The 'Truculentus' is throughout a powerful representation of the utter selfishness of the class. The young man Diniarchus wastes his means on them, is ruined, and receives no pity from them. And the upright pedagogue, Lydus, in the 'Bacchides,' describes the house of the courtesans in language which might have suggested to Dante his inscription over the portals of hell. "Unbar and throw open quickly this gate of hell (Orcus), I beseech you, for I deem it no other, for no one comes here but he whom all hopes have abandoned of being virtuous."^[249]

We may take a glance at the mode in which love-making went on in those days. Gaston Boissier thinks that Plautus is peculiarly happy in his portrayal of a lover's feelings. He appeals to a passage in the 'Curculio' where Phædromus, a young man, thus addresses the door of his sweetheart's house:^[250]—

“Pessuli, heus pessuli, vos saluto lubens,
Vos amo, vos volo, vos peto atque opsecro,
Gerite amanti mihi morem amœnissumi;
Fite caussa mea ludii barbari,
Sussulite, opsecro, et mittite istinc foras,
Quæ mihi misero amanti exhibit sanguinem,
Hoc vide ut dormiunt pessuli pessumi
Nec mea gratia conmovent se ocus.”

Or the language of Diniarchus when Phronesium appears:[\[251\]](#)—

“Ver vide
Ut tota floret, ut olet, ut nitide nitet.”

He affirms that such passages justify the opinion of Ælius Stilo that if the muses wished to speak Latin, they would have used the language of Plautus.

I shall quote two of the passages in which Plautus exhibits love-making. The one is from the ‘Asinaria’ (664), and gives the epithets which women used towards men.

A slave, Leonidas, has contrived to get possession of a sum of money which a slave-girl requires, in order that she may be permitted to have interviews with his young master. The slave is conscious of his power over the girl, and wishes to tease her by keeping the money from her for some time. So she says to him:—

“Give me the money, my dear little eye, my rose, my soul, my delight: do not, I entreat you, separate us lovers.

“*Leon.* Come now, just call me your little sparrow, your chick, your quail, your lambkin, your little kid, or your little calf. Just seize me by the dear little ears, and put dear little lips to dear little lips.”

And so the slave goes on bantering her. The last expression I may explain by the way. It refers to a curious mode of kissing practised by Greeks and Romans. When a person wished to give a good hearty kiss to one very dearly beloved, he seized her by the ears and performed the operation with more comfort and heartiness. Another slave, partner with Leonidas, afterwards asks her to call him by some other sweet names. The girl addresses him, “My Libanus, my golden little eye, the gift and glory of

love, if you please, I'll do what you wish: only do give me the money." "Just then," he says, "call me your duckling, your dove, your puppy, your swallow, your jackdaw, your little sparrow, your little boy." Such were the endearing epithets which the young women addressed to the young men. Now for those addressed to the young women by the young men. In the scene I am to adduce, a young man has asked his slave to try to gain for him the affections of a slave-girl of whom he is enamoured. The slave sets to work at once. The young man Agorastocles asks Milphio the slave, [\[252\]](#)

"Why is this girl angry with me?"

"*Mil.* Why is this girl angry with you? Why should I care about that? That is your look-out.

"*Ag.* By Hercules, you may drown yourself if you don't make her as tranquil as the sea used to be when the halcyon led forth its young ones on it.

"*Mil.* What am I to do?"

"*Ag.* Entreat her, butter her, stroke her.

"*Mil.* I will do it carefully. Only take you care that you don't afterwards heckle with your fists the man here who now acts as your ambassador.

"*Ag.* I won't."

The girl here says, addressing Agorastocles:—

"Let us go now. Are you still hesitating? You make big promises; but nothing ever comes of them. You have sworn to free me, not once, but a hundred times: alas, I am still a slave."

The bashful lover utters the sad ejaculation:—

"It's all up with me—eho!"

And then, bethinking him of his ambassador and spokesman, he says to Milphio:—

"What are you about, Milphio?"

Milphio begins the attack thus:—

"My delight, my darling, my life, my pleasure, my little eye, my little lip, my health, my kiss, my honey, my heart, my sweet new milk, my nice little soft cheese."

Agorastocles can't stand this, and he can't help speaking to himself:—

"Am I to endure these things being said in my presence? I am tortured, if I don't order him off to the hangman."

Milphio goes on:—

“Do not, I beseech you, be angry with my master. If I don’t—now I see you are angry—I am sure he will make you free.

“The Girl. Why won’t you let me go? What do you mean?

“Mil. If my master has formerly played false with you, ever after this he will be true to you.

“The Girl. Get away with you.

“Mil. I’ll go; but only on one condition: just let me entreat you, let me seize you by the ears, let me give you a kiss. By Hercules, I shall make him lament, if I don’t make you merciful. And I fear he will thrash me soundly, that will he, unless I win you to him. I know the bad habits of the cross-tempered fellow. Wherefore, my delight, I do beg you, be prevailed on.”

Agorastocles turns to Milphio in a rage:—

“I am not worth a farthing if I don’t kick that rascal’s eyes and teeth out. Hem! there is a pleasure for you [gives him a blow]! there’s honey! there’s a heart for you! there’s a little lip for you! there’s health for you! there is a kiss!

“Mil. Oh, master; you are committing sacrilege in beating your ambassador.

“Ag. There’s some more for you then [lays into him]. I’ll give you also your little eye, and your little lip, and your tongue to the bargain.

“Mil. What in the world are you going to do?

“Ag. Did I not order you to entreat her?

“Mil. How then should I do it?

“Ag. Why, you scoundrel, you should have said, ‘The delight of this man, I entreat you, his honey, his heart, his little lip, his tongue, his kiss, his sweet new milk, his pleasant health, his merriness, his sweet little cheese,’ you whip-dog; ‘his heart, his desire, his kiss,’ you whip-dog. All that you said were yours you should have called mine.”

Milphio acts at once on his instructions, and addresses the slave-girl:—

“By Hercules, I beseech you, his pleasure and my hatred, his most dearly beloved friend, my enemy and ill-wisher—his eye, my blear eye, his honey, my vinegar. Don’t be angry with him; or if that can’t be——”

The girl stops him and says:—

“Take a rope and hang yourself with your master and fellow-slaves.

“Mil. It is no go. I’ll have to live on gruel, and now bear a back streaked like an oyster, with marks of the lash, all on account of your love.”

And so poor Milphio gives love-making up as a bad job.

CHAPTER III.

WOMEN IN THE ROMAN PERIOD.

(1) WOMEN IN ASIA MINOR.

The information about these women comes out in the inscriptions which have been collected in the various towns and provinces of Asia Minor. M. P. Paris has brought together the facts that can be obtained from these inscriptions in his thesis "*Quatenus feminae res publicas in Asia Minore, Romanis imperantibus, attigerint, Parisiis, 1891.*" M. Paris is inclined to think that the magistracies during the Imperial times had no important duties assigned to them except those of religion, and that therefore women could well perform them. If there were civil duties, he thinks that they were not asked to discharge these. He is guided much in this opinion by his sense of what it becomes a woman to do, but in the end of his thesis he has to acknowledge that women did take part in political and civil matters, though these were not becoming to them. He allows that at least one woman did discharge all the duties of a magistrate. The inscription recording the fact is as follows: "The senate and people honoured Aurelia Harmasta, also called Tertia, the daughter of Medon and chaste wife of Artemas, of the highest birth, who acted as priestess of Hera the Queen, and as demiourgos, and as chief priest, and did all that was usual in such occasions. Aur. Arteimianus Dileitrianus Arteimas, her husband, erected the statue."^[253] The demiourgos was one of the chief magistrates.

M. Paris draws special attention to these inscriptions which he himself and M. Radet discovered at Sillyium, in which a woman of the name of Menodora is praised. The first inscription begins: "The senate and people honoured her as a priestess of all the gods and a hierophantis for life and a decaprote, also as demiourgos and gymnasiarch." Then the inscription details the extraordinary gifts which she bestowed on her native city, including a large sum for the maintenance of children. The other two inscriptions are of a similar nature.

M. Paris can find no other explanation of the activity of woman in Asia than in the altered and decaying state of affairs in that country during the

Roman Empire. But it is remarkable that the matriarchate existed in Lycia longer than in most places. [\[254\]](#)

(2) THE SPEECH OF AUGUSTUS ON MARRIAGE.

The opinions expressed in the speech of Augustus were to be found in a series of works on marriage, which appeared from the time of Zeno to that of Libanius. They all agreed that it was the duty of every citizen to marry, and they assigned nearly the same reasons as those adduced by Augustus. A slight exception is made by Theophrastus, who came to the conclusion that the philosopher ought not to marry, on account of the entanglements and distractions which marriage generally brought along with it. As most of the philosophers who wrote on the subject of marriage were Stoics, Praechter supposes that at the earliest period of Stoicism marriage became a topic of regular discussion, and so the commonplaces of the school were handed down from one to the other. Bock, on the other hand, thinks that the initiative is due to Aristotle.

Clemens Alexandrinus made use of the Stoic materials, and especially of the works of Musonius, but he differed from the Stoics in thinking that men were not bound to marry: marriage was lawful and beneficial, but not obligatory. He agreed with Zeno, [\[255\]](#) Musonius, Plutarch, and other writers in the opinion that women ought to receive the same kind of education as men, due regard being paid to the peculiar physical constitution of women. [\[256\]](#)

Praechter gives a list of the various writers who have discussed marriage. [\[257\]](#)

(3) MEDICAL WOMEN.

Women from an early date tried to cure diseases, and in Homer special mention is made of Hecamede who mixed potions. Frequent notice is taken in post-Homeric times of midwives and their art, and doubtless some women applied themselves to a complete study of medicine, practised the art whenever they had opportunity, and contributed to the advancement of medical science. Mélanie Lipinska has written an interesting account of these women. A story in the work bearing the name of Hyginus (*Hygini Fabulæ*), [\[258\]](#) written probably in the reign of Augustus, with later

interpolations, proves that in the time of its production it was believed that women had practised in Greece. The fable states that Chiron the Centaur first founded the art of the surgeon from herbs, Apollo first introduced the cure of the eyes, and Asclepius discovered clinical medicine. The ancients, it goes on to say, had no midwives, in consequence of which women, through modesty, perished, for the Athenians had decreed that no slave or woman should learn the art of medicine. A girl of the name of Agnodice longed to learn this art, and cutting off her hair, and putting on the dress of a man, she went to a person named Hierophilus, and learned from him the art. After making this acquisition she happened to hear a woman crying out in the pangs of labour, and she went up to her. The woman refused her proffered aid, because she thought that Agnodice was a man—but Agnodice at once gave clear proof of her sex, and was allowed to cure her. Somehow the women of Athens came to know of this, and Agnodice was constantly called in. The doctors were furious at her success, for of course the women refused them admission, and they accused her before the Areopagus of corrupting her patients; Agnodice would have been condemned, had she not taken off her male garments before the judges and proved her sex. But the doctors were only the more infuriated. Whereupon the chief women of Athens went to the court and said, “You are not husbands but enemies, for you condemn her who has saved our lives.” Then the Athenians amended their law, making it legal for freeborn women to learn the art of medicine.

(4) WOMEN IN EGYPT.

In a complete survey of the influence of women in ancient times notice would have to be taken of a remarkable set of women who appeared in Macedonia, Epirus, and especially in Egypt from about 333 B.C. to the beginning of the Christian era. These women took a prominent part in public affairs. Some of them led armies and fought personally on the battlefield. They entered into alliances, carried on endless intrigues, and wielded much power. But they were all members of royal families, wives or daughters of kings, and often styled queens. Justin says in regard to one reign that the government was carried on in the name of the son, but it was the mother that exercised the sway. In Egypt there was a continuous effort on the part of the women of the royal family to mingle in public affairs. And finally they succeeded in obtaining the mastery. The most famous of them, Cleopatra the VIIth, though governing nominally along with her brother,

was the supreme ruler, and possessing all the rights of an absolute ruler, as Strack says, held in her hand for many years the Sceptre of Egypt, and directed the rudder of the Ship of State according to her own good pleasure.

But the public influence of these women was not shared by those who did not belong to the royal families. And the history of their lives is gathered from imperfect notices and from historians who have no claim to implicit confidence.

Helbig was among the first to draw attention to this subject. Rohde enlarged his notices with critical insight; the details are to be found scattered in Droysen, Mahaffy, and Strack. An excellent account of the position of women in Ptolemaic Egypt is given by Miss Rachel Evelyn White in her article in the 'Journal of Hellenic Studies.'^[259] Mahaffy supplies a fair idea of the nature and difficulty of the subject in his remarks on Cleopatra:^[260] "We shall have more to say of the younger Cleopatra, this queen's sister, who spent her life in Egypt. When modern people wonder at the daring of the last of the series, who has been embalmed in the prose of Plutarch and the verse of Shakespeare, they seldom know or reflect that she was but the last of a long series of princesses, probably beautiful and accomplished, certainly daring and unscrupulous, living every day of their lives in the passions of love, hate, jealousy, ambition, wielding the dominion over men or dying in the attempt. But, alas! except in the dull and lifeless effigies on coins, we have no portraits of these terrible persons, no anecdotes of their tamer moments, no means of distinguishing one Cleopatra from the rest, amid the catalogue of parricides, incests, exiles, bereavements!"

The papyri recently discovered throw much new light on the position of women in Egypt, but some difficult questions will not be settled until further discoveries of papyri are made. Especially perplexing is it to settle what is purely Egyptian and what changes were introduced by Greek and Roman usages. Some points, however, are quite clear. It is certain, for instance, that it was usual for brother and sister to marry, and the arrangement was deemed particularly suitable when inheritance of property was concerned. The marriage of the sister to the brother smoothed the way to satisfactory settlements. It is also on all hands allowed that the rights of women are protected and the wife holds an advantageous position in the marriage contracts which have come down to us. "A predominance," says

Ruggiero, “of the man over the woman, a suggestion of such an idea in its earliest stage, any hint, in fine, of marital authority is entirely wanting.”^[261]

There were two kinds of marriages, the ἄγραφος γάμος and the ἔγγραφος γάμος, the marriage without a full written contract and the marriage with a full written contract. The first seems like a Scotch marriage, where the parties agree to marry and to live with each other, but do not make complete stipulations as to property and children. With regard to this form the information is deficient and the opinions of scholars are divided in regard to some details of it.

The ἔγγραφος γάμος implied a fully drawn-out contract of marriage. Express mention is made of the dowry and the means of supporting the wife and the conditions of a dissolution of the marriage in regard to property and often in regard to children. The early Egyptians do not seem to have made wills, and they embodied the substance of what would have been their wills in their marriage contracts.

Marriage was a matter of purely civil contract. Each party entered on the marriage without any constraint, and each party could cancel the contract and thereby the marriage. In the strict sense of the word there could be no divorce. No legal judgment was required for cancelling the marriage contracts. It is a remarkable circumstance that in all the documents cancelling the marriage contracts which have come down to us no mention is made of the reason which led to the annulling of the contract. Only once it is suggested that “some evil daimon” may be at the bottom of it.^[262] The arrangements in cancelling marriage contracts are strongly in favour of the wife. Nietzold, after describing in detail the conditions laid down in such documents, says: “According to all these arrangements the wife takes a very favourable position. She has by the separation absolutely nothing to lose, even when she is the guilty party.”

The reader may form a good idea of what was involved in a regular marriage from a marriage contract which, with Dr. Grenfell’s permission, I subjoin. It is a contract (92 B.C.) belonging to the period of the Ptolemies, when Greek influence was strong, but at the same time it well represents generally the contents of all Egyptian contracts. It appears in the ‘Tebtunis Papyri,’ Part 1., p. 452.

“The 22nd year, Mecheir 11. Philiscus son of Apollonius, a Persian of the Epigone, acknowledges to Apollonia, also called Kellauthis, daughter of Heraclides, Persian, with her guardian, her brother Apollonius, that he has received from her in copper money 2 talents 4,000 drachmae, the amount of the dowry for Apollonia agreed upon with him.... The keeper of the contract is Dionysius.”

“In the 22nd year of the reign of Ptolemy, also called Alexander, the god Philometor, in the priesthood of the priest of Alexander, and the rest as written in Alexandria, the 11th of the month Xandicus, which is the 11th of Mecheir, at Kerkeosiris in the division of Polemon of the Arsinoite nome. Philiscus, son of Apollonius, Persian, of the Epigone, acknowledges to Apollonia, also called Kellauthis, daughter of Heraclides, Persian, with her guardian, her brother Apollonius, that he has received from her in copper money 2 talents 4,000 drachmae, the dowry for Apollonia agreed upon with him. Apollonia shall remain with Philiscus, obeying him as a wife should her husband, owning their property in common with him. Philiscus shall supply to Apollonia all necessities and clothing, and whatever is proper for a wedded wife, whether he is at home or abroad, so far as their property shall admit. It shall not be lawful for Philiscus to bring in any other wife but Apollonia, nor to keep a concubine or lover, nor to beget children by another woman in Apollonia’s lifetime, nor to live in another house over which Apollonia is not mistress, nor to eject, or insult, or ill-treat her, nor to alienate any of their property to Apollonia’s disadvantage. If he is shown to be doing any of these things, or does not supply her with necessities and clothing, and the rest, as has been said, Philiscus shall forfeit forthwith to Apollonia the dowry of 2 talents 4,000 drachmae of copper. In the same way it shall not be lawful for Apollonia to spend the night or day away from the house of Philiscus without Philiscus’ consent, or to have intercourse with another man, or to ruin the common household, or to bring shame upon Philiscus in anything that causes a husband shame. If Apollonia wishes of her own will to separate from Philiscus, Philiscus shall repay her the bare dowry within ten days from the day it is demanded back. If he does not repay it as has been stated, he shall forthwith forfeit the dowry he has received increased by one half. The witnesses are Dionysius son of Patron, Dionysius son of Hermaiscus, Theon son of Ptolemaeus, Didymus son of Ptolemaeus, Dionysius son of Dionysius, Heracleus son of Diodes, all six Macedonians of the Epigone; the keeper of the contract is Dionysius.

(Signed) I, Philiscus, son of Apollonius, Persian of the Epigone, acknowledge the receipt of the dowry, the 2 talents 4,000 drachmae of copper, as above written, and I will act with regard to the dowry as ... I, Dionysius, son of Hermaiscus, the aforesaid, wrote for him as he was illiterate. I, Dionysius, have received the contract, being valid. Registered the 22nd year, Mecheir 11.”

CHAPTER IV.

WOMEN IN THE ANTE-NICENE PERIOD.

(1) INFLUENCE OF CHRISTIANITY ON WOMEN.

One of the most recent utterances on this point occurs in Bishop Wordsworth's book 'The Ministry of Grace.' He says, ^[263] "Of all the revolutions introduced by Christianity into the social life of mankind the new position given to women has been, perhaps, the most remarkable and the most fruitful in results." Zscharnack, who has written by far the most thorough book on the subject, speaks with much more caution. ^[264] "In the first place," he says, "it cannot be proved that to Christianity alone is due the honour of the emancipation of women and the realization of the true conception of marriage; rather had Greece as well as the social relations in Rome prepared the way in this matter, as in the question of the emancipation of slaves, to no inconsiderable degree. And second, it ought not to be overlooked that this so-called (Christian) appreciation of marriage did not at all succeed in putting aside the ancient immediately and everywhere."

(2) CALLISTUS.

The bishop referred to is Callistus, who was bishop of Rome from 218 to 223. Hippolytus, in his 'Refutation of all Heresies,' denounces him as an unmitigated scoundrel. Among other accusations he reproaches him with his opinions and conduct in regard to marriages. ^[265] "This man," he says, "issued a decree that, if a bishop was guilty of any sin, if even a sin unto death, he ought not to be deposed. In his time bishops, priests, and deacons, who had been twice married and thrice married, began to be appointed to their orders. If, also, any one who is among the clergy should marry, he decreed that such an one should continue among the clergy as a person who had not sinned."

Further on, he continues: "And the hearers of Callistus being delighted with his decrees (doctrines), continue deluding themselves and many besides, crowds of whom flock together in his place of teaching. Therefore their numbers increase, they boasting of their multitude, on account of the

pleasures which were not permitted by Christ, whom despising they do not put restraint on any sin, alleging that they pardon those who are pleased with his (Callistus's) opinions. For he even permitted women *of high rank, if they were unmarried and burned with passion through their time of life, and if they were not disposed to lose their own rank through a legal marriage, to have one man whom they might choose as a bedfellow, whether a slave or free, and to deem him in place of a husband, though she had not been married to him legally.* Whence women, reputed believers, began to resort to drugs for producing sterility, and to gird themselves round so as to expel what was being conceived on account of their not wishing to have a child either by a slave or by a mean fellow, on account of their family connexions and their excessive wealth. Behold into how great impiety that lawless person has proceeded, teaching adultery and murder at the same time, and withal, after such audacious acts, they, lost to all shame, attempt to call themselves a Catholic Church."

The printed part in italics is based on an amended text. The text adopted is that proposed by Abbé de Hir and approved by de Rossi. It embodies the emendations of several critics and contains the fewest changes. But though the text is corrupt, there can be no doubt of the general sense. Callistus claimed for women the privilege which was accorded to men. Senators were not allowed to form a legal marriage with freedwomen, but they might have them as concubines. Callistus allowed a similar liberty to women of senatorial families. These women could not marry a freeman who was an actor or whose father or mother had been actors, nor could they marry a freedman, and no Roman could marry a slave. If they went through any form of marriage with such persons, the marriage was null and void. But Callistus declared that a permanent union of a senatorial woman with a man of the humbler class or with a slave was a real marriage, notwithstanding the law. Probably he extended the permission more widely, and declared that any permanent union between one Christian and another was a real marriage. He might reason that a marriage between two people who were citizens of heaven was as valid as a marriage between two citizens of Rome, and if it was carried out with the sanction of the bishop and the church it mattered not whether it was according to Roman law or not. And thus a senator might marry a freedwoman or a slave, though the law regarded such marriages as null and void. It is not unlikely that the *lex de maritandis ordinibus*, while forbidding senators to marry freedwomen, laid

down no special directions in regard to the marriage of daughters of senators.^[266] But when some of these became Christian, they would find it difficult to marry in their own rank, and, adopting the Christian ideas of brotherhood and the equality of all men in the sight of God would ally themselves with the forbidden classes. If any of them formed a union with a converted actor or with the converted son of an actor or with a slave, her conduct would excite the utmost indignation among the aristocratic classes. Some such incidents may have induced Marcus Aurelius to take the matter up—for the legislation prohibiting the daughters, granddaughters, and great-granddaughters of a senator from marrying a freedman occurred first in a speech of that emperor which was followed by a decree of the senate.^[267]

The statements of Hippolytus in regard to the motives of senatorial women for marrying actors or freedmen or slave may be regarded as mere calumnies. The senatorial women could legally marry men of equestrian or plebeian rank, but they and their children took the rank of the husband, and they were subject to the contracts involved in the marriage. But if they married an actor, freedman, or slave, it was no legal marriage, there was no contract and no loss of rank or of property. Such marriages had their disadvantages. The children were illegitimate and the husband might at any time refuse to acknowledge his wife. Besides this, if the woman did not lose her rank legally, no doubt she would be repudiated by all her aristocratic friends. There was, therefore, no great temptation to enter on such marriages.

Allard^[268] maintains, as a good Catholic, that Pope Callistus, in issuing such decrees, and declaring such unions legitimate before God, proclaimed loudly the distinction between the civil law and the religious law, and the independence of Christian marriage. But though it is likely that many Christians in the earlier period of Christianity agreed with the opinions of Callistus, yet there is nowhere any definite statement of this, and Callistus stands unique in the matter in the first three centuries. The passages which have been adduced by Allard prove nothing. In the Epistle to Polycarp,^[269] attributed to Ignatius, occur the words, “It becometh men and women who marry to make their union with the consent of the bishop, that the marriage may be according to the Lord, and not according to lust.” But here, and in all other passages adduced, there is nothing said of the nature of the

marriage. Certainly Hippolytus speaks in the strongest language against Callistus, and it is likely that Callistus is the person attacked by Tertullian in his 'De Pœnitentia.' Allard is forced to allow that the legislation of the Christian emperors did not follow the suggestions of Callistus. The laws may be read in Bingham's chapter on the impediments of marriage in his 'Antiquities of the Christian Church.'^[270]

Though Hippolytus is very severe on Callistus, he speaks of Marcia, the concubine of Commodus, as "a God-loving concubine."^[271] He states that Callistus was a slave, and if this were the case the bishop's own experiences would be a strong stimulus to his action.^[272]

BIBLIOGRAPHY.

This is not a bibliography in the strict sense of the term. It does not aim at completeness. It is a list of the works specially relating to the subject of the book which have been used during its composition and revisal, and it includes only those treatises in which some contribution is made towards the elucidation of important points. I have omitted a considerable number of programmes which seem to me in no way to advance our knowledge. I have also omitted a large number of text-books, and of books such as Becker's 'Charicles,' and 'Gallus,' and 'The Life of the Greeks and Romans,' by Guhl and Koner.

There is a large number of books that deal with the history of woman in general, such as those of Alexander and Lord Kames. I have placed Mr. Lecky's book in my list because it mentions most of the works of this class. There are also numerous books treating of the history of marriage. Mr. Howard's able and comprehensive work has a full bibliography on this subject. Those who are interested in Sappho will find a list of books in Wharton's edition, though, of course, he does not include the latest collections of the Greek lyric poets, such as those of Farnell and Smith. The revelations made in the papyri of Egypt well deserve the attention of scholars. An enumeration of the marriage contracts contained in the papyri is to be found in 'Nietzold,' p. 26. Messrs. Grenfell and Hunt have admirably discussed the questions that arise out of the matrimonial documents. The tables of contents and the indexes in their edition of the papyri make them accessible to the scholar without trouble.

Achelis, N.—*Virgines subintroductae. Ein Beitrag zum VII Kapitel des I. Korintherbriefs.*—8vo, Leipzig, Hinrichs 1902.

Aristophanes.—*Specimen literarium inaugurale de Aristophane Euripidis Censore, quod annuente summo numine, ex auctoritate Joh. Henr. Scholten, publico ac solemni examini submittet Johannes van Leeuwen....*—8vo, Amstelaedami, Spin, 1876.

Armellini, T.—*De prisca refutatione Haereseon Origenis nomine ac philosophumenon titulo recens vulgata Commentarius.*—8vo, Romae, 1862.

Bachofen, J. J.—*Das Mutterrecht. 2 te Aufl.*—4to, Basel, Schwabe, 1897.

Backer, Louis de.—*Le droit de la femme dans l'antiquite; Son devoir au moyen age.*—12mo, Paris, Claudin, 1880.

- Bader, Mlle. Clarisse.—*La femme Grecque. Étude de la vie antique*, 2me éd., 2 tom.—12mo, Paris, Didier, 1873.
- Bader, Mlle. Clarisse.—*La femme Romaine. Étude de la vie antique*.—8vo, Paris, Didier, 1877.
- Bartsch, Dr. Robert.—*Die Rechtsstellung der Frau als Gattin und Mutter*.—8vo, Leipzig, Veit, 1903.
- Becq de Fouquières, L.—*Aspasie de Milet. Étude historique et morale*.—12mo, Paris, Didier, 1872.
- Bekker, Immanuel.—*Homerische Blätter*, 2 Bde.—8vo, Bonn, Marcus, 1863–72.
- Benecke, E. F. M.—*Antimachus of Colophon and the position of women in Greek poetry*.—12mo, London, Sonnenschein, 1896.
- Bennecke, Hans.—*Die strafrechtliche Lehre vom Ehebruch in ihrer historisch-dogmatischen Entwicklung. Abth. I. Das römische, canonische und das deutsche Recht bis zur Mitte des 15 Jahrhunderts*.—8vo, Marburg, Elwert, 1884.
- Benoist, L. E.—*De personis muliebribus apud Plautum*.—8vo, Massilia, Barile, 1862.
- Blaze de Bury, Henri.—*Les femmes et la société au temps d'Auguste*.—12mo, Paris, Didier, 1876.
- Blume, Ludwig.—*Das Ideal des Helden und des Weibes bei Homer, mit Rücksicht auf das deutsche Alterthum*.—8vo, Hölder, Wien, 1874.
- Bock, Felix.—*Aristoteles Theophrastus Seneca de matrimonio*.—8vo, Lipsiae, Hirschfeld, 1898.
- Bonwetsch, G. Nathanael.—*Die Geschichte des Montanismus*.—8vo, Erlangen, Deichert, 1881.
- Böttiger, C. A.—*Sabina; oder, Morgenszenen im Putzzimmer einer reichen Römerin*.—2 th., 12mo, Leipzig, Göschen, 1806.
- Brandt, P.—*Sappho. Ein Lebensbild aus den Frühlingstagen altgriechischer Dichtung*.—Leipzig, Rothbarth, 1905.
- Brinkmann, Wilhelm.—*Die Bedeutung der Frau für die sittlichen Aufgaben der Familie*.—8vo, Berlin, Hertz, 1892.
- Brohm, Rudolphus.—*De jure virginum vestalium*.—12mo, Thoruni, Grunauer, 1835.
- Brouwer, P. van Limburg.—*Histoire de la civilisation morale et religieuse des Grecs*, tom. 4. Part 2, *Depuis le retour des Héraclides jusqu'à la domination des Romains*, tom. 2.—8vo, Groningue, Bockeren, 1838.
- Bruns, Ivo.—*Frauenemancipation in Athen, Ein Beitrag zur attischen Kulturgeschichte des 5 u. 4 Jahrhunderts*.—8vo, Kiliae, Schmidt, 1900.
- Buchholz, E.—*Die Homerischen Realien*, in 6 parts, Zweiter Band, Zweite Abtheilung, *Das Privatleben der Griechen im heroischen Zeitalter, Auf Grundlage der Homerischen Dichtungen dargestellt*.—8vo, Leipzig, Engelmann, 1883.
- Buermann, H.—*Drei Studien auf dem Gebiet des attischen Rechts*.—8vo, Leipzig, Teubner, 1878.

- Bunsen, Christian C. J.—Hippolytus and his age; or, the beginnings and prospects of Christianity.—2nd ed., 2 vols. 8vo, London, Longmans, 1854.
- Caillemer, E.—Le droit de succession légitime à Athènes.—8vo, Paris, Thorin, 1879.
- Caspari, Otto.—Das Problem über die Ehe!—12mo, Frankfurt, Sauerländer, 1899.
- Chasles, Philarète.—L'antiquité.—12mo, Paris, Charpentier, 1876.
- Ciccotti, Ettore. Donne e politica negli ultimi anni della repubblica romana. Un saggio.—8vo, Milano, 1895.
- Comparetti, Domenico.—Saffo, nelle antiche rappresentanze vascolari.—4to, Estratto dal Museo italiano di antichità classica. (Vol. 2, Punt. 1^a a. 1886.)
- Cornwallis, Caroline F.—Selections from her letters. Also some unpublished poems, &c.—8vo, London, Trübner, 1864.
- Cruice, M. l'Abbé.—Études sur de nouveaux documents historiques.—8vo, Paris, Perisse, 1853.
- Decker, Friedrich.—Über die Stellung der hellenischen Frauen bei Homer.—Square 8vo, Magdeburg, Friese, 1883.
- De Vries, Scato.—Epistula Sapphus ad Phaonem.—8vo, Doesburgh, Lugd.-Bat., 1885.
- Dobschütz, Ernst von.—Die urchristlichen Gemeinden, Sittengeschichtliche Bilder. Leipzig, Hinrichs, 1902.
- Döllinger, J.—Hippolytus und Kallistus; oder, Die römische Kirche in der ersten Hälfte des dritten Jahrhunderts.—8vo, Regensburg, Manz, 1853.
- Drerup, Engelbert.—Über die bei den attischen Rednern eingelegten Urkunden.—8vo, Leipzig, Teubner, 1898.
- Droysen, Joh. Gust. Geschichte des Hellenismus, 2te Aufl., 3 th.—Gotha, Perthes, 1877–78.
- Drumann, Wilhelm.—Geschichte Roms in seinem Uebergange von der republikanischen zur monarchischen Verfassung. 6 thle.—8vo, Königsberg, Bornträger, 1834–44.
- Elliot, G. F. Scott, M.A.—A naturalist in Mid-Africa. Being an Account of a journey to the Mountains of the Moon and Tanganyika.—8vo, London, 1896.
- Es, A. H. G. P. van den.—Die jure familiarum apud Athenienses, libri tres.—8vo, Lugduni Batavorum, Brill, 1864.
- Feithius, Everhardus.—Antiquitatum Homeriarum, libri 4. Editio nova.—16mo, Argentorati, Steinius, 1743.
- Fêtes et courtisanes de la Grèce. Supplement aux voyages d'Anacharsis et d'Antenor ... 4me éd., tom. 1.—8vo, Paris, 1821.
- Ficker, Dr. Gustav, &c.—Eltern-Abende.—8vo, Wien, Deuticke, 1903.
- Finck, H. T.—Lotos-time in Japan, 2nd ed.—8vo, London, Laurence & Bullen, 1896.
- Forbiger, Dr. Albert.—Hellas und Rom. Populäre Darstellung des öffentlichen u. häuslichen Lebens der Griechen u. Römer.—2 bde. 8vo, Leipzig, Reisland, 1876.

- Foucart, P.—Les grands mystères d'Éleusis: Personnel—Cérémonies.—4to, Paris, Klincksieck, 1900.
- Friedlaender, Ludwig.—Darstellungen aus der Sittengeschichte Roms in der Zeit von August bis zum Ausgang der Antonine, 5te Aufl.—Th. 1, 8vo, Leipzig, Hirzel, 1881.
- Friedreich.—Realien in Iliade und Odyssee. S. 196 ff.
- Furtwängler, Adolf.—Masterpieces of Greek sculpture. A series of essays on the history of art. Ed. by Eugénie Sellers.—London, Fol., 1895.
- Gage, Matilda Joslyn—Woman, Church, and State. A historical account of the status of woman through the Christian ages, 2nd ed.—8vo, New York, Truth Seeker Co., 1899.
- Geffcken, Dr. Heinrich.—Zur Geschichte der Ehescheidung vor Gratian.—8vo, Leipzig, Veit, 1894.
- Geppert, C. E.—Ueber den Ursprung der Homerischen Gesänge.—2 th. 8vo, Weigel, Leipzig, 1840.
- Gide, Paul.—Étude sur la condition privée de la femme dans le droit ancien et moderne et en particulier sur le sénatus-consulte velléien ... 2me éd. par A. Esmein.—8vo, Paris, Larose et Forcel, 1885.
- Glötz, Gustave.—La solidarité de la famille dans le droit criminel en Grèce.—8vo, Paris, Fontemoing, 1904.
- Grasberger, Lorenz.—Die Ephebenbildung; oder, Die musische und militärische Ausbildung der griechischen und römischen Jünglinge.—8vo, Würzburg, Stahel, 1881.
- Gruppen, Christian Ulric.—Tractatio de uxore Romana.—12mo, Hanoverae, Foerster, 1727.
- Harnack, A.—Die Mission und Ausbreitung des Christenthums in den ersten drei Jahrhunderten.—8vo, Leipzig, 1902, 1st ed.; translated by Moffat, 2 vols. 8vo, London, 1904–5.
- Heineccius, Jo. Gottlieb.—Ad legem Juliam et Papiam Poppæam commentarius.—16mo, Venetiis, 1741.
- Helbig.—Die sittlichen Zustände des griech. Heldenalters, S. 73 ff.—8vo, Leipzig, Beyer, 1839.
- Henne am Rhyn, Otto.—Die Frau in der Kulturgeschichte.—8vo, Berlin, Verein f. deutsche Litt., 1892.
- Hermann, Karl Friedrich.—Lehrbuch der griechischen Privatalterthümer mit Einschluss der Rechtsalterthümer, 2te Aufl.... von Dr. Karl Bernhard Stark.—8vo, Mohr, Heidelberg, 1870; 3te Auflage von Hugo Blümner, 8vo, Freiburg I.B. und Tübingen, Mohr, 1882.
- Hermannus, Ioannes J. H.—De virginum vestalium jure deprecandi pro reis.—8vo, Lipsiae, 1762.
- Hir.—Abbé de Hir on Callistus in Études religieuses, historiques et littéraires par des Pères de la Compagnie de Jesus, 3 Series for the year 1865, Octobre, Novembre.—Paris.

- Hirmer, Joseph.—Entstehung u. Komposition der platonischen Politeia.—8vo, Leipzig, Teubner, 1897.
- Hogg, Rev. J.—An essay on the benefits conferred by Christianity on the condition of women....—8vo, London, Hatchard, 1816.
- Howard, George Elliott, Ph.D.—A history of matrimonial institutions.... Vol. I.—8vo, Chicago, 1904.
- Hruza, Ernst.—Die Ehebegründung nach attischem Rechte.—8vo, Erlangen u. Leipzig, Deichert, 1892.
- Hruza, Ernst.—Polygamie und Pellikat nach griechischem Rechte.—8vo, Erlangen u. Leipzig, Deichert, 1894.
- Jacob, P. L.—Les courtisanes de l'ancienne Rome.—12mo, Bruxelles, Brancart, 1884.
- Jacobs, Friedrich.—Vermischte Schriften, IV. Theil, Abhandlungen über Gegenstände des Alterthums.—12mo, Leipzig, Dyk, 1830.
- Jacoby, Felix.—Das Marmor Parium.—8vo, Berlin, Weidmann, 1904.
- Jahn, Otto.—Ueber Darstellungen griechischer Dichter auf Vasenbildern, Aus. Abhandl. d. K. S. Ges. d. Wiss. Bd. 8.—4to, Leipzig, 1865.
- Jörs, Paul.—Die Ehegesetze des Augustus.—8vo, Marburg, Elwert, 1894.
- Jurenka, H.—Zur Klärung der Sappho-Frage, Wiener Studien.—Wien, 1897.
- Kaehler, Fridericus.—De Aristophanis Ecclesiazuson tempore et choro quaestiones epicriticae.—8vo, Jena, 1889.
- Kahn, Franz.—Zur Geschichte des römischen Frauen—Erbrechts, Eine von der Juristen—Facultät Leipzig, gekrönte Preisschrift.—8vo, Leipzig, Breitkopf u. Härtel, 1884.
- Karlowa, Otto.—Die Formen der römischen Ehe und Manus.—8vo, Bonn, Cohen, 1868.
- Keller, Albert Galloway.—Homeric Society, a sociological study of the Iliad and Odyssey.—8vo, London, Longmans, 1902.
- Kiesling, Johannes Rudolphus.—De stabili primitivae ecclesiae ope litterarum communicatoriarum connubio.—8vo, Lipsiae, Takkii.
- Klugmann, N.—Vergleichende Studien zur Stellung der Frau im Altertum, Bd. 1, Die Frau im Talmud.—8vo, Wien, 1898.
- Kock, Theodor.—Alkaios und Sappho.—8vo, Berlin, Weidmann, 1862.
- Koechly, Hermann.—Ueber Sappho, mit Rücksicht auf die gesellschaftliche Stellung der Frauen bei den Griechen, Akademische Vorträge und Reden I., S. 153–217.—8vo, Zürich, Meyer u. Zeller, 1859.
- Kreise, Dr. Johann Heinrich.—Plotina, oder, Die Kostüme des Kaupthaars bei den Volkern der alten Welt.—8vo, Leipzig, Dyk, 1858.
- Kubinski, J.—De Sapphus vita et poesi Progr.—Premislae, 1897.
- Laboulaye, Édouard.—Recherches sur la condition civile et politique des femmes, depuis les Romains jusqu'à nos jours.—8vo, Paris, Durand, 1843.

- Lacombe, Paul.—La famille dans la société romaine, Étude de moralité comparée.—8vo, Paris, Lecrosnier et Babé, 1889.
- Lasaulx, E. v.—Zur Geschichte und Philosophie der Ehe bei den Griechen, in den Abh. der Bayr. Akad. f. 1852, Phil. Cl. Bd. VII., Abth. 1, S. 21 ff. and in Studien des Classischen Alterthums p. 374.—4to, Regensburg, Manz, 1854.
- Lecky, William Edward Hartpole, M.A.—History of European Morals, from Augustus to Charlemagne, 2 vols.—8vo, London, 1869.
- Lefevre, Maurice.—La femme à travers l'histoire.—8vo, Paris, Fontemoing, 1902.
- Legouvé, Ernest.—Histoire morale des femmes, 6ème éd.—12mo, Paris, Didier, 1874.
- Lenz, Carl Gotthold.—Geschichte der Weiber im heroischen Zeitalter.—12mo, Hannover. Helwing, 1790.
- Letourneau.—La condition de la femme dans les diverses races et civilisations.—8vo, Paris, 1903.
- Lévy, Louis-Germain.—La famille dans l'antiquité israélite.—Paris, Alcan, 1905.
- Lewy, Henricus.—De Civili condicione mulierum Graecarum.—8vo, Vratislaviae, Grassus, Barthius et Soc., 1885.
- Lilie, Dr.—De hominum vita et moribus quales sint apud Homerum.—4to, Breslau, Grass, 1841.
- Lipinska, Mélanie.—Histoire des femmes médecins depuis l'antiquité jusqu'à nos jours.—Paris, Jacques & Cie, 1900.
- Lipsius, Justus.—De vesta et vestalibus Syntagma.—8vo, Antuerpiæ, Moret, 1603.
- Luňák, Joannes.—Quaestiones Sapphicae. Accedit corollarium criticum atque exegeticum ad ovidianam Sapphus epistulam.—8vo, Kazaniae, 1888.
- Lytton, Edward Bulwer, Lord.—Miscellaneous Prose Works, 3 vols. Vol. II. p. 341. The influence of love upon literature and real life.—London, Bentley, 1868.
- McCabe, Joseph.—The religion of woman. An historical study.—8vo, London, Watts, 1905.
- Mackintosh, John.—The history of civilization in Scotland. Vol. I.—8vo, London, Nimmo, 1878.
- Mähly, J. A.—Die Frauen des griechischen Alterthums.—8vo, Basel, Mast, 1853.
- Mahaffy, J. P.—Social Life in Greece, from Homer to Menander.—London, Macmillan, 1874.
- Mahaffy, J. P.—The Empire of the Ptolemies.—London and New York, Macmillan, 1895.
- Martin, Louis-Auguste.—Histoire de la femme. Sa condition, politique, civile, morale et religieuse.—12mo, Paris, Didier, 1862.
- Matthias, Dr.—Zur Stellung der griechischen Frau in der klassischen Zeit.—Square 8vo, Zittau, Böhme, 1893.
- Mercklin, Ludovicus.—De Corneliae vita, moribus, et epistolis commentatio.—12mo, Dorpati, Laakmann, 1844.

- Meyer, Eduard.—Forschungen zur alten Geschichte. Bd. 1. Zur älteren griechischen Geschichte. Bd. 2. Zur Geschichte des fünften Jahrhunderts v. Chr.—8vo, Halle a. S., Niemeyer, 1892–99.
- Meyer, L.—De virginum exercitationibus gymnycis apud veteres.—Square 8vo, Clausthal, Pieper, 1872.
- Meyer, Paul.—Der römische Konkubinat nach den Rechtsquellen und den Inschriften.—8vo, Leipzig, Teubner, 1895.
- Michaelis, Adolf.—Thamyris und Sappho, auf einem Vasenbilde.—4to, Leipzig, Breitkopf u. Härtel, 1865.
- Mispoulet, J. B.—Études d'institutions romaines.—8vo, Paris, Durand et Pedone-Lauriel, 1887.
- Mitteis, Dr. Ludwig.—Reichsrecht und Volksrecht in den östlichen Provinzen des römischen Kaiserreichs.—8vo, Leipzig, Teubner, 1891.
- Moestl, Franz Xaver.—Frauenleben im alten Rom. Sammlung gemeinnütziger Vorträge, No. 115.—8vo, Prag, Haase, 1886.
- Moll, Henricus Marinus de Bruyn de Neve.—Disputatio literaria de peregrinorum apud Athenienses conditione.—8vo, Dordraci, Van Houtrijve et Bredius, 1839.
- Mommsen, August.—Feste der Stadt Athen im Altertum, geordnet nach attischem Kalender.—8vo, Leipzig, Teubner, 1898.
- Montifaud, M. A.—Die Courtisanen des Alterthums, 3 Aufl.—8vo, Budapest, Grimm, 1902.
- Morillot, Léon.—De la condition des enfants nés hors mariage dans l'antiquité et au moyen âge en Europe.—8vo, Paris, Durand, 1866.
- Müller, Carl O.—Minervae Poliadis sacra et aedes in arce Athenarum.—Sq. 8vo, Gottingae, Römer, 1820.
- Müller, Friedrich Hieronymus.—Ueber das Familienleben der homerischen Zeit.—Sq. 8vo, Zeitz, Webel, 1866.
- Müller, Otto.—Untersuchungen zur Geschichte des attischen Bürger- und Eherechts.—8vo, Leipzig, Teubner, 1899.
- Mure, William.—A critical history of the language and literature of ancient Greece.—5 vols. 8vo, London, Longm., 1850–57.
- Musonius.—C. Musonii Rufi reliquiae et apophthegmata. Cum adnotatione edidit J. Venhuizen Peerlkamp.—8vo, Harlemi, Loosjes, 1822.
- Musonius.—C. Musonii Rufi reliquiae. Edidit O. Hense.—12mo, Lipsiae, Teubner, 1905.
- Nägelsbach, Carl Friedrich von.—Homerische Theologie, zweite Auflage, bearbeitet von Georg Autenrieth, p. 250.—8vo, Nürnberg, Geiger, 1861.
- Nägelsbach, Carl Friedrich von.—Die nachhomerische Theologie des griechischen Volksglaubens.—8vo, Nürnberg, Geiger, 1857.
- Navarre, Octavius.—Utrum mulieres Athenienses scaenicos ludos spectaverint necne. Thesim....—4to, Tolosae, 1900.

- Neumann, Karl Johannes.—Der römische Staat und die allgemeine Kirche bis auf Diocletian. Bd. 1.—8vo, Leipzig, Veit, 1890.
- Neumann, Karl Johannes.—Hippolytus von Rom in seiner Stellung zu Staat und Welt. Abt. 1.—8vo, Leipzig, Veit, 1902.
- Nietzold, Johannes.—Die Ehe in Ägypten.—8vo, Leipzig, Veit, 1903.
- Notor, G.—La femme dans l'antiquité grecque. Texte et dessins.—Fol., Paris, Laurens, 1901.
- Pantazides, Ch. G.—Τὰ περὶ γυναικὸς παρὰ Πλάτωνι φιλοσοφούμενα—Freiburg, Diss.
- Paulides, Joachim.—Σαπφὼ ἡ Μυτιληναία—8vo, Leipzig, Drugulin, 1885.
- Paris, Petrus.—Quatenus feminae res publicas in Asia Minore, Romanis imperantibus, attigerint.—8vo, Parisiis, Thorin, 1891.
- Pelka, Otto.—Altchristliche Ehedenkmäler.—4to, Strassburg, Heitz, 1901.
- Perry, W. C.—The Women of Homer.—8vo, London, Heinemann, 1898.
- Philippi, Adolf.—Beiträge zu einer Geschichte des attischen Bürgerrechtes.—8vo, Berlin, Weidmann, 1870.
- Praechter, Karl.—Hierokles der Stoiker.—4to, Leipzig, Dieterich, 1901.
- Raffay, Robert.—Die Memoiren der Kaiserin Agrippina.—8vo, Wien, Hölder, 1884.
- Rainneville, Joseph de.—La femme dans l'antiquité et d'après la morale naturelle.—8vo, Lévy, Paris, 1865.
- Ramdohr, Ernst.—Zur homerischen Ethik.—4to, Lüneburg, Stern, 1865.
- Rangabe, Kleon.—Ὁ καθ' Ὁμηρον οἰκιακὸς βίος—12mo, Athens, 1864.
- Rein, Dr. Wilhelm.—Das Criminalrecht der Römer von Romulus bis auf Justinianus.—8vo, Leipzig, Köhler, 1844.
- Rein, Dr. Wilhelm.—Das Privatrecht und der Civilprocess der Römer.—8vo, Leipzig, Fleischer, 1858.
- Riedel, Karl.—Der gegenwärtige Stand der Sapphrofrage.—8vo, Iglau, Rippl, 1881.
- Roby, Henry John, M.A., LL.D.—Roman private law in the times of Cicero and of the Antonines. 2 vols.—8vo, Cambridge, 1902.
- Rohde, Erwin.—Der griechische Roman und seine Vorläufer.—8vo, Leipzig, Breitkopf u. Härtel, 1876.
- Rossi, G. B. de, on Callistus, Bulletino di Archeologia Cristiana, p. 23.—Rome, 1866.
- Roszbach, August.—Untersuchungen über die römische Ehe.—8vo, Stuttgart, Macken, 1853.
- Roszbach, August.—Römische Hochzeits und Ehedenkmäler.—8vo, Leipzig, Teubner, 1871.
- Ruggiero, R. de.—Studi papirologici sul matrimonio e sul divorzio nell'Egitto greco-romano. (Estr. de Bull. de l'Inst. di Diritto Rom. XV., 576).—Roma, Forzani e Co., 1903.

- St. John, J. A.—The Hellenes: The history of the manners of the ancient Greeks. New ed., 3 vols. in 1.—8vo, London, 1844.
- Sappho.—Fragmenta et elogia.... Cura et studio Jo: Christiani Wolfii.—4to, Hamburgi, Vandenhoeck, 1733.
- Schaible, Karl Heinrich.—Die Frau im Altertum. Ein kulturgeschichtliches Bild.—8vo, Karlsruhe, Braun, 1898.
- Scheurl, Adolf V.—Die Entwicklung des kirchlichen Eheschliessungsrechts.—8vo, Erlangen, Deichert, 1877.
- Schlelein, Hans.—De epistolis, quarum fragmenta in Corneli Nepotis libris traduntur, Corneliae, Gracchorum matri, vindicandis.—8vo, München, Wolf, 1900.
- Schlichting, Joannes F. E.—De vestalibus et jure vestali populi Romani.—8vo, Helmstad, 1752.
- Schneidewin, Max.—Die homerische Naivetät, eine ästhetisch kulturgeschichtliche Studie.—8vo, Hameln, Brecht, 1878.
- Schoemann, G. F.—Griechische Alterthümer, bd. 1, Das Staatswesen, 2te Aufl.—8vo, Berlin, Weidmann, 1861.
- Seiffen, Gerardus Dorn.—Jus feminarum apud Romanos tam antiquum quam novum.—Sq. 8vo, Trajecti ad Rhenum, Paddenburg, 1802.
- Sontag, Carolus Richardus.—De sponsalibus apud Romanos.—4to, Halæ, Hendel, 1860.
- Stahr, Adolf.—Cleopatra, 2te Aufl.—12mo, Berlin, Guttentag, 1879.
- Stahr, Adolf.—Agrippina, die Mutter Nero's, 2te Aufl.—12mo, Berlin, Guttentag, 1880.
- Stahr, Adolf.—Römische Kaiserfrauen, 2te Aufl.—12mo, Berlin, Guttentag, 1880.
- Stégeren, Didericus Janus van.—Dissertatio literaria inauguralis de conditione domestica feminarum Atheniensium.—8vo, Zwollae, Stégeren, 1839.
- Strack, Max L.—Die Dynastie der Ptolemäer.—8vo, Berlin, Hertz, 1897.
- Szanto, Emil.—Das griechische Bürgerrecht.—8vo, Freiburg i. B., Mohr, 1892.
- Szanto, Dr. Emil.—Untersuchungen über das attische Bürgerrecht.—8vo, Wien, Konegen, 1881.
- Thal, Dr. Max.—Das Christentum u. die moderne Frauenbewegung.—8vo, Breslau, Koebner, 1904.
- Tholen, Nicolaus.—Responsio, ad quaestionem historicam.... “Quam vim habuerunt apud Romanos foeminae in res eorum politicas, bellorum civilium temporibus? Adjiciatur huic disquisitioni foeminarum Romanarum Characterismus.”—8vo, Utrecht.
- Thumser, V.—Die Stellung der Frau bei den Griechen.—8vo, Wien und Leipzig, Deuticke, 1903.
- Twist, A. J. Duymaer van.—“Quae fuit Peregrinorum, in imperio Romano, conditio, tum libera republica, tum sub Caesaribus?”—4to, Leiden, 1831.

- Viaud, M. I.—De la puissance maritale, considérée sous les rapports historique, philosophique et juridique, et précédée d'une introduction sur les lois de son adoucissement progressif depuis les mœurs primitives jusqu'aux législations contemporaines.—8vo, Paris, Durand, 1855.
- Volkmar, G.—Hippolytus und die römischen Zeitgenossen.—8vo, Zurich, Kiesling, 1855.
- Welcker, F. G.—Kleine Schriften.—2ter th. 8vo, Weber, Bonn, 1845; S. 80–144, Sappho, von einem herrschenden Vorurtheil befreit (1816). Fünfter Theil Sappho und Phaon.—8vo, Elberfeld, Freidrichs, 1867.
- Wendland, Paulus.—Quaestiones Musonianae.—8vo, Berolini, Mayer, 1886.
- Weniger, Ludwig.—Ueber das Collegium der Thyiaden von Delphi.—Sq. 8vo, Eisenach, 1876.
- Weniger, Ludwig.—Über das Kollegium der Sechzehn Frauen und den Dionysosdienst in Elis.—Sq. 8vo, Weimar, 1883.
- Wessely, Dr. Carl.—Karanis und Soknopaiu Nesos, Studien zur Geschichte antiker Cultur-und Personenverhältnisse, In Denkschriften d. Kaiserl. Akad. d. Wissenschaften, Phil., hist. Classe, Bd. 47.—Fol., Wien, Gerold, 1902.
- Wharton, Henry Thornton, M.A.—Sappho, Memoir, text, selected renderings, and a literal translation.—12mo, London, 1895.
- White, Rachel Evelyn.—Women in Ptolemaic Egypt.—Reprinted from the Journal of Hellenic Studies, 1898.
- Wiese, Dr. L.—Zur Geschichte und Bildung der Frauen, 2te Aufl.—12mo, Berlin, Wiegandt, 1873.
- Wilamowitz-Moellendorff, Ulrich von.—Aristoteles und Athen. 2 Bde.—8vo, Berlin, 1893.
- Wilmanns, Gustavus.—Exempla Inscriptionum Latinarum.—8vo, Berlin, Weidmann, 1873.
- Wolf, Jo. Christian.—Mulierum Graecarum quae oratione prosa usae sunt fragmenta et elogia Graece et Latine.—4to, Londini, 1739.
- Wolf, Jo. Christian.—Poetriarum octo Erinnae, Myrus, Myrtidis, Corinnae, Telesillae, Praxillae, Nossidis, Anytae, fragmenta et elogia.—4to, Hamburgi, Vandenhoeck, 1734.
- Wolf, Jo. Christian.—Sapphus, poetriae Lesbiae, fragmenta et elogia.—4to, Hamburgi, Vandenhoeck, 1733.
- Wordsworth, Chr.—St. Hippolytus and the Church of Rome, in the earlier part of the third century.—8vo, London, Rivington, 1853.
- Wordsworth, J., Bp. of Salisbury.—The ministry of Grace, Ch. V. pp. 257–303, Women's work: Widows, Presbyteresses, Deaconesses, Virgins.—8vo, London, Longmans, 1901.
- Wroth, Warwick, F.S.A.—Catalogue of the Greek coins of Troas, Aeolis, and Lesbos.—8vo, London, 1894.

Wünsche, Dr. August.—Jesus in seiner Stellung zu den Frauen.—12mo, Berlin, Henschel, 1872.

Zimmerman, Richardus.—De Nothorum Athenis condicione.—12mo, Berlin, Mayer.

Zscharnack, L.—Der Dienst der Frau in den ersten Jahrhunderten der Christlichen Kirche.—8vo, Göttingen, Vandenhoeck & Ruprecht, 1902.

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FOOTNOTES:

[1] 'Trach.,' 438.

[2] Stob., 'Flor.,' 85, 19.

[3] De Legg. viii. p. 841 D. (Jowett's translation).

[4] Pol. iv. (vii.) 16, 18.

[5] δεισιδαίμωνῆσαι. Athenæus, xiii. c. 59, p. 590. There are two versions of the story, which are given with all the authorities in Wagner's edition of 'Alciphron,' vol. i. p. 178.

[6] Stob. 73, 61.

[7] These passages are all given from the large collections in Stobæus (Flor. Tituli, 68–74). The genuineness of the fragment of Susarion is justly doubted; but the sentiment is no doubt correctly ascribed to him.

[8] Stob. 68, 8.

[9] Stob. 68, 3.

[10] Discussions on the Homeric women are very numerous. I give a list of the most notable works in the bibliography. Special praise is due to Lenz's 'Geschichte der Weiber im Heroischen Zeitalter': Hannover, 1790. The fullest and ablest account in English is in Mr. Gladstone's 'Homeric Studies,' vol. ii.

[11] And according to the ideas of later Greeks, see especially Isocrates's Encomium on Helen.

[12] The later Greeks attributed to Cecrops, or some other Attic hero, the introduction of monogamy. The state of women in Greece before the time of Homer is discussed in Bachofen's 'Mutterrecht,' and in Mr. McLennan's 'Kinship in Ancient Greece.'

[13] Il. ix. 336.

[14] Il. xix. 297.

[15] Od. vi. 182.

[16] Il. vi. 429.

[17] Od. xxiii. 210.

[18] Lasaulx ('Zur Geschichte und Philosophie der Ehe bei den Griechen,' p. 30) adduces Laodamia as an instance of the same constancy; but the case is not so clear.

[19] See Mr. Gladstone's 'Homeric Studies,' vol. ii. p. 507.

[20] Il. vi. 442.

[21] Od. i. 433.

[22] Od. iii. 450.

[23] Il. vi. 301.

[24] Euripides, 'Andromache' 597; Propertius iv. 14; Athenæus, xiii. 20, p. 566 e.

[25] Ath. xiii. 2, p. 555c.

[26] 'Lysist.' 78.

[27] Plutarch discusses the women of Sparta in the 'Life of Lycurgus,' and in a treatise on 'Sayings of Spartan Women.' He discusses women generally in 'Conjugal Precepts,' 'Consolation to his Wife,' 'Erotic Discourse,' 'Erotic Narratives,' and 'Virtues of Women.'

[28] Especially in his 'Andromache,' but, as Paley remarks, this play is animated throughout by a bitter hostility to Sparta, and it may therefore be regarded as an expression merely of a strong temporary feeling.

[29] Plato shows his approbation by adopting the questionable features into his own ideal commonwealth. "Then," he says, "let the wives of our guardians strip, having virtue for their robe.... And as for the man who laughs at naked women exercising in gymnastics for the sake of the highest good, his laughter is 'A fruit of unripe wisdom,' which he gathers, and he himself is ignorant of what he is laughing at, or what he is about; for that is, and ever will be, the best of sayings—that the useful is the noble, and the hurtful the base."—'Rep.' v. p. 457 (Professor Jowett's translation). Plato discusses the objections to the Spartan method in 'Legg.' i. p. 637 C.; vi. p. 781 A.; vii. p. 806 C.; p. 814 A.; and tacitly in 'Rep.' viii. p. 548.

[30] 'Polit.' ii. 9, 9.

[31] Plutarch, 'Life of Agis.'

[32] Plutarch 'Life of Cleomenes.'

[33] Stob., 29, 58.

[34] xiii. c. 2, sec. 3.

[35] Diss. 24, 9.

[36] 'Athenæus,' 14, 19, p. 624e.

[37] "To attack a woman's reputation is the ready resort of the blockhead who is jealous of her talents."—MISS CORNWALLIS.

[38] ii. 135.

[39] Rhet. 23.

[40] Luňák, p. 71 note, and Boech, 'Greek Inscriptions,' 2374 (51).

[41] It seems to have been possible for an Athenian to take a free Athenian woman as a concubine; but the rights of such concubines and children, and indeed the whole subject, are involved in difficulties. See Van den Es: 'De Jure Familiarum apud Athenienses.'

[42] Xen. 'Æc.' iii. 13; vii. 5.

[43] v. 641.

[44] The verses in Sophocles ('Antig.' 905–13) are probably interpolated, but the interpolation was as early as Aristotle ('Rhet.' 3, 16, p. 1417 A, 32), and the

same ideas are placed by Herodotus (3, 119) in the mouth of the wife of Intaphernes.

[45] ii. 45.

[46] Theodota, Xen. 'Mem.,' iii. 11.

[47] Some have affirmed Diotima to be a fiction of Plato (Mähly, 'Die Frauen des Griechischen Alterthums,' p. 14), but this supposition has been amply refuted: Stallbaum on the 'Symposium,' p. 201 D. Otto Jahn collects all the references to Diotima by ancient writers in his edition of the 'Symposium.'

[48] Timandra, Plut. 'Alcib.' c. 39.

[49] Pericles, 24.

[50] See Book iv. c. 2 s. 2.

[51] 'Symp.,' xvi. p. 193 C.

[52] Chronological difficulties have been suggested in the way of this statement being true (see especially a beautiful monograph on Aspasia, 'Aspasie de Milet,' par L. Becq de Fouquières, p. 342), but I do not think that the difficulties are insuperable. Müller-Strübing (Aristophanes, p. 585) has found an allusion to this connexion with Lysicles in Aristophanes with greater ingenuity than success.

[53] See especially Miss Cornwallis's able defence of Aspasia: Letters, p. 181.

[54] Ovid, 'Ep. ad Phaon.' 33; Max. Tyr. Diss. 24, 7.

[55] 'Jahrgang,' xxxv. 1877, p. 56.

[56] P. 920.

[57] Opuscula 'Lysias,' c. 33, ed. Usener and Radermacher.

[58] See Book 4 c. 2 sec. 4.

[59] p. 291.

[60] 'Drerup,' p. 223, especially 247.

[61] Some have doubted the existence of this grandson Sophocles, because an inscription was found in 1849, "Sophocles the son of Iophon" (Rangabe, 'Antiq. Hell.,' ii. p. 997); but there is nothing to prevent the supposition that Sophocles had two grandsons named Sophocles. If Iophon had a son, he would naturally be called Sophocles; and if the son of Theoris had a son, Sophocles also would be the name that would certainly be given to him.

[62] 2, 6, 36.

[63] Jowett, p. 285; 'Rep.,' p. 455.

[64] See Book iv. c. 2, sect. 6.

[65] Cl. Alex. p. 751, 'Strom.,' vi. 24.

[66] 'Symp.,' c. ii. 9.

[67] Dionysius makes Servius Tullius admit the freedman to citizenship (iv. 22).

- [68] Columella, i. 8, 19.
- [69] Livy, 4, 1 ff.
- [70] Plutarch, 'Tib. Gracchus,' i.
- [71] The story may not be historical, but the Romans regarded it as such.
- [72] Gell. x. 23; Val. Max. vi. c. 3, 9–12.
- [73] Livy, viii. 18.
- [74] Livy, xl. 37.
- [75] Livy, xxix. 14, 10.
- [76] Livy, xxix. 10, 5.
- [77] Livy, xxxix. 8 ff. 18.
- [78] Livy xxxiv. 1–8; Val. Max. ix. 1, 3; Zonaras ix. 17; Livy v. 25; Mackintosh ii. 345.
- [79] Plutarch, 'Cato Major,' viii.
- [80] Val. Max. viii. 3, 3; Quint. i. 1, 6; App. 'Bell. Civ.,' iv. (6), 32.
- [81] Livy, Epitome, xli.
- [82] Plutarch, 'Cato Minor,' 25.
- [83] xiv. 6, 17, &c.
- [84] 'De Gubernatione Dei,' vii. 65–91.
- [85] i. 376.
- [86] Paulus in 'Digest,' 45, l. 134.
- [87] vi. 200.
- [88] P. 133.
- [89] Val. Max., 2, 1, 4; Dionys. Hal., 'Antiqu. Rom.,' ii. 25; Plutarch, 'Quæst Rom.,' 14, compar. Thes. c. Rom. 6; Lycurg., c. Numa 3; A. Gellius, iv. 3, xvii. 21, 44; Rein, 'Rom. Privatrecht,' 451 note; Val. Max. 2, 9, 2.
- [90] P. 70.
- [91] Rev. David Williamson died 6 August, 1706. "After threescore he married the seventh wife." Many lampoons were made on this divine, collected by Maidment; he refers to Kirkton's 'Church History', p. 349.
- [92] Long's translation.
- [93] Ep., iv. 19.
- [94] Tac. 'Ann.,' 3, 33, 34 (A.D. 21).
- [95] xv. 11.
- [96] vi. 34, 5–11.
- [97] Corp. Inscript. Lat., vol. viii. part ii. n. 9407; Renier, 3914, 'Messia Castula duumvira.'
- [98] viii. 3, 1.

- [99] Book iii. 1, 5.
- [100] Suet., 'Galba,' 5; Lampridius, 'Heliogabalus,' 4; Flav. Vopis. 'Aurelianus,' 49.
- [101] Epict. fr. 53, Schw., vol. iii. p. 84.
- [102] 'Brutus,' 13.
- [103] Long's translation.
- [104] Pliny, 'Epist.,' 3, 16.
- [105] Translation by Dr. John Muir.
- [106] Paulus Diaconus, 'Uxorium,' 379 (Müller).
- [107] Val. Max. 2, 9, 1, cf. Plutarch, 'Cam.,' ii.
- [108] Livy, Epitome, lix.; Gell., i. 6.
- [109] Suet. 'Aug.,' 89.
- [110] Lib. iii. 7.
- [111] Civil. Bell, ii. 102.
- [112] xliii. 25.
- [113] Darst., 1⁵, p. 52.
- [114] lvi. 1–10.
- [115] Dio. Cass., xliii. 25; Cicero pro Marcello, viii. 23; Suet. 'Cæs.,' 20; Appian 'Bell, Civ.,' ii. 10; Dio. Cass., xxxviii. 7.
- [116] Epiph., 'Haer.,' xxx. 16, p. 140.
- [117] Tarsica prior Orat., xxxiii. p. 408 M.
- [118] Zscharnack, p. 22, 45; Harnack Mission, 395–407.
- [119] Eusebius, 'Hist. Eccl.,' iii. 31.
- [120] All the translations are taken from Clark's Ante-Nicene Library, but altered when the meaning can be expressed more exactly. De Virg. Veland., c. ix.
- [121] Apost. Const., Book iii. 15, 5.
- [122] iii. 5 and 7.
- [123] Tertull., De Baptismo, c. xvii.
- [124] C. 40.
- [125] P. 274.
- [126] Book iii. c. ix.
- [127] For Athena Polias, C. O. Müller, Minervæ Poliadis Sacra, &c., p. 13, where he enumerates the honours paid to the priestess. For Demeter and Core, Mommsen, 'Feste der Stadt Athen,' 1898, p. 265, M. F. Foucart, 'Les Grands Mystères d'Éleusis,' Paris, 1900, p. 62. Weniger discusses priestesses in Delphi and Elis in his programmes, mentioned in Bibliography.
- [128] Epiphanius 'Haer.,' 49. Augustine de Haeresibus, c. 27.

- [129] Bonwetsch regards these statements as strictly historical, p. 168.
- [130] 'Haer.,' 78, c. 23; 79.
- [131] Probably the reading should be οἰκοῦσα.
- [132] C. 24.
- [133] Carpocrates Irenæus, i. 25, 4; Cainites Iren., i. 31, 2.
- [134] Marcion, Tertull. contra Marcionem, i. 29; Iren., i. c. 28.
- [135] 1 Cor. vi. 9.
- [136] Supplic. c. 32.
- [137] Pæd., iii. 81, 301 P.
- [138] Polycarp, Ep., c. 4.
- [139] Ad Ux., ii. 8.
- [140] Apost. Const., i. 8.
- [141] Conviv., i. 2, 17; ii. 1, 29.
- [142] De Virg. Veland., c. 17.
- [143] Supplic., c. 33.
- [144] De Exhort. Cast., 5.
- [145] Ad Ux., i. 1.
- [146] De Exhort. Cast., 10.
- [147] Clem. Alex. Frag., 1012 P.
- [148] Ad Ux., i. 5.
- [149] De Monogamia, 16.
- [150] 'De Cultu Feminarum,' i. 1.
- [151] Pæd., ii. 2, 83, 186 P.
- [152] Metaphrasis in Ecclesiasten, c. 7, 28.
- [153] Test. of Reuben, c. 5.
- [154] Test. of Judah, c. 15.
- [155] Pæd. iii. 10, 11.
- [156] See p. 249.
- [157] 'De Cult. Fem.' ii. 2.
- [158] Pæd., iii. 11, 79.
- [159] Instruct. 60 or Book ii. 19.
- [160] Pæd., iii. 2, 11, p. 258 P.
- [161] De Habitu Virg., 16, 17, 21, 20.
- [162] Conviv., xi. 1, 282.
- [163] De Anima, 25.

[164] Tert. Apol. 9.

[165] C. 19, 5; Didache c. 2.

[166] Clem. Alex. Eclog., 48 and 41; Method. Conviv. 2, 6; Harnack, 'Bruchstücke des Evangeliums und der Apokalypse des Petrus,' p. 48 in 'Texte und Unters.,' vol. 9, part 2.

[167] Il., 24, 495.

[168] Il., 21, 85; 22, 48.

[169] Il., 8, 305.

[170] Il., 9, 340.

[171] Od., 21, 214; 14, 64.

[172] Il., 9, 449, 452.

[173] 14, 203.

[174] Il., on viii. 284.

[175] Od., 4, 12.

[176] Il., 13, 174.

[177] Il., 5, 70.

[178] Il., 8, 282.

[179] Il., 2, 727; 13, 694; 15, 333.

[180] Il., 4, 499; 11, 490; 16, 738.

[181] 11, 101.

[182] 14, 200.

[183] 'Polygamie und Pellikat nach Griechischem Rechte von Dr. Ernst Hruza' (Erlangen and Leipzig, 1894).

[184] P. 72.

[185] P. 27 or 394.

[186] Diodorus Siculus, 1, 80, 3; Wessely Karanis, 30; Nietzold, p. 19.

[187] Curtius, 'Grundzüge,' 1st ed., vol. i. p. 128, and Schmidt, 'Synonymik der Griechischen Sprache,' 67, 7, vol. ii. p. 408.

[188] Il., i. 113.

[189] 11, 102.

[190] 14, 202.

[191] 13, 363.

[192] 130, 676.

[193] 'Opuscula Philologica,' vol. ii. p. 59.

[194] 'Homerische Abhandlungen,' p. 341.

[195] 3, 464.

- [196] Od. 5, 264.
- [197] 10, 362.
- [198] 4, 49.
- [199] 23, 154; 24, 366.
- [200] 5, 905.
- [201] See Nägelsbach, 'Homerische Theologie,' 2nd ed., p. 251.
- [202] 'Studies of Homer,' ii. 514.
- [203] 7, 296.
- [204] 6, 210.
- [205] 4, 252.
- [206] 'Naivetät,' p. 152.
- [207] Grasberger, &c.
- [208] 'Meyer de virginum exercitationibus apud veteres' (Clausthal, 1872), p. 7.
- [209] Aristoph., 'Clouds,' 965; 'Thesm.,' 163.
- [210] 'Homerische Blätter,' 2, p. 128.
- [211] P. 36.
- [212] P. 286 (London, 1896).
- [213] Vol. ii. part 2 das Privatleben, 'Die Homerischen Realien,' p. 14.
- [214] Pp. 1 and 2.
- [215] Vol. ii. (1845) with an appendix.
- [216] Vol. iii. p. 272.
- [217] Vol. xii. p. 564 (1857).
- [218] Vol. v. p. 228.
- [219] P. 5.
- [220] P. 17.
- [221] 'Comicorum Atticorum Fragmenta.'
- [222] De Vries and Luňák.
- [223] Lese Früchte in Hermes, vol. 53.
- [224] P. 814.
- [225] 'Masterpieces of Greek Sculpture,' by Adolf Furtwängler, edited by Eugénie Sellers (London, Heinemann, 1895), Sappho, p. 71, Aspasia, 81.
- [226] P. 50.
- [227] See the decree of the Athenians in regard to Chalcis, 'Ἀθήναιον,' t. v. p. 76; 'Mittheilungen des Deutschen Archæol. Inst. in Athen,' vol. i. p. 184; 'Revue

Archéologique,' April, 1877, p. 242; Nos. 70 and 87 in 'Recueil d'Inscriptions Grecques,' par Charles Michel.

[228] P. 70.

[229] P. 812.

[230] See Sandys on c. 26 of Aristotle's 'Politeia.'

[231] 'Constitution of Athens,' c. 26.

[232] The authorities are given in Müller, p. 666.

[233] Sect. 122, p. 1386.

[234] 'Ancora sui rapporti fra l'Ecclesiazusæ d'Aristofane e la Repubblica Platonica' (Torino, Loescher, 1886).

[235] Bell, 1902.

[236] P. xcvi.

[237] P. 325 (Longmans, 1897).

[238] 'Plato,' p. 225.

[239] See also 'The Republic of Plato,' edited, with critical notes, commentary, and appendices, by James Adam, M.A. (Cambridge, 1902), vol. i. Appendix, p. 345, 'On the relation of the fifth Book of the Republic to Aristophanes's "Ecclesiazusæ."' Mr. Adam favours the priority of the play to the 'Republic.' Maurice Croiset, 'Aristophane,' p. 286 (Paris, 1906), is of the same opinion.

[240] Some divide Greek comedy into ancient and middle and new. Kock follows Aristotle in speaking only of old and new comedy.

[241] 'Aulularia,' 504–15. We give Wagner's text.

[242] Verses 676–707, Lorenz.

[243] See 'Arnobius adversus Nationes,' vii. 33.

[244] 'Mercator,' v. 805–13.

[245] 'Stich.,' 39–46.

[246] 'Rudens,' 406–11.

[247] M. Benoist has gone over separately the characters of the women in Plautus in his thesis, 'De Personis Muliebribus apud Plautum' (Massiliæ, 1862).

[248] Édélestand du Méril, 'Histoire de la Comédie Ancienne,' vol. ii. p. 211; Gaston Boissier, 'Quomodo Græcos Poetas Plautus transtulerit' (Parisiis, 1857).

[249] Verses 368–70.

[250] 'Cur.,' 146–54.

[251] 'Truc.,' 354.

[252] 'Pæn.,' 353.

[253] 'Journal of Hellenic Studies,' vol. viii. (1887), p. 256.

[254] See Bachofen's 'Mutterrecht.'

- [255] Pearson, p. 53.
- [256] 'Strom.,' iv. 19.
- [257] P. 121.
- [258] 'Fabulæ,' 274.
- [259] Vol. xviii.
- [260] 'The Ptolemies,' vii., p. 374.
- [261] P. 11.
- [262] Nietzold, p. 79; Grenfell, 'Greek Papyri,' ii. 76.
- [263] P. 257.
- [264] P. 9.
- [265] ix. 12, Schn.
- [266] Paulus, however, in 'Dig.,' 23, 2, 44, attributes this to a "lex Julia."
- [267] 'Digest,' 23, 2, 16; the extract is quoted from Paulus. See also 'Dig.,' 23, 1, 16; 23, 2, 23; 1, 9, 9; 1, 9, 10; 1, 9, 8; 24, 1, 3, 1.
- [268] 'Les Esclaves Chrétiens,' p. 293.
- [269] C. 5.
- [270] Book xxii. c. 2.
- [271] 'Refut.,' ix. II.
- [272] The action of Callistus is discussed by Abbé de Hir, de Rossi, Armellini, Bunsen, Wordsworth, Volkmar, Döllinger, Cruice, Meyer, and Neumann.

Transcriber's Note:

1. Greek words/phrases have been corrected where necessary.
2. Obvious printers', spelling and punctuation errors have been silently corrected.
3. Original spelling has been retained where necessary.

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